

SECRET SERVICE

OR

Recollections of a City Detective

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(etext transcriber's note)

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OR

RECOLLECTIONS

OF A

CITY DETECTIVE

By ANDREW FORRESTER, JUN.

AUTHOR OF "THE PRIVATE DETECTIVE"

NEVER BEFORE PUBLISHED

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MY GREAT ELECTIONEERING TRICK.

ABOUT twelve years ago there was an election anticipated in the Borough of N——. It was a notorious place for bribery, as I, who have been professionally concerned in many elections, perfectly well knew. It was an extraordinary town. It had once been a very flourishing place. A staple trade had been carried on there, and almost nowhere else; but an evil spirit of gentility pervaded its corporation in those days.

The genius of two or three well-known men would have taken advantage of the neutral position and prospects of that spot and its neighbourhood to found there a new industry, and give employment to an immense population of skilled artisans. The labour of these people, however, could only be set to work and supplemented by smoke. The mayor and town-council of N——, acting in the supposed interest of its inhabitants, determined they would have no smoky chimneys within their town. An Act of Parliament had been obtained sanctioning such municipal regulations as enabled these wiseacres to keep out the threatened innovation of gold-producing smoke. The new industry had, therefore, to settle down in the neighbourhood beyond municipal control. After this achievement had been successful, the surrounding district went on rapidly increasing in prosperity until it reached its present exalted position in that respect, and the trade of N—— went on diminishing to its present abject or exhausted condition. Meanwhile, also, the stage-coaches, which ran continuously through its streets—for N—— was on the great northern line of turnpike-road—dropping in their course a modicum of wealth for the inhabitants, were themselves put down by the unequal competition of a trunk railway; so that N—— became in course of time what it now is—a clean, shabby, pretentious, and poverty-stricken place. Stagnation amid activity distinguishes it. The grass grows in its High Street and Market-place. The remnant of independent people—that is, people who have a pecuniary independence—show airs, and walk about the neighbourhood under the belief that they are thought to be and are superior beings. The inhabitants who are not in this sense independent are craven, humiliated, impoverished, and corrupt. Yet N—— is a parliamentary borough; and, consequently, its present dilapidated, forlorn position supplies a fine opportunity for adventurous politicians—whether with or

without brains, no matter—who have heavy purses, skilful agents, and good machinery at their command.

Before I describe the special incidents of the case I am about to lay before the reader, let me supply some further particulars about the electoral conscience of this extraordinary old town. It has three classes of voters, who have been classified by a well-known Conservative electioneering agent (an attorney residing there); and a similar, or rather obverse, classification has no doubt been made by the other side. In the first list or classification are the really true and honest electors, men who would resent as an insult the offered bribe, sterling, worthy fellows, who would resist almost, or perhaps quite, to the death any attempt to coerce them to vote otherwise than as their consciences directed.

There is another list or classification of men who are inclined towards Conservatism (as, perhaps, some sardonic reader will suggest, every body in an old place like N—— ought to be); and these men will take half as much from the real supporter of our venerable institutions as they can get from some mushroom pursy adventurer professing ultra-Radical principles, who desires to make a market of his political influence, or is perhaps anxious to satisfy the cravings for distinction of his wife by getting himself as her marital adjunct returned to Parliament, and privileged to wear M.P. after his name.

The third list or classification embraces those electors who have no political principles, or character, or conscience whatever. These are fellows who want as much from Conservative as from Radical or from Whig. They are the scum and refuse, or dregs, of political life; and this foul element of the political existence at N—— is by no means the smaller portion of the three classifications.

The operator, or agent, as he likes to be called,—although, as police-magistrates and all other people dealing with crime are aware, the title “agent” is complimentary,—knows precisely with what material he has to deal. He “plays his cards,” as he sometimes describes his anxious labours, accordingly; and is only liable to one derangement. It is said that honesty and good faith towards one another is characteristic of thief-life. I have, in a former volume, shown that notion to be a fallacy. Politicians supply an additional proof of the accuracy of my statement.

When the operator or agent has—say, two days before the election—made all his arrangements for voting, and feels quite confident that, as the representative of Mr. Heavy Purse, his candidate,—a gentleman who rejoices in a retiring forehead, thick neck, small brain, a little talker and smaller doer, who has no political character, principle, sentiment, or notion whatever,—he has made it all right by virtue of the money already dropped, and the vastly larger amount promised, he goes to sleep in his downy, well-curtained bed at the Dodo, charged to the brim with rosy wine and deep spiritual potations, only to be awakened in the morning by a vigilant subordinate, who informs him that shortly before the witching hour over night there came into N—— a post-chaise or a “trap” with four horses, which did not seem fatigued by the length of their journey, for they had only come from Z——, but were the drawers of a load on the floor of the carriage, which hindered their movement and might have sacrificed their character for speed. The operator or agent knows that some wealthy political speculator has arrived with a good round sum in golden sovereigns. He does not think the affair so cleverly planned as it might have been, and would seem to have been on the first blush, but still he is a little tremulous, because he knows that the problem of success may be most easily resolved by the hand which can ply the largest, or heaviest, golden solvent. He knows that the magic of gold nowhere exercises a more potent influence over the soul than at N——; and he would already feel inclined to give up the contest if he could be sure that the new arrival had a large preponderance of gold over his own man. Notwithstanding the fact that he thinks his candidate a superior man, and one that the constituency, if it could be made honest, would be sure to like; and notwithstanding, also, that he has had the start of three weeks in canvassing, and got the promises of a considerable majority of electors over the comparatively needy Liberal candidate, who has been hitherto opposed to Mr. Heavy Purse,—the third arrival disquiets the operator.

One other remarkable fact I discovered in this town. I hope the reader will not be startled by it. I relate it as a truth. I state it as an undeniable proposition. I am open to be convinced if I am wrong; but if I am right it is a thing to be laid before Parliament, as a great argument in favour of something or against something else. Every fact surely leads up to an inference. Every truth has a moral. This fact I commend to all whom it doth concern, and I declare it. It is this: the representation of N—— is usually

determined by the brothel-keepers of the town. All the men who ever sat for that borough since the Reform Bill passed have been returned by these despicable human creatures, who derive means of sustaining their own existence out of the most loathsome, although we are told incurable, evil. How do I prove my fact and moral? the reader asks. Thus: when all the really honest electors have been polled, the operators or agents exhaust the comparatively decent section of the bribable part of the town, and the result of the whole gives to the Conservative, it may be, a majority of four, or it may be a majority to the Liberal of four, or it may be five, six, seven, eight, nine, ten, or eleven,—according to circumstances. We may suppose this to be late in the day. But there are still from twenty-three to twenty-five of the morally unclean ten-pound householders or burgesses in a particular street of N——, who regularly pay their rates and taxes within the date prescribed for exclusion from the register, and who are, therefore, duly-qualified voters. Neither Liberal nor Conservative will lose an election if he can help it. In the emergency of the time I speak of, the Liberal, finding himself in a minority of four, goes into Stew Street and buys up the twenty-three, four, or five occupiers of these leprosy-distilling houses, and pays any price the occupiers think fit to demand. They are taken up to poll like free, independent, honest, and moral electors. They turn the scale. They return the member. All the rest has been a farce. Printing the addresses of rival candidates, engaging committee-rooms, every thing in the way of machinery or principle, up to the visit of the operator or agent in Stew Street, has been useless. I hate shams. I detest mockeries. Why not leave Stew Street to return the gentleman or blackguard who is to be called M.P. for N——?

Apropos to this, or by way of postscript to my moralising, let me inform the reader that a cabinet minister has been returned for N——, and that, beyond all earthly doubt, Stew Street alone, or its voters, and the cabinet minister's money, returned him to Parliament in the way I have pointed out.

Well, as I have told the reader already, I saw the opportunity for getting an engagement, so I went to somebody, who put himself into communication with somebody else—this gentleman, who for the present may be called Mr. Somebodyelse, having made a fortune in trade, and having a wife who had persuaded him that he was a remarkably clever fellow, and that he ought to go into Parliament.

Mr. Somebodyelse had no political principles. He had himself always voted, as an elector, just in the way that his largest customer had recommended; which largest customer, as if events happened by chance, had always been a Liberal. Somehow or other, Mrs. Somebodyelse got into her feminine head that her spouse had herein gone on the wrong tack; that it was “not respectable” to be a Liberal; that the “highly genteel thing” was to stand by the Tories; and she therefore determined that, whenever her spouse went into Parliament, he should be a stanch Conservative: to which he, like a fond husband, said, “I will.” This did not much matter to me. Mr. Somebodyelse would do for N—— and for me as well as any other man. I was not careful about political opinions, and therefore made no hesitation about rendering my services to him.

It is always desirable to go through the usual forms. Occasionally, forms useless in themselves are made essential by custom. A man who could write was therefore employed to write an Address for our candidate, and one or two fellows were also engaged to “cram” or “coach” him with speeches that he was to re-deliver. They were not very fine speeches. The oratory was, in my opinion, gassy, flowery, nonsensical; or, as the great Mr. Barnum would say, and I shall take the liberty of saying, they were “humbugeous.”

We went down from London direct to the borough. The party consisted of myself, my associate (who was the agent), an attorney, and the candidate, whose name, address, and quality I had now ascertained. The reader may now know this gentleman as Mr. Jollefat, a retired tallow-melter or chandler, then residing at Melpomene Lodge, Clapham, and supposed to be a sleeping partner of “the old house” in which he had skimmed the cauldrons of boiling tallow admirably for more than thirty years.

On our arrival, we put out the address of our candidate. We started a personal canvass. We did all that was usual except bribe—and the time had hardly come for that—but all that we did only served to discourage every body but me.

My associate had told his candidate that he thought a couple of thousand pounds or thereabouts would do, whereas I had told *him* it would cost five thousand pounds at least, but that he ought to be prepared with seven or eight thousand if he really meant to go in and win. At N—— the candidate got to learn there was no chance for him with two or even three thousand pounds. He was chapfallen, and telegraphed to his wife, who came down in

a sumptuous anonymity, which, to our annoyance, had more effect than the simple announcement of her name and her relationship to the candidate would have had.

This lady, unlike the wife of Sir Baldpate Belly, under the like circumstances, became presumptuous and impracticable. She said she thought that three thousand “goolden suvrins was a wery enormus sum.” It cost her good man a wery long time to make that ’ere sum of money; and although she did not mind his spending his money like a Briton or a prime-minister, she said she thought three thousand pounds ought to satisfy every body, and if it didn’t, why, she wouldn’t go no further, and they might do as they could.

Mrs. Jollefat also said that she liked to see her way sure before she began. If it could not be done for that price certain, why, she’d rather not try it on at all. Three thousand “goolden suvrins,” as she often said, was a wery big sum of money, and it was not to be tossed into the Thames. That is what they would say in London, and she meant it was not to be made ducks and drakes on.

I was a little astonished, more especially when my associate boldly told her that, upon his honour, he would do it for the money. Of course I could not there and then contradict him, and in effect say he was a jolly humbug to let in a thrifty woman and her spouse in such a mode, so I held my peace until I got him alone. Then I protested. He replied, “Oh, gammon! make the old boy and girl spend. They won’t do any good with their money if they don’t drop it here; and, after all, rely upon it, I will make them shell out three or five thousand pounds more if it is wanted.” I argued and expostulated; my associate was firm. He said, “We have gone too far into the matter to go back. We shall both of us be ruined in our professions if we run away from the stake. I say, that we must go in and win, and make the old boy pay.”

I have heard it said that “Necessity is the mother of invention.” I believe the proverb is familiar to most of my readers. I am going to supply another illustration of it.

I was oppressed in conscience about Mr. and Mrs. Jollefat and their purse for the rest of the day. I felt that we must go in and win, or we must not go in at all, but must run away. Then my associate and partner would stick by the candidate, and perhaps really succeed in doing as he said must

be done—that was, gladden the hearts of the candidate and his wife by a triumph at the poll, and get the requisite amount of money to pay him for the operation. About the former part of the business I was not at all certain; but if, on the other hand, he failed, which was more likely, could I rid myself from the responsibility by merely withdrawing at the present stage of affairs? I resolved to go on, and make the best use of the little legal knowledge I had obtained, so as to keep out of harm's way. I was ultimately able to devise what I then thought, and still think, my greatest Electioneering Trick.

I took a stroll, in order to collect my thoughts; and after cudgelling my brain for an hour or two, hit upon the following expedient, which I carried out in the manner described.

I hastened to London by a midnight train, took a cab from the Euston Station, and knocked up a clever fellow in my own line of business, who was instructed by me, and who acted under my direction to the letter and spirit, so that the *ruse* was, as the reader will see, entirely successful. As far as I could, of course, I directly superintended the details of my scheme.

Residing in the neighbourhood of Soho was a man of considerable ability, who, as I was informed, and have now good reasons for believing, could talk and write with great ease and facility. What his political principles were I do not know, nor did I then care about any more than he did himself. He was ready to accept the engagement which I offered him. For a price he agreed to become a third candidate for the representation of N——.

My man—the new candidate—and I, after quitting the lodgings of the former, went to an adjacent hostelry, where, having secured a private room, and called for pens, ink, and paper, cigars, and a bottle of wine, we concocted an address to “the free and independent electors” of the borough we were to humbug. This was taken to a printer, who, for a little more than ordinary pay, got it into type, and printed off five hundred copies within three hours.

We next paid a visit to the shop of a well-known clothes-dealer not far off, whose name has a flavour of Hebrew in its orthography, where our candidate got rigged out in admirable style; although at an expense, I think even now, a little extravagant. When thus costumed in the habit of a gentleman, he really looked such; and with the influence of external

prosperity, and, I suppose, the magic of twenty sovereigns in his pocket (such a sum as he had not been in the enjoyment of, I fancy, for a very long while), all the traces of want and dissipation left his countenance. He talked with additional volubility, and became so eloquent, that I really thought it a pity he was not the real instead of the sham aspirant for senatorial dignity.

I plead guilty to a passing idea which then possessed me, and suggested an odious comparison. I thought he would have fitted the character of M.P. much better than our candidate Mr. Jollefat, whose jackal or provider he really was.

I next took our party to a restaurant in Regent Street, where I called for, and paid for, a sumptuous dinner.

Over our wine suggestion and plot developed themselves grandly. I became indebted for many valuable hints to my new chum and his clever friend. We smoked, and chatted, and afterwards strolled in St. James's Park until the time began to arrive for our leaving Town.

One other call had to be made at a trunk-maker's for two or three goodly portmanteaus, which, although expense was not of much importance, I preferred to have second-hand, as I thought shabbiness, or at least a soiled appearance, would look better, as an accessory to the scheme or great trick we had already begun to play out.

I should also tell the reader that I promised "the popular candidate" in embryo a bonus of fifty pounds if he played his part skilfully, and kept good faith; but I gave him no security beyond my word (from which I never departed in my life) for the fulfilment of my part of the contract. Neither of us had then, or thereafter, to regret the manner in which it was executed and paid for.

The portmanteaus were stocked from an outfitter's, a hosier's, a perfumer's, and other tradesmen.

We also purchased a large, heavy, wooden box from a dealer in antiquities. It had huge steel clasps, and a ponderous lock. It looked like a thing designed for the keeping of treasure, and a thing customarily so employed. We filled this box.

We then went to the printer's, where the copies of the placard we had ordered, and of which we had not thought it necessary to see a proof, were all worked off; and it looked, in clear bold type, fascinating to the eye of

each of us, but most charming of all it perhaps seemed to the man who embodied most of its unreality.

It is astonishing how many excellent devices, and how many grand projects and schemes of lofty usefulness, are marred by inattention to detail, or it may be the want of a single but essential ingredient. This was nearly the case on the present occasion. My Great Electioneering Trick had almost failed from an oversight in its initiation. We had, up to this moment, retained no lawyer or attorney,—a most essential feature of such a plot as that we had engaged in. This omission was discovered by me just in time to be filled up. We heard of an attorney—a low sort of fellow, I believe—who lived in the neighbourhood. I hired him, and sent him down with the other two to the borough of N—— that night.

I parted company with my friends at the Euston Station. They proceeded a little more than a hundred miles to the populous town of H—— by railway, and there alighted. From this point the journey was performed in a lumbering post-chaise, as I had desired my party not on any account to arrive at the town of N—— before twelve o'clock at night. I preferred that it should be a little after one in the morning, and I suggested they might as well get up a little sensation on their arrival. This I told them might easily be done, by a pretended anxiety to keep their arrival dark and quiet.

My instructions herein were obeyed, as I afterwards ascertained, with unerring exactness.

There was, at a very short distance on the outside of the town, a toll-bar, always locked at night, and the keeper of which was not renowned for his vigilance or wakefulness. The party found a trifle of real difficulty in gaining admission to the borough. It was some time before the man at the toll-house, rubbing his eyes, opened his little wicket, and came forth to unlock the gate. As he did so, he was startled by the sight of a vehicle with three persons in it, and heavily laden.

The man's sagacity penetrated, as he thought, the whole secret. He winked, and nodded, and grinned significantly. He saw in one of the party another candidate for the franchise of the free and independent electors; and in the other two his agents. His acute vision dived through the keyhole of that box, and there beheld a weight of gold, which he defined, in conversation next day, as "such a sight as he never saw in his life before even at an election." My man kept up the delusion well, by throwing two

half-crowns to the fellow; and each of his companions tossed a handful of small coin at him, as he closed the gate after them.

Away rolled, at a slow pace, the heavily-laden vehicle, the horses throbbing and panting, and the riders chuckling to their hearts' content.

At length the town of N—— was reached. As quietly and mysteriously as possible the vehicle was driven by the strangers, its occupants, up to the hotel of our opponent; and, after ringing the bell, refusing to accept the servants' answer, and insisting upon awakening the host, my man tried to strike a bargain with the hotel-keeper (putting him under confidence) to let his house as the central committee-room of the "independent candidate." Boniface was proof against temptation. He had let his house to Mr. Sallow Twitch, the Whig candidate, and he was "not a-going to break his engagement—not he." He never had done such a thing in his life, and never would. They must go elsewhere, he said; and the interview was closed by the irate landlord sheering off to bed, telling them he didn't want to have no more to do with them.

Next the party went to the hotel where Mr. Jollefat was staying, and in which he held his quarters. A similar interview with Mr. Bung, at that establishment, ended not unlike the conference with Mr. Boniface.

At last a solitary medieval-looking policeman was observed torpidly creeping along the Market-place, and for a consideration he undertook, in the first place, to find the best quarters now available, and in the second to keep the arrival of his patrons as quiet and as solemn as death.

It was unfortunate, he said, that they had come into the town so late, because the other parties had been in the field so long, and had got the regular start of them. However, there was a tidyish sort of a place, which had always been the head-quarters of a third candidate; and, for his own part, he did not think it much mattered, if the candidate was "a regular gentleman," which house he put up at. This shrewd policeman thought it would be all the same, if the candidate had about him friends who knew their business.

The policeman's advice was taken in the selection of a central committee-room,—the Green Swan with Two Tails, which, let me confess and regret, was a comparatively humble place for head-quarters. I should have very much preferred the first hotel in the town; and if that had been possible, I would have yielded up the place in which Mr. Jollefat was

enthroned. However, as the sequel will show, this matter did not influence the success of the *coup*.

Without further loss of time—that is to say, early next morning—my man went to work. The first person to whom, as the agent of the independent candidate, he paid his addresses, was not the mayor of the town, nor the town-clerk, nor an alderman, nor a town-councillor, but he was—a bill-sticker.

There consequently appeared upon the walls an address, which ran as follows:

*“To the Free and Independent Electors of the
Borough of N——.*

“GENTLEMEN,—Your borough has too often been the arena of faction fights. You have been regarded as the supporters of Whig and Tory. Your grand historical traditions and your eminent public virtues have not been respected, cared for, understood, or apparently known to your representatives in Parliament, or even those who have hitherto aspired to the most honourable distinction of representing you in the Legislature.

“Gentlemen, although a stranger among you, having resided many years abroad, and having but lately returned to my native country; having studied the political institutions of Europe and America, and seen them in practical operation; and having, moreover, read the history of your ancient town, which forms so many brilliant pages in the grand history of our native country; and having had the good fortune to inherit an ample estate,—I have resolved to place my services at the disposal of my country, with a special desire to serve the interests of a free and enlightened constituency, such as that of N——.

“Gentlemen, under these circumstances I offer myself as a candidate at the forthcoming election for the representation of your borough; and although I shall immediately do myself the honour of waiting upon you individually, and canvassing each of you at his own fireside, I think it right to lay before you concisely a statement of my political principles.

“Gentlemen, I am in favour of the broadest and most comprehensive scheme of reform which political philosophy can devise. If you should do me the honour to return me to Parliament (as I feel confident you will), I shall, by my speeches and votes, support every measure which tends to

increase the happiness of the people, by extending the demand for labour, increasing the wages of industry, at the same time adding to the profits of capital, and promoting the comfort of every man, woman, and child throughout her Majesty's wide dominions.

"Gentlemen, I am in favour of other measures of political and social amelioration which benefit all, but injure none, in their comprehensiveness and beneficence, that I find it impossible to properly explain, within the limit of a printed address, but upon which I shall have many opportunities to offer explanations when I meet you face to face in public meeting, in your own houses, and upon the hustings on the day of nomination.

"Gentlemen,
I have the honour to subscribe myself,
Your very faithful and obedient servant,
HORATIO MOUNT-STEPHEN FIPPS."

The bill-sticker lost no time in placarding the walls of the town; but his functions had been largely anticipated by the disclosures of the toll-bar keeper, Boniface, his boots, Bung, and his ostler.

The town was set in a commotion. The Green Swan with Two Tails was crowded in the bar-parlour, in front of the bar, and in every public room it had. Mr. Smith (I mean Mr. Horatio Mount-Stephen Fipps) received a dozen offers of professional assistance, two or three score of requests for the honour of making his acquaintance, letters innumerable for his autograph, with other delicate and indelicate overtures of good-will and friendship,—all within a few hours. Mr. Fipps, after he had returned to London, and been retransformed into "Smith," told me it was the "jolliest spree" he had ever been engaged in during his life; and my man told me that the fictitious candidate played his part with the skill of a genius.

In the course of the morning a crowd assembled in front of the Swan with Two Tails, and loud huzzas were heard in honour of "the independent" and now "popular candidate." A speculative printer had, without orders, either in the excess of political zeal, or in reliance upon a careless auditing of accounts, got another placard stuck upon the walls, which read thus:

"FIPPS FOR EVER!!!"

The mob became towards afternoon a little impatient and uproarious, and the candidate had to present himself on the balcony of the hotel, and

harangue his admirers. I regret to say, no short-hand writer being present, I cannot give the reader a report of this speech, which I am sorry for, because I have been told it was one of the grandest orations of the kind ever uttered by a pretended or real candidate. However, let that pass.

Towards evening a deputation asked permission to wait upon Horatio Mount-Stephen Fipps, Esq., to express their admiration of the principles so clearly and exactly enunciated in his address, and so beautifully illustrated and enforced in his most eloquent speech. Their request was granted with the utmost cordiality by that great man, and he supplicated them to do him the honour of dining with him.

The hospitality of the Green Swan with Two Tails was, I am told, worthy of a more pretentious establishment; and ample justice was done, as the penny-a-liners say, to the culinary skill of the hostess. Mine host's vintages were also duly appreciated, or at least I judge so by the items of account which I afterwards saw under the date of this entertainment. It is true that the good things bore familiar names; but that circumstance may rather be ascribed to the English character of the candidate and his admirers, than to the limited capacity or means of the landlord and his better half. Sherry and port and champagne—champagne and port and sherry—seemed to have been mingled in profusion with cigars that, in the aggregate, weighed a few score pounds, and were (I take it from the price they cost me or my principal) the finest that Havannah could produce.

At this improvised banquet speeches were of course delivered, toasts were drunk, and songs were sang, until the *finale*,—a medley of variations from “Rule Britannia,” “God Save the Queen,” and “We won't go Home till Morning,”—which last chorus embodied a resolution that the patriotic admirers of Fipps did faithfully perform.

Out of this party a committee was formed by the sober men; for, let it be observed, Smith—that is, I mean Fipps—kept faith by keeping sober with a constant eye to results; and all now was expected to go on merrily as a marriage-bell.

The next day was spent very much as the previous one had been, except that the third and popular candidate, as a matter of form, called upon a number of respectable inhabitants, and went through the *rôle* of a candidate's duties, such as shaking hands with one or two loungers in front of the hotel clad in soiled smock-frocks, kissing a few slobbering babies,

talking pleasantly to the voters' wives, and expounding principles to the voters themselves.

On this day the attorney of Mr. Twitch sent a note by hand to the attorney of Mr. Jollefat, proposing that these ravens should meet in confidence, and without prejudice, to discuss a matter of importance to both the candidates. Mr. Jollefat's legal adviser replied by assenting to the conference. They met. Fipps's candidature was the theme of discussion. Twitch's attorney said he had telegraphed to Brookes's, and the Reform, and to Mr. Coppock, but he could learn nothing about Fipps. He was not known to the party, and they thought he must be some adventurer, whose wealth, if it had any other than an imaginary existence at all, must be grossly exaggerated. Mr. Jollefat's attorney said that he had in like manner inquired at the Carlton, but could learn nothing about their opponent. The Liberal was discouraged; the Conservative did not take the matter to heart. They were agreed that nothing could be done to spoil the new candidate.

My man went to a local printer and got some forms printed with counterfoils, much after the manner of tradesmen's "delivery note-books" or bankers' cheques, the use of which will immediately be seen. He also contrived to make the acquaintance of a few leaders of the people,—what the French would call "men of action,"—not spouters or loudly boasting partisans.

On the evening of the second day after Mr. Fipps's arrival at N——, my man had a consultation with about half a dozen of the principal of these men, who may be called the heads of gangs of voters; persons who regarded the franchise as a property to be sold in the market, like any other commodity; except that this article called a vote must be purchased by a candidate in retail quantities, in order that he might sell them, as a constituency, in a lump or by wholesale. The result was a compact or understanding, which I have no doubt would have been faithfully kept by the vendors. These men always keep faith with their purchaser, if no other candidate, supposed to have still a heavier weight of metal with which to solve their honesty, should arrive on any subsequent night between the date of the arrangement with them and the day of polling.

This part of the business requires to be explained with much precision, or the reader may not perhaps observe the central point or pivot of the Great Electioneering Trick which it is my intention now to explain.

My man had occasion to address one of the vendors of the franchise to the following effect. He explained that the law against bribery was rather severe; and Horatio Mount-Stephen Fipps, Esq., was a gentleman of extremely delicate sensibilities, whose honourable feelings would recoil from venality; and that if there were no law on the Statute-book or among the precedents for its punishment (which indeed there was), all must be free and above board,—or at least it must be made to appear so to the eyes, not only of policemen, or judges, or Parliamentary Commissioners, or other judicial officers, but also to that most upright, righteous, and wealthy man, the “popular candidate” himself. The agent went on to say that he came down to the town with the gentleman whom he had the honour to serve. He could not have supposed that the state of the borough would have entailed upon him the necessity of doing things which he saw were essential to the success of Mr. Fipps, but yet, being in it, he was determined to go on and secure a triumph for the distinguished and generous-hearted man he represented at that interview. As for money, that did not matter. Mr. Fipps was rich enough in all conscience. Any thing they might have to pay would not hurt him—not a bit of it; but his character must be above reproach at the clubs and in his own eyes. One way out of the difficulty, my man went on to observe, had occurred to him, and he had already resolved to pursue that course, or to withdraw his candidate at once before any money worth mentioning had been spent; because although it was true Mr. Fipps had enough, and more than enough, for every necessity, he did not like squandering it, and losing the object of his ambition also. At this suggestion of the removal of the candidate and his cash-box, the leaders of the people looked somewhat blank or alarmed. They said a man like Mr. Fipps was sure to win if he went the right way about it, and they thought it a pity he should run away after the handsome manner in which he had been treated by all classes.

Some further parleying took place, when it was agreed that late at night the several leaders of the people should, one by one, take my man round to the residences of the free and independent electors who were in reality to be bribed, and that that operation should be colourably done in the way arranged.

A contract was made with each elector that he should fill the post of flag-bearer, messenger, check-clerk, polling-clerk, or something or other, and should receive 10*l.* at the close of the election for so doing. He was

guaranteed payment of that money to his perfect satisfaction, by a printed form of engagement, or an agreement in law, on a slip of paper, signed by my man with his bold clear autograph, and on the stump counterfoil of which the lured voter wrote his name or made his mark (+). Just by way of a present balm to each hired elector, the sum of 5s. was given him when his engagement was effected.

Next day the nomination took place. Mr. Twitch, the Whig candidate, was received with derisive shouts, and a greeting of missiles. Mr. Jollefat fared no better, and in his heart of hearts cursed the borough, with that ambition or folly which had induced him to enter the lists as a candidate; and he stopped at the conclusion that of all the vanities which have marked humanity since the days of Solomon, nothing equalled that of desiring to be the representative in Parliament of such a free and independent constituency as the borough of N——.

Mr. Horatio Mount-Stephen Fipps was the hero of the day. If any thing checked the outpouring of his eloquent tongue, it was the rapid appreciation of his audience, which overtook the completion of his sentences. They cheered, and shouted, and hurrahed, and made every conceivable, and, to the reader, many unconceivable demonstrations of affection for his person, and of admiration for his principles. But for these exuberant manifestations of attachment and devotion, I certainly might give the reader a splendid specimen of what a speech on the hustings may be. The hurrahs and the huzzas broke up Mr. Fipps's arguments, and the coruscations of his eloquence into fragments. Let it suffice to say, it was a brilliant and a grand speech.

On the show of hands being called for, a few were held up for Mr. Twitch, a few more for Mr. Jollefat, and a whole forest of uplifted palms testified their desire to have Horatio Mount-Stephen Fipps as the member for N——. The returning officer, of course, declared the choice of the electors, by an open vote, to have fallen upon that honourable gentleman, and a poll was demanded by each of his antagonists.

The most important thing to be now effected was an escape from the town. This was not in reality a very easy thing, although to the reader nothing may perhaps appear more easy of accomplishment. By this time every body in the place knew the three conspirators, and neither the "candidate," nor his two immediate associates, were often left alone during

five consecutive minutes. To quit the place by either of the ordinary roads, in the ordinary way, would have been likely to excite suspicion. To have moved off singly, but simultaneously, by three different roads, would have excited less suspicion perhaps, but would have been more damnatory if discovered. To move off other than simultaneously would have been to peril, perhaps, the lives, and certainly to have perilled the chastisement, of one or two who might remain after the flight of one had been ascertained.

Detection was, moreover, a thing likely, under any circumstances, to follow rapidly on the retreat. My man had noticed the presence of at least half a dozen strangers in the camp of the enemy. These strangers had a knowing look, and wore a metropolitan aspect. He suspected them of being spies upon us. Mr. Fipps's antecedents might, for any thing we positively knew to the contrary, have been ascertained, and become known to the Liberal candidate, whose game he was trying to spoil, although that gentleman and his friend might not deem it expedient (if they could not exactly prove the connexion between the party of Fipps and that of Mr. Jollefat) to explode the fiction of the former's candidature. However, get away they must, and that before the polling of to-morrow, or they would not get away until too late.

It was part of my design that the scheme should explode, and that the match should be applied at this exact point of the scheme.

We had arranged to keep the poll open for Fipps, notwithstanding his flight. No official notice of the abandonment of his candidature was therefore served upon the returning officer.

In fact, although Fipps ran away, Fipps must still be a candidate. Our head lawyer thought that necessary, and also thought it wise to poll one man at least for the runaway.

After deliberation, it was arranged between the intended fugitives that morning should be chosen for their flight, and that they should fly in company. After the nomination, high revelry had been kept at the Green Swan with Two Tails. Every section of the community of N—— had its representation there: the lower orders being provided for in rooms, and with refreshments suited to their tastes, while the topsawyers and municipal notabilities who had attached themselves to the popular and winning cause of Fipps, were being entertained in a better room of the house. Fipps himself, and my man and the attorney, being in the company of the latter,

carefully guarded against any thing like excess. They were the only prudent people in the lot. This revelry lasted through the night, and until morning. Mine host himself, knocked up by fatigue and potations, retired to an uneasy couch. The hostess had snatched a little rest, and resumed charge of the house while her lord slumbered. As for Mr. Fipps, my man, and the attorney, they contrived to disentangle themselves from their supporters about three in the morning, under strong protestations of anxiety for the welfare of those gentlemen, who were urged, for appearance' sake and their own health's sake, to retire home and get a few winks of sleep, and come refreshed in the morning to the poll. By this means the multitude surrounding the candidate, except his two confidants, were got rid of. So far good.

About six in the morning, Fipps,—oppressed with an imaginary headache and sense of fatigue; my man, in like condition; and the attorney, in a similar state,—called for soda-water with a dash of brandy, and began, in the presence of the hostess, to bewail their unfitness to go through the labours of the approaching struggle. My man suggested that it might be as well to take a stroll, if they could get out quietly and not have a rabble at their heels. They asked if that were possible. The landlady consented to let them out by a back-door across a meadow which formed part of her lord's tenancy, where they could strike off into some by-lanes, and get what they so urgently needed—"a breath of fresh air." This suited admirably. My man had already taken soundings of the roads, and knew that by this means the party could walk or run off a distance of only five miles, and meet an up-train to London at the —— Station at eight o'clock a.m.

Not a soul was astir on the outskirts of the town, save here and there a rustic labourer walking to his toil or engaged thereon—rude, unlettered men, without political thought or character, who took no interest in the great struggle at the borough of N——, and who cared to do no more than return the salutation of "Good morning" to the gentlemen wayfarers.

The absence of Mr. Fipps and his agent and attorney was soon discovered, and it was at once suspected to have a sinister object. This notion spread like wildfire throughout the whole borough, and a scene of excitement ensued which literally beggars description; nothing has ever equalled it in electioneering development. The Green Swan at one time ran great risk of utter demolition. A few innocent people, suspected of participation in the fraud, were punished by the mob, who must have a

victim or two, and who wreaked their vengeance upon suspects in the absence of those real delinquents that by this time were safely proceeding southwards to the great metropolis in the train which they had met.

The windows of Mr. Fipps's hotel were broken. The remonstrances of the landlord were not believed by a large portion of the crowd, although, for that worthy's reputation, it may be stated a large contingent of the rioters did put faith in his asseverations.

The committee-room was broken into and ransacked, and no little glee was excited when the strong-box was discovered. A fitful gleam of savage hope took possession of the discoverers. They thought for a moment they had grasped a treasure, and the prospect of a grand loot cheered their hearts. This discovery also soon got communicated to the crowd outside. There was a demand that the box should be brought out into the Market-place, and its contents distributed fairly amongst them. With much difficulty the ponderous chest was carried down-stairs and into the street. For a while the lock withstood all efforts to break it open; but at length a smith came, with tools that would have almost battered down the gate of a fortress. With this effective aid the hasp was fractured or detached, and the lid of the mysterious box was lifted. To their surprise and astonishment, carefully embedded in sawdust were found—not the sovereigns that were to have compensated the various messengers, flag-bearers, check-clerks, poll-clerks, &c., &c., &c.; but—do not start, gentle reader, in amazement—ten solid lumps of fine Scotch granite, which had been diverted from their legitimate purpose (that of forming part of the roadway in Oxford Street) to the unhallowed desecration of the free and independent electors of N——. Shouts of derision, and anathemas both profound and deep, were uttered; imprecations of the direst were showered on the whilom popular candidate; and it may be accepted as a fact that, if Mr. Fipps, or his attorney, or my man, had fallen into the hands of that enraged crowd, his legal representatives would have been entitled to make a claim on the offices in which he had insured his life.

The retreat of Fipps and the discovery were themes of merriment; but perhaps in no part of the borough was the joke or trick so much relished as in the committee-room of Mr. Jollefat, our real candidate.

It should be also stated, for the reader's information—and he is particularly requested to notice—that the general postal delivery from

London conveyed to each of the central committee-rooms of Mr. Fipps's rivals an oblong packet, addressed to each of the remaining candidates by name, and to their agents, and to all others whom it might concern, giving them formal notice that the men whose names were included in lists which were enclosed in the communication (being free and independent electors of N——) had disqualified themselves from voting at the present election, by having accepted offices of emolument, under binding legal contracts with one of the candidates.

In consequence of this notice the poor wretches who had entered into the engagements mentioned with my man were unable to sell their votes and consciences to Mr. Twitch, if he had been inclined to buy them; because, if he had bought up the tainted electors, he would thereby have insured a petition against his return, with the certainty that his rival would, by a scrutiny, unseat him. The returning officer received a similar letter and a similar list.

The poll being kept open under these circumstances, the general result may be pretty well ascertained by the reader's imagination; but, for his particular information, I may state that the numbers announced by the returning officer were:

Jollefat	209
Twitch	64
Fipps	1

The consequence was, that the first-named gentleman was duly returned, and took his seat, and was for a period of several years the unchallenged representative of the borough of N——. It is fair to say that he was returned, at a comparatively small cost, by a large majority of the honest suffrages of the decent men of the borough. My man, I believe, had succeeded in disqualifying for once all the corruption of that notorious place.

The landlord of the Green Swan was of course very glum over his misfortunes. He managed to get his broken glass and other damage repaired at the expense of the Hundred; but he had given up all chance of recovering his debt from Mr. Fipps, when he received a letter from a well-known political solicitor of Westminster, stating it was not the desire of Mr. Fipps that any person's honest claim should go unsatisfied; and that if mine host

would make out his account and forward it to him, it should be examined, and if found correct be settled. The account was duly rendered, and on being scrutinised or audited was deemed excessive. Two-thirds of the total amount—that is to say, 100*l.*—was remitted him; and, although 50*l.* was thus knocked off, I have solid reason for believing he did not fare ill by the candidature of Horatio Mount-Stephen Fipps.

One little circumstance none of us had anticipated now arose, to our embarrassment. The payment of that bill of the landlord of the Green Swan told the story of Fipps's purse with approximate accuracy. Mr. Jollefat, the successful candidate, was now suspected by many people of being near the bottom of my Great Trick. To get at him, however, it was necessary to track and attack Fipps, which, I am sorry to say, the disappointed free and independent electors who could not vote at the late election succeeded in doing. How they discovered him is to me a secret at this day; but they certainly did somehow find him out, and they assaulted him by a battery of writs issued out of her Majesty's Court of Common Pleas, at Westminster. A counsel learned in the law advised that we had a good defence to these actions, on the ground that the agreements for service were contracts to pay money either to induce men to vote—which was bribery—or not to vote, which rendered the engagements null and void. About the first point I believe there could be no doubt; around the second I believe there did exist much room for speculation and legal ingenuity. Mr. Jollefat, however, wished to avoid discredit with his constituents; so it was thought expedient to get rid of the difficulty by another mode. Fipps was a man of cosmopolitan tastes, and he had not the phrenological organs of locality and adhesiveness largely developed. It mattered not much to him on which side of the Atlantic or of the Pacific he dwelt. Somebody on his behalf, an attorney, intimated to the solicitor for Mr. Jollefat that it would be cheaper to "square" Fipps than to submit to the game process all the voters and their actions. One hundred pounds was the sum named as one that would take the eloquent and popular candidate beyond the jurisdiction of her Majesty's judges and officers. The amount was provided, and he quietly set sail, or rather took steam, for the United States of America, where, I am told, an ample scope and opportunity for the exercise of the peculiar abilities of that popular candidate has always been found in the service of the various parties who divide the spoils of the Model Republic.

MISTAKEN IDENTITY

AN eminently respectable tradesman was seated in his cosy little parlour, or counting-house, at the back of his shop, within a mile of the Mansion House in the City of London, one summer afternoon in the year 1861. His wife was the only other person present on this occasion. It was an unusual circumstance for this lady to be there, as Mr. Delmar also occupied, for purposes of residence, a neat little house in an eastern suburb of the metropolis. He was, moreover, the father of a family. He had four sons and three daughters, whose ages varied between seven and twenty-two. He was churchwarden of the parish in which he carried on business. He was regarded as the very pattern of domestic virtue, and a model of rectitude in business. Few men, indeed, in the whole world enjoyed a better reputation than Mr. Delmar. Nobody had ever breathed a word against his character, and nobody had a right to do so. His fireside was as cheerful as moderate prosperity, a good wife, and dutiful children could render it.

These particulars about Mr. Delmar, his family, his connexions, his circumstances, and his reputation, are necessary to enable the reader to appreciate the incidents I have to describe.

Mrs. Delmar had come to town, on the present occasion, for the legitimate purpose of shopping. She was giving her prudent spouse an estimate of the call she needed—or considered that she needed—to make upon his purse for a variety of domestic necessities, from little child's-shoes to her own and her eldest daughter's bonnets. Mr. Delmar was checking off the anticipated outlay, or, as I may put it, revising the domestic estimates, with a prudence quite commendable and, I also think, consistent with a good husband and father's affection for those dependent on him.

An assistant of Mr. Delmar's entered the parlour, or counting-house, and observed, "A gentleman wishes to see you, sir, in the shop."

"Show him in, Williams."

"He says he wishes to see you privately, sir."

"Privately!" exclaimed Mr. Delmar, in tones of surprise; "show him in;" and the speaker glanced at his better half as he finished the sentence.

Williams left the room and informed the gentleman, who was standing in the shop, that his master wished him to walk in.

“You told me,” observed the unknown visitor to the shopman, “that Mrs. Delmar was with her husband?”

“Yes, sir,” was the reply.

“I would rather Mr. Delmar should step out to me.”

“He will not do it, sir. He says you are to go in to him.”

“Well, I will see him.”

The unknown visitor advanced to the apartment in which the worthy and happy couple were closeted; he cautiously, not to say nervously, opened the door, and seemed to halt in the execution of his purpose.

“I would very much rather see you alone, sir, for a moment.”

“You cannot see me alone, sir; this lady is my wife.”

“My business is private.”

“I have no private business or secrets unknown to my wife, sir,” exclaimed Mr. Delmar, growing a little irritated.

“Well, sir, you will oblige me if you will step out a moment.”

“I tell you, sir, I have no secrets from my wife. What is your business?”

“You really, sir——”

“What do you mean, sir? I insist upon your telling me immediately what brings you here. And if you do not, I will kick you into the street.”

Mr. Delmar uttered these words in a tone which alarmed his visitor, who, perhaps, apprehended the fulfilment of the threat which his delicacy had elicited; but, summoning his courage, he advanced towards the desk and took from his pocket a paper, which he handed in silence to the astonished and indignant husband.

It was a summons to show cause why he should not maintain a female child which one Selina Wilkins, chambermaid at the Griffin’s Head Hotel (an excellent hostelry, well known to commercial travellers on the midland road who call at the town of ——), was the mother of.

Mr. Delmar was a man who had seen much of the world, although he had, happily for himself, not known many of its vicissitudes, or its wickednesses and perils. His knowledge and experience were, however, at fault on the present occasion. During two or three minutes of perfect

silence, in which the three persons glanced at one another alternately, Mr. Delmar was a prey to conflicting emotions and cross purposes. At first he was disposed, without warning, to enforce the threat he had not long ago made, and punish the agent of the infamous practical joke now being practised at his expense, as he conceived it, by inflicting upon him an ignominious and severe chastisement. Next, he trembled before a vague apprehension that some foul conspiracy might have been devised for the ruin of his own and his family's domestic peace. The inquiry passed through his mind. Had he acted prudently in compelling the disguised officer to serve the process in the presence of Mrs. Delmar? Should he treat the messenger who brought this scandalous official libel with civility? Should he take him into confidence? What, indeed, should he do?

Within the brief space of three minutes he had many times doubted whether, after all, it was a prudent thing for a man of business, and a man of the world, to let his wife know all his secrets. At last he resolved to pursue in this emergency that frankness and uprightness towards his wife, which had been the source of so much comfort to them both in those various emergencies which even the serene life of a prosperous London tradesman occasionally encounters.

The wife had looked on the previous scene in amazement and fear. The changing hues of her husband's countenance, the twitching of the muscles in his face, the spasmodic movement of his limbs, under suppressed rage, disgust, and dread, told her that the document she had seen handed to him was the premonitory note of something very dreadful. If she had not so well and thoroughly known the rectitude and honourableness of the father of her children, she might have jumped to the conclusion, in her bewilderment, that he had committed forgery, or murdered some one, and that the summons was a warrant for his apprehension on a charge that might have consigned him to Portland or led him to the gallows.

The officer was the first to break silence.

"It is a painful duty, sir."

"Never mind. But what does this mean?" Mr. Delmar replied, rapidly passing from affected indifference to painful curiosity.

"You see, sir, what it is," said the officer.

Had Mr. Delmar's leg and boot been slighter than they were, a smile might have passed from the inner to the outer man of the speaker.

“I know, sir, what it is,” retorted Mr. Delmar; and summoning all his moral resolution, and lifting himself to a height of moral dignity, which perhaps he had never occupied in any one moment of his wedded life, from the day when in his young and pure manhood he had taken that woman, every way worthy, to be his partner and help-meet to the altar, he added:

“I am very glad indeed, sir, for one thing only,—that I did not consent to see you, or accept at your hand this infamous paper, unknown to my wife.”

Still Mrs. Delmar was silent, bewildered, and intensely anxious.

“I have done my duty,” said the officer, in an apologetic tone, glancing at the door, as if desirous of withdrawing.

“You may leave,” said Mr. Delmar.

I draw a veil over the scene which followed. It is enough, at all events, the reader should know that Mr. Delmar read the document to his wife, explained its exact purport, and craved her assistance in penetrating the mystery. He had no occasion to ask her whether she believed him guilty of the offence attributed to him. She volunteered an assurance of her belief in its untruthfulness. She felt and declared that it was the result of some awful mistake of personal identity, or some most foul conspiracy.

It would be incorrect to say that the interchange of confidence did not leave a painful sense of the possible consequences of this mysterious incident; yet it may be affirmed that the event did not estrange a particle of that woman’s love, nor for a moment excite in her breast one flimsy or evanescent doubt of the fidelity of her husband.

The unfortunate man who was thus called upon to defend himself against a charge of which he was no more guilty than my reader is, went to his lawyer, who said he could not make it out. This gentleman, Mr. Drawly, was at a loss to determine whether his client was fool enough to be deceiving him, or whether he was the victim of what Mrs. Delmar had called a foul conspiracy, or whether an artfully planned scheme of extortion had been practised against him.

I was now consulted. I should have liked to have been intrusted with full personal discretion, so that I might have investigated the mystery in my own way. I think I might have more easily cleared it up, if I had not been embarrassed by the definiteness of my instructions. I was, however, told to inquire, in the first place, whether Selina Wilkins had employed any solicitor, and if so, to put myself in communication with him. I was told to

use my best skill in tracing what I could; at the same time, if the professional man on the other side were a man of reputation, to deal frankly with him. I was to explain the position in life and the character of the defendant, and urge the improbability of his having committed any such offence against domestic propriety as that he was charged with; and I was told to endeavour to get the affair cleared up or settled without scandal or notoriety.

I did as I was requested. My habit, when my instructions from solicitors were definite, was to follow them implicitly. This commonly saved me much trouble, and when the result was not unsatisfactory I liked that course all the better; but sometimes the plan a little tantalised and vexed me, because I conceived that through it I missed my aim, and did not obtain the credit by success I might otherwise have done.

In this case I ascertained that the young woman had, on the recommendation of her former master and mistress, employed a solicitor, who stood very high among the lawyers in that part of the country where he dwelt. He received me courteously, and expressed his willingness to tell me all about the case. He, however, insisted that the defendant must be a wily rascal, a consummate hypocrite, a mean-spirited fellow, &c. &c. He told me there could not be the shadow or shade of a doubt about the case; and he entered into the matter in the spirit of a partisan imbued with the righteousness of the side he was engaged to fight on.

As to the identity of the person, he thought any defence on that head must break down; for he had obtained, through his agents in London, a description of Mr. Delmar, which corresponded exactly to the description given him by his "unfortunate client." It is true that the poor girl had not, he said, seen the fellow since her misfortune, because she had not the money to pay visits to London; nor, indeed, was her strength sufficient to enable her to make that journey and back without peril to her life. Grief and shame and bitter mortification had held her tongue until the last possible moment; and it was only when material evidence of her wrong-doing became palpable to her mistress, that she admitted the injury which had been done her. "Why, sir," observed the provincial lawyer, "even after the poor girl's condition had been ascertained, she refused to tell who was the author of her misery, and clung to the foolish belief that, as he was a perfect gentleman, he would one day redeem his promise by making her his wife. The way it was found out, sir, was this. She went home to be confined. Her mother one night

searched her little portmonnaie, and there found the blackguard's card. So her friends ascertained his name and address."

When I had obtained these particulars from Selina Wilkins's attorney, it was almost post-time; so I wrote an account of my interview with the lawyer as rapidly as I could, and sent it to London to the solicitor from whom I had received my instructions.

I had an answer by electric telegraph, desiring me to pursue my inquiries, as there could be no doubt the case was one of conspiracy or fraud.

Some of the further particulars of this mysterious case had perhaps better be stated in the brief narrative I can furnish of the inquiry before the magistrates.

On the day appointed for the hearing Mr. Delmar came down from London, attended by his confidential and most respectable solicitor, and by a gentleman of the long robe whose name had figured in a thousand Old-Bailey narratives. The young woman was examined. Amid tears and sobs and threatened hysterics, she related her story. It was to the effect that a gentleman, or "commercial," she styled him, who had visited the town of —, and stayed five or six times at the hotel where she had been in service, had paid his addresses to her with great ardour, and, under cover of a promise of marriage, effected her ruin. She had no hesitation in declaring that the defendant was the man. The card on which was printed his name and address was produced in Court. A severe cross-examination by the defendant's counsel did nothing to shake these allegations. Although the gentleman had not been many times to the hotel in question, he appeared quite familiar with the town, and she had seen him enter a rival hostelry before she knew him as one of her master's guests or customers. The defendant was sworn. He denied that he had ever seen the young woman before, or that he had been in the town for several years, or that he had ever in his life stayed at the hotel where she had been employed.

The complainant's attorney argued that the case against the defendant was conclusive. It did not, he said, admit of a shadow of doubt. He heaped vituperative aspersions upon the head of the defendant, for adding insult to injury by his disreputable defence. The defendant's counsel, on the other hand, contended that the evidence of the complainant was incomplete; that it was in several respects highly improbable; and that it should not

counterbalance the testimony of the most respectable defendant in his own behalf. The learned gentleman called upon the magistrates to dismiss the case, and intimated that, if the decision were against his client, he should appeal. The magistrates agreed with the complainant's attorney; expressed an opinion that she was a much ill-used young woman; and said a few things uncomplimentary of the defendant, upon whom they expressed their willingness to do what, by the way, they could not help doing, I believe—that is, give him an opportunity of appealing against their decision.

It will occur to the reader that there were several means of rebutting some of the special facts upon which the complainant's case must have rested, as it did rest, although I omit them for the sake of brevity, as they are not necessary to the explanation I have to give of one leading fact.

The reader will wonder how that card of the defendant's fell into the hands of the complainant. I will say at once, in order to clear away some mystery, that the young woman herself was no doubt honestly mistaken, although somewhat rash in the evidence she gave as to the identity of her undoer.

But, unless some confederate had given her that card, how could she have obtained it? It must have been palmed off upon her by some unmitigated villain, who was content to divert inquiry from his own track into that of an innocent and right-minded man's household, to the peril of the destruction of his own and his family's happiness.

To track this miscreant was my special mission. I had not much time to effect a discovery before the appeal must be heard and decided.

Mr. Delmar could not help me. He had given his card, at various times, to various people; and within a few years a few hundred persons might have been the conscious or unconscious media, direct or remote, of conveying the fatal pasteboard from his hand to that of the complainant.

After I had been a week engaged in the effort to track the double culprit—having, let me frankly say, no clue by which I hoped to discover him—I was getting weary of the task, when a ray of light dawned through the imperfect memory of Mr. Delmar. He recollected that, about ten months before the complaint was laid against him at ———, he had been obliged to visit Norwich on urgent business. A man who owed him a considerable sum of money was then in embarrassment, and had called a meeting of his creditors, at which Mr. Delmar was invited to attend. After this business had

been completed, he intended returning to town by a late train, but allowed himself to be detained in conversation with his fellow-sufferers until it became necessary to abandon that intention. He accordingly put up for the night at the Saracen's Head Hotel, and sought to while away the hours which intervened before bed-time by a social pipe and glass in the commercial room. Here he met, as a stranger of unpretentious manner always does, with a cordial greeting and good-fellowship. One man, however, Mr. Delmar became very chatty and familiar with. This man, who told him his business—that is to say, what “line” he was in—in the course of conversation took out his card-case and was about to hand Mr. Delmar his card, when unfortunately, as he said, he found that he was out of cards, but he told him his address. Mr. Delmar also took out his card-case, and, very unfortunately indeed, as the sequel shows, he gave the commercial his printed name and address.

I was not long in drawing the inference—nor would any person, I apprehend, be—that this commercial was the villain of my story.

With a photograph of Mr. Delmar in my pocket, I speedily took my ticket for Norwich, and had not much doubt about overtaking the rascal.

Would the reader like to know how I got hold of the fellow? It will appear a very simple and easy process when explained, and I don't take much credit for it. Give a shrewd man a clue, and I warrant you, if he have time and opportunity, he will follow it to the end.

Well, then, the way I pursued the clue to its extremity was this. I concluded at once in my own mind that this man's “proclivities” had been manifested wherever he went, and that at more than one of the hotels and commercial inns on his road he would have left a clear recollection of his name and line on the retina of a pretty chambermaid.

I was right. After making myself agreeable by innocent devices with the chambermaids at the Saracen's Head Hotel, at Norwich, I ventured to let one of them see the picture of the man I wanted. I saw at a glance that no tender regard for him was felt by this female observer. I noticed something like pique, or it might be disgust for him. This was enough for me. I frankly told the young woman that I wanted to track and punish him for a mean and vile crime. I saw that, although chambermaid at an inn, she had a woman's sense of propriety. However, to make doubly sure of her aid, I appealed to her by another argument, which might be supposed to have some influence

with a young woman who had to live upon small fees and perquisites. I offered her 5*l.* reward if she enabled me to discover him, and in earnest of my sincerity and means of so rewarding her I handed her a sovereign at once. She told me she thought my photograph was a copy of the features of Mr. John Brown, who travelled in the cigar line, who had been at that inn some time ago, and who might be expected again in a week or a fortnight at most, as the time for his visit to Norwich must have almost come round. She said she would show the photograph to the other servants, if I would lend it to her, and as I could easily get another, I did so. The rest of the servants agreed that that portrait was not exactly like Mr. John Brown, but it was something like him too. "Very like him," one said. Next morning's delivery brought to the hotel, among other letters for expected people (which letters were placed in a rack in the commercial room), two for Mr. John Brown of London. The next day Mr. John Brown of London arrived, and I was struck by the resemblance of the man as he opened the door of the commercial room, in which I was then sitting, a little anxiously watching for his arrival. It is needless to take the reader through the subsequent steps of my investigation. He will see that I had almost bagged my game. It is enough to say that a few inquiries upon the subject elicited the fact that a regular traveller (on the road in which the town of —— and the Griffin's Head Hotel were situated) being suddenly taken ill, and many accounts being due to the house he travelled for on that line, Mr. John Brown was ordered to do the midland journey for him a few times. It was on one of these journeys that he found his evil opportunity for seducing the domestic of the inn, and playing off upon her the mean trick which led to the summons against Mr. Delmar, the reckless testimony the complainant bore as to his identity, and his condemnation by the justices. It is only necessary to add, that the decision against Mr. Delmar was quashed at the Quarter Sessions; and that his character as a man of unblemished honour and domestic virtue was, if possible, strengthened by the ordeal he had to pass through.

AN UNSCRUPULOUS WOMAN .

SOME years ago I was retained to penetrate the mystery of a case in many respects not very unlike the celebrated Road murder; and I was to bring the criminal to justice if possible. It was a case of child murder. The house in which the horrid deed was perpetrated was a cottage, standing in the midst of ample grounds—perhaps ten acres in extent—communicating with a turnpike-road, not much used or frequented, and along which no vehicles passed, except those going to or from the cottage or an adjacent farm-house.

I feel that I am at liberty to indicate the locality of this deed no further than to say, it was in a south of England county.

In order to explain the nature of the case I should, however, remark, that the occupiers of the cottage were, a gentleman who had retired from a business in London, his wife, children, and servants.

The man was cynical, misanthropical, and morbidly disposed to seclusion. He was an eccentric man, and he every where excited prejudices against himself. Even the retirement of this cottage was not so complete as to exclude him wholly from contact with the world, or to shut him in from these prejudices.

He had married—much later in life than is usual with prosperous men—about a year before he took up his abode in the place I have described. His wife had been a poor young woman, although rather beautiful, and, in my opinion, her amiability and goodness compensated to such a man for her lack of intellectual qualifications.

At the time I speak of there were living in this cottage Mr. Robinson, his wife, their two infant children, and two general domestic servants—one of whom, a young woman about twenty-three years of age, they had brought with them from London to this retreat in the south of England.

One morning in June, Mrs. Robinson arose from her bed about half-past six o'clock, and before dressing herself, as was her custom, she crossed the straggling passage and drawing and dining room to a chamber beyond, in which her children and the servant, who performed the duties of nursemaid, were supposed to be sleeping. Two of them were sleeping. She was, however, astonished to observe that one appeared cold to the touch. In

amazement and horror the poor woman discovered that the third—her youngest child—was sleeping in the embrace of death!

The bereaved mother rushed frantically to her husband, who was just awakening from his slumbers, and she roused him to perfect consciousness by her shrieks and wild ejaculations. The husband was soon astir, and every body seemed, as every body ought to have been, affected by intense grief.

The loudest interest and most demonstrative agony was that poured out in sobs, tears, interjections, and apostrophes—all vague, incoherent, indefinite—by the nursemaid.

I will not dwell upon the frightful incident, nor attempt to sketch in detail the lamentations and misery of that household. It may suffice to observe, that wicked rumour said all sorts of uncharitable things. The local gossips were immensely dissatisfied with the proceedings at the inquest;—the acumen of the coroner, or the want thereof; and the sagacity of his jurymen, or its deficiency. Among the dreadful facts asserted by rumour (which, let me observe, is, in nineteen out of twenty cases, altogether wrong in her suspicions and asseverations) in this case, were charges of improper intimacy between the nursemaid and the master, and jealousy on the part of this girl towards her mistress, which had, it was suggested, led up to the perpetration of the crime, through a desire to wreak vengeance out of a mother's agony. One ingenious theorist—a sort of local oracle in the estimation of many, and the possessor of all wisdom in his own—hinted that the mean, selfish, egotistical tradesman, Mr. Robinson, afraid lest his children should encroach too rapidly on his accumulated profits, had hit upon the Turkish expedient for thinning families; using, in this case, the hand of his dishonoured servant to carry out his infamous design.

The surgeon who made a post-mortem examination—a man by no means unskilful in his profession—who declined to say whether the inclination of his belief favoured the theory of an accidental death or of wilful murder, did, however, upon oath, admit that it was possible the child might have been smothered by its nurse in the course of a night quite accidentally.

The coroner's jury were for two hours very much divided in opinion about what verdict they should return. Some were for a verdict of wilful murder against Mr. Robinson. One man would have liked to have brought in a verdict that would have handed over his wife to the tender mercies of Jack Ketch. In justification of the eleven others I may add, that a strong

disposition was felt, amid the solemnity of that investigation, to inflict corporal punishment upon the stupidest fellow. A very strong desire was felt in the breast of more than the majority to return a verdict of wilful murder against the nurse, either with or without yoking her master in that condemnation. The coroner was consulted, and, with an immense amount of circumlocution, which mightily puzzled and confused his sapient aids, that functionary gave it as his opinion that no evidence before the jury was sufficient to justify a verdict of wilful murder against any one. He also ventured to tell the jury that they had better, perhaps, find what he called "an open verdict;" that is to say, one of "wilful murder," without divining the culprit, or one of "found dead," and leave the cause of death an obviously more open question still.

About this time I was consulted by a gentleman, without the intervention of any lawyer, and I was requested to look up the facts in an impartial manner; my directions being to nothing extenuate, nor set down aught in malice.

Who was this gentleman? What his motive? What the latent desire he really had? Who did he wish to clear, and upon whom may he have desired to fix the doom of punishment attaching to the supposed crime, I must be excused from stating.

Just before my visitor called upon me to undertake this matter, I had received instructions to investigate a case of forgery upon a bank, to a large extent. I was to receive, as a reward for my services in this case of forgery, a very liberal fee; and I had also, as I have always had, a distaste for investigations into the mystery of deeds of blood. I have never been the agent through whom a culprit's neck has been encircled by a halter. That is an awful responsibility (for fear of mistake) that I have always shrunk from. Frankly, let me say, I would rather have avoided this engagement altogether, and I did, I think, very gracefully escape from personal action in the matter, by showing my visitor a letter enclosing an instalment of one hundred pounds on account of my fee over the forgery case. He was a man of business, and saw at once that I could not be expected to give up a lucrative and comparatively easy job of that kind for the less remunerative, and in any event less agreeable, inquiry he desired me to prosecute. I, however, took his retainer, upon the understanding and condition that I should act in this case by a deputy, and simply overlook and generally superintend or advise and direct my assistant's labours.

The reader may as well be informed, that through the intervention of a friend of my visitor's, my assistant was provided with lodging in the cottage, and was told to use that sequestered retreat of commercial ease as the central point of his investigations.

I accordingly employed the best man I could get or spare from the other case I had in hand, in which I needed some assistance, and sent that person down to the south of England.

I don't think this man was quite up to his work. Of course I had not formed that opinion when I set him about the job; but a review of what transpired now inclines me to think he made a too palpable show of his suspicions. He made no secret of his quality, or the work he had in hand; but for this he *may* have had adequate reasons.

Mr. and Mrs. Robinson were both convinced that the murder (if murder it was) had not been committed by any one in their household. They were both prepared to spend any amount of money in defence of their suspected servant, if she had been arrested on suspicion. They had come to the conclusion that the sad affair was the result of an accident,—which was not an over-strained hypothesis.

If, however, it was a case of murder, for which there seemed no apparent motive, it must have been committed by somebody obtaining access from the outside to the room in which the child was sleeping; and a cursory examination of the place showed my man it was by no means a difficult thing to obtain both access and egress through a window opening upon a side of the cottage. My man would have arrived at the conclusion very soon that the death of the poor child had been caused by accident, and would have returned to London, but for the not over recondite suspicions generated under his own eye in the cottage itself.

Very curious to know his opinion, very eager in the suggestion of contrary and improbable theories, and very profuse in expressions of regard for Mrs. Robinson and “dear little Willie,” was the nursemaid. She followed my man about with a closeness which seemed to indicate a kind of fascination or terror. At least this is what he told me he thought of her conduct. This alone marked out that girl as the murderess to his mind, and he resolved to linger as long as he could, with a decent show of appearances, in the cottage, thoroughly confident that something would turn

up to fix the crime on her, and perhaps somebody else in connexion with her.

The room assigned to him was a rather capacious and tolerably comfortable one, adjoining that through which the little child passed to heaven, and some distance from the chamber in which its nurse had slept since the "accident." Of course my man was not superstitious, and had no unnatural fears—to which circumstance, perhaps, may be ascribed the fact that he left his dressing-case open and his razors loose during his stay at the cottage.

My man was moreover not afraid of ghosts, which perhaps was fortunate. The window-catch was broken, and the lock of the door was so dilapidated that it would have kept no impudent dog or cat from entering, and it afforded the room no protection against intruding spirits.

One night, about a week after his arrival at the cottage, he had fallen into a sleep,—such a sleep as a man of his profession might be allowed, a sort of permanent half-wakefulness, in which the footfall of an elf would have aroused consciousness without stirring a muscle or raising an eyelid, and from which a salute of artillery could not have disturbed him abruptly enough to produce a quiver or a twitch of skin or muscle,—when that insecure door did open, and the form of a woman, in her night-dress, appeared at his bedside.

Her step excited the wakefulness of my man as he lay with his face to the door. He gently opened his eyes wide enough to enable him to examine and measure the form of the nocturnal visitor, without permitting her to notice the effect of her presence. He saw her glance round the room, which the beams of the moon lighted up sufficiently to exhibit the several articles on the toilet-table and elsewhere. My man thought his interrupter's eyes fell upon the loose razors, and he availed himself of the opportunity afforded by the turning of her face aslant from his bed to disengage his arms somewhat from the bedclothes. He was now prepared to meet an attack upon him by her with his own material weapons.

He had misunderstood the woman's object in visiting his bedchamber that night.

She turned again in the direction of the bed. He now thought it prudent to let her see that she was noticed. He coolly raised himself up on his haunches, and fixed his eyes upon her.

“What do you want here?” he rather sternly inquired; and the words seemed to alarm her.

She replied, in faltering accents and spasmodic sentences, “What? I want to see you. Why do you look at me all day? What do you mean by looking at me as you do? Do you mean to say that I killed Willie? Say any thing against me, and I will ruin you. Promise me you won’t say any thing against me, or I will scream out.”

Then steadily glancing at him, she uttered what no doubt were about the only words she had intended to say, “If you don’t promise me here, as you are sitting in that bed, that you don’t suspect me, that you won’t say any thing against me, that you won’t look at me as you do and try to make people suspect me, I will cry out. I will say that you have taken improper liberties with me; that you have seduced me; that I have been awakened in my sleep by conscience, and am afraid of your other evil designs.”

“Oh, you will, will you? And what then?”

“What then? Why, won’t people say that, after getting me to come here and sleep with you, you denounced me in order to cover your own improper conduct?”

My man admits that he thought this “devilish clever.” If he had not been the intended victim, I believe he was so enamoured of the skill of this young woman that he might have offered to take her into a detective partnership, and set up in business with her in opposition to me. But he saw his danger, and did not like being made the object of an experiment with such very fatal incidents surrounding it.

He seized her wrists with one hand, and with the other thrust her from the bedside, placed his hands in so doing over her lips, seized one of the razors lying on the table, and held it before her eyes to terrify her, saying nothing, however, which had reference to that instrument; then he suddenly dropped it near the spot where they were standing, seized her again, and shouted with all his might.

My man was not to be outwitted.

He charged this young woman with having stolen into his bedroom, knowing it to be unfastened, when she calculated that he would be asleep, and knowing also that he had been imprudent enough during his stay in the house to leave his razors on the toilet-table. He declared that he awoke just as she was in the act of putting the razor to her own throat, intending to

commit suicide in his room, with the intention, it was suggested, of fastening upon him the crime of her murder.

It will only be necessary to further inform the reader, that although no evidence could be procured sufficient to maintain an indictment for wilful murder against this nurse, and although it was generally believed that she had committed the murder (a fact about which I had my doubts, for I believe the child was accidentally smothered in its sleep, as children often are), no evidence was offered to the jury in support of an indictment for the capital offence; but she was accused and punished for the attempted suicide.

THE INCENDIARY GANG

IN the year 1833 I was engaged to investigate the circumstances attending a fire—one of a series—which had ended in claims upon several of the great London offices, and which fires were believed to have arisen out of wilful fraud.

The present fire broke out on a Monday afternoon between one and two o'clock, in a warehouse belonging to an extensive bonnet manufactory near Dunstable, in Bedfordshire.

Among the peculiar circumstances of this case was the somewhat remarkable fact, that the business of the manufactory had just been transferred from one proprietor to another, and that the policy of insurance was in the hands of the company's officers, at its headquarters in London, for the purpose of having a transfer of the contract endorsed thereon.

The new proprietor informed the fire-office that he had resolved upon enlarging his premises, in order to extend his business.

In a letter to the company he indeed stated, in precise terms, that he then had on hand several large export orders to complete. The policy, which had covered an insurance of 3000*l.* hitherto, was now increased to 4500*l.*

Shortly after this another letter was received by the office, in which the writer stated that 4500*l.* would, he found, not cover the value of all his improvements, machinery, and stock-in-trade, so that he proposed to still further increase the insurance to 6000*l.*

As this was an unusually heavy risk on a country policy, and as the premises were only about thirty miles from town, the board determined that the surveyor for the office should go down and report upon the case before the last proposal was accepted.

Mr. Phillimore, the surveyor, accordingly went down. He arrived about eleven o'clock in the forenoon, and was very politely received by the firm—Newton Brothers—who showed him over the premises, which he examined with his usual critical minuteness, and was subsequently invited up-stairs into the manager's residence on the works, where he consented to partake of a glass of sherry and a sandwich while he awaited a return train to Town.

It was now a few minutes after one o'clock, and the people employed in the manufactory had all quitted the premises for dinner.

The younger member of the firm, Mr. Albert Newton, left the room for the sherry, returned in a few minutes, and had been chatting with the surveyor about half or three-quarters of an hour, when the workpeople began to return.

Before many of the hands had arrived, a cry of "Fire!" was raised. It was discovered that a portion of the old building, which adjoined the new, was in a blaze, and that a large quantity of straw hats and bonnets had been ignited. With immense rapidity the flames extended up the sides of the warehouse, in which there was, it appeared, stored a large quantity of manufactured goods. Appearances were, however, a little deceptive in this respect. The stock had been so distributed in racks (it might have been for convenience of classification) that the bulk appeared greater than it really was. Perhaps this circumstance, however, rather aided than retarded the progress of devastation; for the flames diffused themselves with more ease through the interstices or spaces in which the parcels were stored, than might have been possible had they been more densely packed.

A confusion and panic seized the few persons in the lower part of the building, and terror paralysed their efforts for a while. Moreover, they did not know that any persons were in the rooms above; and, if they paused in their alarm to consider at all about this matter, they probably thought that they alone, and the new arrivals from dinner, were the only persons within scope of the fire. They accordingly rushed out into the town, and, with commendable prudence—that is, as soon as calmness and reason were restored—sought to procure assistance in quenching the flames. The rest of the work-people, as they arrived, either went off on similar errands, or clustered round the outside of the building.

Meanwhile the devouring element pursued its unchecked course, and spreading with the rapidity already indicated, it soon enveloped the whole of the ground-floor. The flames had, indeed, begun to consume the staircase, and had singed the rafters, before notice of their peril reached the few occupants of the upper story.

Mr. Newton and the surveyor of the office were first alarmed by a subdued murmur or buzz produced by the conversation of the mass of people who were below looking on at the spectacle.

The attitude and conduct of the crowd was afterwards the subject of much inquiry and no little suspicion, but there really was no ground for either doubt or astonishment. If the fire had broken out at night, there is every reason to believe that the natural tones of alarm would have taken a louder form of demonstration. If such a fire had broken out in London, where persons are customarily to be found at all times on every floor of a large warehouse, and where the comparative familiarity of people with such incidents leads them to take wiser steps than provincials, the shout of "Fire! fire!" would probably have been at once raised even in broad daylight. But that people unaccustomed to such things, paralysed by terror to a large extent, and in a still greater degree stupefied by wonderment, made no shouts loud enough to arrest the conversation of the endangered little party above, is not, it appears to me, very remarkable.

The sounds which first greeted the ears of Mr. Albert Newton and his guest caused them to listen, and simultaneously one man in the mob (for a mob had by this time formed) did shout "Fire!" A smell of singed material also greeted the nostrils of the little party.

It is needless to say, that these persons immediately rushed to the window with the view of ascertaining what was the matter, and determining the course to be pursued if, as they had already almost ascertained, their own lives were in jeopardy.

The appearance of Mr. Albert Newton at the window elicited a shriek from the women and girls, and a corresponding cry of alarm from the men below.

"My God!" exclaimed Mr. Albert Newton, "our place is on fire."

As he spoke, the flames burst through the lower windows in a dense mass; and although the part of the building in which the manufacturer and his guest were standing was considerably to the east of that part on which the fire had taken its principal hold, there was sufficient palpable cause of danger to whiten the cheeks of both men, and to cause the proprietor—who had, of course, far less experience in such matters than the surveyor, Mr. Phillimore—to betray a degree of confusion which gave that worthy gentleman perhaps more anxiety than the fire alone could have done.

With a degree of calmness and self-possession worthy of the crisis, Mr. Phillimore asked Mr. Newton what means of escape they had, and implored

him to be calm, as it might need all their self-possession as well as their courage to extricate themselves.

“Shall we leap out of the window?” exclaimed the embarrassed man.

“No,” was the firm reply.

“Do you think we can safely descend the staircase?”

“Let us try.”

The party then descended one flight of stairs, but found a dense vapour issuing up the staircase,—an impassable difficulty.

“We are lost!” exclaimed Mr. Newton.

The surveyor’s countenance betrayed intense anxiety as he apprehended that the terrified man’s ejaculation involved an awful truth.

“Let us seek the roof. Have you any rope at hand?”

“Yes,” returned Mr. Newton.

Silently and rapidly they flew rather than ran up the stairs, Newton leading the way to where a quantity of stout hempen rope, of a quarter of an inch diameter, was lying in a corner of a room devoted to empty packages and waste.

The surveyor’s experienced eye measured the extent and capacity of this medium of escape with considerable accuracy, and saw that it would suffice for the purpose of liberating them, if they had the discretion to wisely use the means at their disposal.

Scarcely a word was exchanged between the two men. In almost total silence Mr. Phillimore drew out the first piece of rope and fastened it adroitly round the waist and under the arms of the proprietor of the establishment, and then fastened another length of the cord to the one which encircled his terrified companion. The third end was joined in the same manner.

“That will, I think, serve our purpose,” were the first words uttered, and these were spoken by the surveyor.

Mr. Newton may be excused for the selfishness which allowed him to avail himself of this means of escape, without much thought about his saviour. Few men under the like circumstances would have acted otherwise than he did. It is only in such cases as a ship on fire at sea that heroism, which is ordinarily slow in its manifestations, rises to the height of that generosity which seeks the preservation of another rather than oneself.

Trade does not, perhaps, tend to bring out the finest qualities of our nature. Domestic affections are the most rapid in generating a spirit of self-denial or self-sacrifice. Brother may yield the boon or privilege of life to his brother, the husband to his wife, or the mother to her child; but strangers, or casual acquaintances, are not given to the manifestation of those sublime virtues, self-abnegation and self-sacrifice.

Perhaps, however, Mr. Phillimore might not have parted with the first chance of extrication from the now rapidly consuming flames, if he had not been enabled, by professional sagacity and long training, to ascertain that his own best means of self-preservation really lie through the preservation, in the first instance, of his companion. He had a better chance of extrication when Mr. Newton had reached the cool earth below, than while he remained in the upper story dreading every moment that most horrible of all fates—death by fire. When the one man most liable to panic had been removed from peril, the other would have entire command, as he saw, of such agencies as were then within the equal control of both.

Mr. Phillimore converted one of the sashes into a sort of windlass, or made it at least serve the purpose of a pulley, and by a process that requires no description he lowered the frightened man to within a yard or two of the ground, the rope being not quite long enough to permit of his feet touching.

While dangling in this position, the crowd below shrieked and shouted, and were palsied and confused. One or two, however, had sufficient presence of mind to understand the crisis, and they instantly flew to a neighbouring builder's yard, from which a ladder was procured tall enough to reach the height at which Mr. Albert Newton was suspended.

The flames at this moment were just beginning to shed their vivid light through an adjacent window on the ground-floor at this angle of the building when the last means of escape arrived. It was the work of a moment to plant the ladder against the wall. One cool-headed fellow ascended the steps, placed his arm round the waist of his suspended and now almost lifeless master, disengaged him from the rope, and brought him down in safety amid the shouts of the crowd beneath.

Meanwhile second thoughts had entered the head of Mr. Phillimore, whose danger had been of course greatly increased during the space of time covered by the incidents I have just narrated. He ran about the floor in search of further rope, perceiving for the first time, perhaps, that he would

require a greater length to effect his own deliverance. Happily, in a packing-case he discovered some other pieces of cord, not so reliable in quality as that which had completed a work of mercy in his hands; but of course he had to use such material as he could, and to trust the contingencies of its strength and tension. He had spliced the pieces of rope he last discovered, which were of short lengths and unequal thickness the one to the other, when his attention was again aroused by the voice of the crowd below, shouting to warn him that the flames were beginning to burst from every opening at the end of the building beneath his feet; while, it may be observed, the fire had also just begun to reach the third story at the end where it commenced.

Newton had before this been released, and the further extremity of the rope which had encircled his body had itself begun to catch fire.

The coolness and discrimination of Mr. Phillimore began to desert him.

He told me that he became sensible of giddiness or approaching vertigo. By a strong effort of will he conquered the present most serious danger, and his judgment and prudence rose again with the extremity of his peril.

He joined all the rope together—that which he had last found to that which had been used in the deliverance of Newton—and fastening one end of the cord round his body, he slowly and cautiously lowered himself until he began to feel the scorching flames about his extremities.

The cord was not quite long enough!

Another awful sensation of approximate death overtook him; and he afterwards informed me that he knows not how he contrived to complete the work of his own deliverance.

In truth, however, as I afterwards learned from two of the bystanders, with, it seemed to them, wonderful regularity, although with extraordinary speed, he continued to lower himself right through a mass of belching flame. When he landed on the ground, it was seen that his coat-tails were ignited, and that his face was terribly scorched. He must have closed his eyes, or he would inevitably have been blinded.

Happily the fire had not consumed the wall nor the floor, and it was possible for three or four of the most daring spectators to rush forward, seize the now swooning and senseless man, and carry him off to a surgeon's hard by. Here he received immediate attention, and he was afterwards removed to an hotel, where he lay delirious for several days; but at length

his reason was restored, his wounds dressed, and he was enabled to proceed to his residence in London. Under the skilful treatment of an eminent surgeon, he thoroughly recovered. Although a trace or two of the flames were indelibly marked upon his countenance, they were but faint or slight traces.

Nothing effectual could be done for the preservation of the building. The fire for some time pursued its devastating course altogether without let or hindrance. At length an engine from the town-hall arrived, and began to throw a feeble jet of water among the flames. It seemed, however, to produce not the slightest possible effect, and its operation looked very like a satire or mockery. The entire of the building was gutted; the whole of the stock, materials, &c., of the factory were consumed; the machinery was rendered useless, and not much less than 20,000*l.* damage was altogether perpetrated; but this included the injury to the old premises, which were insured by the landlord.

I cannot tell how it happened that very imperfect reports of this fire reached London, or were circulated in the newspapers of the district. Perhaps it was, as I have been told, because the local reporter was a man of inferior descriptive power, and unable to give didactic interest or picturesqueness to the narrative he wrote, without which, it is needless to inform the reader, no account of any thing is palatable to the reading public, and with which comparatively small matters can be made interesting, or even sensational. Perhaps it was because Mr. Newton's brother and co-partner did not want to invest the case with more importance than he could possibly help, and was indeed rather anxious that no more noise should be made about it than was inevitable. I have heard it stated that he knew the only representative of the local press in the town, and sought him out, or was sought out by him, and that he dictated or inspired the feeble and uninteresting narrative that was published of the event.

These circumstances or rumours are just of sufficient importance to the developments of the case I am about to describe to justify my stating them.

I should mention that Mr. Henry Newton, the other proprietor of the manufactory, was absent at Birmingham. He was indeed travelling on behalf of the firm of which he was a member, and knew nothing of the catastrophe until informed of it by a telegram, when he of course repaired homewards with all possible speed.

The cause of this fire was never certainly ascertained; but a likely hypothesis, which a jury might believe, was that it arose out of the negligence of the gas-fitters. These men went to dinner at the same time as the ordinary work-people of the factory; and on doing so, stopped by a wooden plug one end of a gas-pipe that was connected to the metre, and enveloped an unfinished joint, also near to the metre, in white lead and tow. The gas at this time was not turned on at the metre, or so it was thought; and the most mysterious feature of the case is, how it was afterwards turned on. This point, however, could not be cleared up, and the *onus* of so doing did not, of course, rest upon the insured.

In due course a claim was made upon the company. It was investigated; and although suspicions were entertained in the neighbourhood of the Mansion House, where their office was situate, that the calamity was the work of an incendiary, the fact could not be proved, and the amount of the insurance was ultimately paid.

Messrs. Newton contended that the sum they obtained from the fire-office was insufficient to cover the value of their machinery, stock, fixtures, &c. They further alleged that they had sustained considerable loss by the suspension of their trade, and they accordingly brought an action against the gas company who supplied the town, and who had undertaken to lay the pipes in the premises.

This action was defended up to the day of trial, and stood high on the special-jury list at Guildhall one morning. The cause immediately preceding it had nearly terminated. The judge was summing up in that cause. A rather numerous body of spectators (among whom I might have been seen) were awaiting, with various degrees of interest, the case of “Newton v. the H—— Gas Company.”

At this stage of the case, a consultation across the bar took place between Sergeant Bustle and Mr. Quicke, Q.C., the principal learned counsel or “leaders” for the plaintiff and for the defendant, which ended in their suggesting to his Lordship (Mr. Baron Snapwell) that an arrangement might probably be effected between the parties, if his Lordship would kindly permit the case to stand over until to-morrow. His Lordship, with a show of reluctance, but I believe with perfect willingness to get rid of a long and intricate case, consented to the request, and all I have further to

tell the reader about it is, that the anticipations of these learned gentlemen were realised.

A compromise was effected. Messrs. Newton Brothers obtained a rather liberal sum by way of further compensation for their injuries and loss through the conflagration.

Another extraordinary and suspicious circumstance was the death shortly afterwards of Mr. Paterson, the late proprietor of this establishment, to whom Newton Brothers were indebted in a considerable sum. This happened about four months after the fire, and under these circumstances. He was living in the town, not having yet determined into what fresh business he would embark, and not, it is believed, having received all the consideration he had bargained for from the firm to whom he had transferred his business.

The Newtons and Mr. Paterson had been passing an evening at the Dove Hotel, and had taken rather more brandy-and-water than any rational idea of temperance would sanction. Mr. Paterson left the Dove before the Newtons.

His way lay across a canal, and in the morning he was found drowned. He had tumbled, as it appeared, somehow over the low parapet into the water. The Newtons left the house after him, and found their way home to their beds in safety. A coroner's inquest sat upon the body of the deceased, and returned an open verdict of "Found drowned." Some people in the town and neighbourhood, among whom were the Newtons, professed much grief at the calamity. The new firm said, indeed, it appeared as if the place and all connected with it were under a spell or a brand. They declared that it seemed as if Providence had resolved nothing should prosper in connexion with this particular manufactory. How, or for what reason, they could not tell; but here was the death, it might be by accident, or it might be by suicide, in a state of drunkenness, of their predecessor, not long after they had lost every thing (as they in the freedom of their language said they had) through a fire on the premises.

The insurance company heard of the death of Mr. Paterson, and the secretary got it into his head that the Newtons were incendiaries and murderers—that they had killed this man for some evil reason best known to themselves. He consulted the solicitors of the company, and they employed me to sift the mystery, and, if it turned out that the secretary's

suspensions were justifiable, to spare no trouble or expense in obtaining evidence upon which to prosecute the alleged miscreants.

I went down secretly, and investigated all the circumstances as far as I could. I collected a variety of little scraps of fact, which left no doubt in my mind that the secretary was right. I came, indeed, to the conclusion that these Newtons were the vilest wretches who had for a long time been permitted to escape the hangman. Yet, frankly let me say, I could not gather enough information on which to rest an indictment with the likelihood of securing a conviction.

I need hardly point out to the reader how very complete my evidence must have been before I could have recommended the company to incur the risk of a prosecution. If, for instance, they failed in conclusively establishing the guilt of the insurers, the institution would be irreparably damaged in public estimation. Popular opinion, and newspaper commentators, would say the company set up this odious defence in order to escape payment of a just claim. The accused would be elevated into the ranks of martyrdom. The company would have to pay all that was demanded from them, with costs, and they might almost as well afterwards give up business, or set the lawyers to work to liquidate the affairs of their institution in Chancery. So that after laying my statement in detail before the solicitors of the company (who paid me handsomely for my services), they drew up a report with their comments and opinions upon my facts; the matter was considered by the board of directors, and there for the time it dropped.

It was not exactly dropped either. I was employed to keep my eye upon the Newtons without intermission for a couple of years, if I felt it necessary to prolong the scrutiny so far—which instructions I had no unwillingness to obey.

Through the medium of several of my assistants, who were changed from time to time, the subsequent career of these persons was noted down with a degree of accuracy which afterwards proved very useful to the interests of metropolitan insurance companies in particular, and to the interests of society and the cause of justice in general.

Among the persons in the town where the dismantled factory was situated whose acquaintance I made, and whose confidence I thought I had gained, was the widow of the drowned late proprietor. She grieved over the

premature loss of her husband, but had no apparent suspicion, or at least disclosed to me no suspicion, that he had met his death by foul play. I, among other expedients, condoled with her, discoursed about the lamentable effects of intoxication, eulogised the memory of her husband, lightly and softly touching the subject of that peculiar weakness for the bottle which had led to his untimely death. But none of these conversations elicited from her any suggestion that he had been murdered by the Newtons.

Not long after the money had been paid I discovered that, clever as I thought I had been, I had been outwitted; but not by the Newtons, about whom let there be no further mystery with the reader. They were what the secretary had thought, and what I had become convinced—they were vile wretches, fit for the hangman, and rotten-ripe for the gallows. I had been outwitted by a woman's ingenuity. No one suspected me or my mission in the town (as it afterwards turned out) except the widow Paterson. She had somehow got to know my name and real character, and had been fencing with me or humbugging me, and was prepared, when occasion or opportunity arose, to use me. At the risk of losing some of my *prestige* with the reader, I am frank enough to fairly admit this.

Shortly after Messrs. Newton Brothers had received the reward of their villany from the fears of the insurance company, and, so to speak, through the broken links in the evidence of their rascality and scoundrelism, an anonymous letter was received by me, the substance of which I may communicate to the reader. It was a statement in effect that the insurance company had been robbed by the Newtons, who had set fire to their own factory in order to achieve their ends; and that the writer was, under proper guarantees, disposed to put me on the track of a successful investigation into the mystery of the crime. The writer required that I should answer the letter, in the first place, by an advertisement in the second column of the *Times*, on the morning of the third day after receipt of the letter. The form of that advertisement was given me, which I was only to insert if I consented to the terms, could give the required guarantees, and was prepared to follow up the clue to be communicated to me.

I saw the solicitors of the company, and with them saw the secretary, when it was arranged that I should accept the terms, see the writer, give the guarantee, and follow up the investigation as it might seem to me expedient, drawing from the company such expenses and remuneration as I might think necessary to incur. After the advertisement, and one or two

preliminary letters, I met the writer of the first letter at an appointed place. The writer of that letter was the widow Paterson. She was a remarkable woman, that Mrs. Paterson; by no means handsome or beautiful, yet by no means decidedly the reverse of either. She was not masculine, and she had certainly none of the delicacies of her sex. She was an unscrupulous, designing, wicked woman, cherishing and respecting her own comfort and material welfare more than any thing else. I believe she was sorry to lose her husband, but anxious to make the best use of her misfortune, and chiefly disappointed when she ascertained that his loss also involved the loss of money due to him which she expected to have had the enjoyment of in connexion with him.

When we met we were a little embarrassed. She was startled by the success of her former *ruse* and concealment. I was disconcerted, if not somewhat humbled, by the then evident truth that I had been all along known to her while I had been, as I thought, pumping her. This embarrassment, however, soon yielded to business. She gave me an insight into a plot of which I had hitherto not had a complete idea.

She could not positively assert that her husband had been murdered. On that head she had her suspicions, as others had. All she could say distinctly was, that the Newtons had burned down their house. The fact was, that her husband had been embarrassed. The Newtons had seen this, and proposed to him an elaborate scheme for defrauding the insurance company. The same means would also enable him to get time from his creditors, who might afterwards be arranged with, or “satisfied” by a bankruptcy, as thereafter should seem desirable. Meanwhile the Newtons and he were to take parts in the great scheme of fraud. They settled between them the extension of the premises and the burning of the manufactory, the claim upon the company, and the division of the spoil. All these arrangements had been carried out, as the reader is aware, except the last part of the programme, which was the subject of another fraud, illustrating a truth I have so frequently insisted upon—that there is no honour among thieves.

Newtons might or might not have overtaken Paterson after he left the Dove, who, being drunk, could not walk towards his home very quickly. They might or might not have pitched him over the canal-bridge into the water; but it was clear that they conceived his death gave an opportunity for cheating him, or rather his widow, out of his share of the proceeds of their joint crime. Mrs. Paterson was in her husband’s confidence about the

destruction of his premises. This was a little circumstance the Newtons were unacquainted with. On the other hand, Paterson had often told them that he did not let his wife know every thing, and had so frequently spoken in disrespectful terms of the gentle sex (especially on the score of speech or intrigue), that he led them to believe his wife knew nothing about the conspiracy; but in point of fact she had been informed all about it. She had held her peace, since Paterson's death, to see how Messrs. Newton would behave when they got the insurance money, secretly having resolved all the while that if they played her false, or did not hand over to her what she considered her fair share, or what it was arranged her husband should have, she would "let the cat out of the bag," and assist the officers of justice in raising that firm to the level of a platform outside the county gaol, where Mr. Jack Ketch had previously been known to perform in a few dismal tragedies. When the Newtons got the money she boldly made her demand upon them. They affected to be indignant, and they menaced her with a criminal information for slander, which raised her fears a little, for she did not clearly see how she was to establish her case against them. She was lawyer enough to know that in any criminal proceedings against her, her mouth would be shut, by the forms of that branch of English jurisprudence. It required not much self-possession on her part to hold her tongue a while longer, to simulate, if not satisfaction, at least resignation, at the loss of her share of the plunder. She however determined to place herself in communication with me, in the full reliance that I could with her aid, overtake the villains, who had not been true to their compact of rascality, and get them punished, as they deserved to be, if not for their original crimes, for their want of honour to the confederate.

I listened to her story, and noted all the circumstances she could relate. I made another report, that went through the same ordeal or ceremonial which my former report was submitted to, and with about the like result. This woman's evidence was tainted. She did not indeed want to be brought forward. She trembled under the fear of being murdered by some other confederates of the Newtons, if she were the ostensible and avowed agent of their punishment. She wanted "the thing done without using her." It appeared to me, and to the other adviser of the insurance company, that with her evidence a prosecution of the Newtons was not a perfectly safe experiment; and that without such support an indictment was an exceedingly dangerous expedient for the company.

It is needless to observe that the disclosures of this woman rendered the fact of the Newtons' crime doubly certain to *us*; but all that could still be done was to watch and wait another opportunity for bringing these wretches to justice.

The explanations which I had from Mrs. Paterson were to the effect that, although her husband was pecuniarily embarrassed at the time when he sold the business, a large portion of the money owing was money that he held as trustee, and which, being in the funds, railway stocks &c., he had the exclusive management of, having taken all the securities several years ago out of the hands of the lawyers concerned in the trust. There was no one to check his malversation, and by the simple expedient of keeping the interest paid, he escaped detection. At length, finding that the affair was getting beyond his control, the means of his permanently concealing it being rendered more and more difficult by its magnitude, and the fact that losses in trade, perhaps the interest upon the lost capital, swelled up an awful total, he took the Newtons into his confidence, and the set devised a scheme for colourably selling his stock-in-trade, fixtures, good-will, &c., &c., for extending the premises, and so forth, and burning the place down, so as to realise a large sum in ready money—considerably more than the value of the things insured. By these means he hoped to retrieve his position as trustee, and put a tidy sum of money in his own pocket—his confederates, the Newtons, of course also profiting somewhat largely.

Paterson was a peculiar and self-reliant man. Moreover, he could not rely upon getting any solicitor to enter into such a confederacy. It is absolutely certain that if he could induce any one in the legal profession to join in such a villanous compact, he would have been the very lowest among low attorneys. He would in all probability have known sufficiently well how to screen himself, and also how to swallow and retain the lion's share of the plunder. All these things were evident to Mr. Paterson, so he kept the bills of exchange which the Newtons had given him in his own hands, and dreading burglary, or the fraudulent and surreptitious removal of them from the apartments he now occupied during his absence, if an opportunity of any kind were furnished, he usually carried these documents about with him in his pocket-book when he left home. This was, of course, a dangerous plan, and one that any honest man in an ordinary position would not adopt; but perhaps, after all, it was the safest for such a man as Paterson in the position he then stood.

The Newtons knew of Paterson's fraudulent trusteeship. They were sufficiently in his confidence to have obtained nearly all the information which enabled them to keep him at arm's length. And of course Paterson also knew of the exaggerated claim which had been presented to the insurance company, based upon inventories and papers supplied to them by him on the transfer of the business. It is hard to say that either was more deeply implicated in the villany than the other; although it is clear that Paterson, who stood behind the scenes and was screened from observation by the prominent defrauders, was, in reality at least, as deep, and perhaps more deeply, involved in the swindle and arson than either of the Newtons. The situation of the parties towards each other was not very unlike that thieves ordinarily stand in. One had reason to fear the other, and there was in consequence mutual jealousy, distrust, and apprehension.

After leaving the Dove, I had no doubt that the Newtons hastened in the direction that Paterson had, go homewards, and succeeded in overtaking him; that, being partially intoxicated he was easily grasped and held by his whilom confederates, one of whom probably held his hand over the victim's mouth while the other hastily seized his pocket-book, removed from it the acceptances which had been given him on the transfer of the business, &c., after which he was pitched into the water. When taken from the canal and searched, a pocket-book was found upon the person of the murdered incendiary, and in it all the papers that he was known to carry except the acceptances, which were, to the mind of Mrs. Paterson, painfully conspicuous by their absence.

I have explained that the Newtons did not know that Mrs. Paterson was in her husband's confidence; that they imagined she was not; and that he, with a desire for counter-check which distinguishes the suspicious, taught them so to believe. He would frequently say, when Mrs. Paterson's name transpired in their conversations prior and subsequently to the fire, that "he never trusted a woman with a secret of any importance, as she was sure to blab or peach," &c. As I have said, however, he was all the while disclosing to her the conspiracy and plot. She was thoroughly informed of every circumstance, and knew all about their proceedings from first to last as well as either of the Newtons did.

After her husband's death, in her emergency, before seeking me she consulted those well-known criminal lawyers, Messrs. Levy Levy, Brothers, and Sons, who (except when they attend a police-court, and think a

demonstration requisite for the vindication of their skill to the newspaper-reading World, as an advertisement for business in the same line) conceive that the Carlylese or Chinese motto about silence embodies the prime wisdom or the highest sagacity. They recommended Mrs. Paterson to wait and hold her tongue—for the present. She did this until she knew that the money had been paid by the insurance company, of which circumstance she then informed her clever Mosaic attorneys. They, upon hearing this circumstance from their client, wisely and shrewdly, perhaps, told her the time had now arrived for action, that they were the people to act, and that she had better leave herself in their hands. To this she readily consented; for, as I have said, the Newtons inspired her with awe. If she had not been sensible that she had an advantage in her knowledge of them, and that they at the present moment had no conception she was aware of their villany, she would have trembled lest, as the greed of the brothers led them to the murder of her husband in order to prevent further disclosures, they would murder her.

The action of her attorneys was not a very remarkable or, I think, skilful performance. One thing to be said is, these gentlemen have an enormous amount of very lucrative business, and it does not, I believe, pay them to bestow much thought upon any thing. For instance, when some wholesale forger, some coiner in an extensive way of business, some pivot of pick-pocketing or burglary, or the member of any gang, is arrested, he sends immediately for Messrs. Levy Levy, Brothers, and Sons, and, to secure their best services, makes them a large payment. They hear what he has got to say. They attend the police-court, bully the witnesses for the prosecution, make every conceivable statement about their client's respectability within the limits that evidence will permit; and although, almost as a matter of course in these cases, the criminal gets sent for trial, he goes away to the House of Detention rejoicing in the confident belief that he has got, at all events, the best criminal lawyers in the country to defend him. When he comes up for trial, out of the hundred or two hundred pounds or more which Messrs. Levy Levy and family have extracted from the prisoner, his relatives, his connexions, or his gang, these attorneys give a brief or a couple of briefs to counsel, which contain little if any thing more than copies of the depositions taken before the magistrates, and on the back of those briefs are severally indorsed, "Mr. Noxious Sound, 10 guineas;" and "Mr. Modest Empty purse, 2 guineas." The leader of these two gentlemen

perhaps tries to pick a hole in the indictment, which has for several years past been not very serviceable to prisoners, because if the hole is but a small one, and unless the bench can be satisfied that the indictment, as it stands, describes a different offence to that which a prisoner has been arrested upon, or has come prepared to meet, it is amended in court so as to cure the defect which Mr. Noxious Sound's not miraculous penetration has discovered. Or Mr. Sound may raise what thieves call a "pint of law" for the Court of Criminal Appeal, about which it is needless to say any thing, except that the case then easily glides from the lower to higher tribunal and that in its course Messrs. Levy Levy and kindred get another considerable lump of money out of it. While they thus realise enormous incomes by a process so facile, and one which involves no responsibility and taxes no intellect—a thing, by the way, nearly impossible, for the Levys have not much of the latter article among the lot of them—they are not disposed, even under what would to the ordinary solicitor be a temptation of liberal costs, to take a vast deal of trouble, or, as one of them would observe, "put themselves far out of the way."

Messrs. Levy Levy and family wrote to Messrs. Newton Brothers a letter, which stated that they had been called upon and consulted by a client on a matter in which they (Messrs. Newton Brothers) were concerned; and that they (Messrs. Levy Levy and kindred) would be glad to see them (Messrs. Newton Brothers).

Mr. Albert Newton received this letter and opened it. When he communicated it to his brother, that gentleman elegantly observed that he thought he "smelt a rat;" but I do not think he exactly comprehended who the rat was, or its location. However, the firm also thought it desirable to consult attorneys. Newtons would have gone to Messrs. Levy Levy and family; but as the professional services of these renowned pettifoggers were forestalled, Newton Brothers put themselves into communication with another Levy, who is an attorney, and may or may not be, for any thing I know, a kinsman of the members of the great Old Bailey house. He called upon Messrs. Levy Levy and family, and the result was, that Mrs. Paterson, when she next waited upon them, was told it was "an ugly affair," and that they "did not see how to move in it without peril." They talked to her in the language of professional wisdom—and slang. They said something about stinks that were stirred smelling all the more because of the operation, and used other unequally sage observations. The widow was not broken-

hearted, but certainly crest-fallen, and eminently, although silently, indignant.

Mrs. Paterson vowed vengeance, although the inarticulate form of her protestations saved their being registered any where to her disadvantage. She now determined to take her own course in bringing down upon the heads of her husband's confederates in the swindle and in the arson, and her husband's murderers, the vengeance of the law. She was ultimately led by this amiable turn of reflection to communicate with me, and the reader has already been told the immediate result.

Popular belief, I am sorry to say, in the town where the bonnet-factory had stood, was largely tinged with prejudice or superstition, which materially assisted Newtons' future plans. Paterson's breach of trust became known; his losses in trade also became generally known. The fire having broken out so soon after the transfer of the business had been effected, and the suicide—as it was said—of the late proprietor, all confirmed the mass of the people there in the Newtonian belief that a spell, or witchery, or fatal influence of some kind, hung over the establishment. Newtons' professions of faith of the same kind did not, therefore, appear remarkable. A few people wondered, but nobody except the insurance office suspected the reason why the firm determined not to resume business there. They were content to pay such debts as they had contracted in the neighbourhood, to display a little kindness to a few of the workpeople in the bitterest distress; and having thus obtained a very pleasant reputation, they quitted the neighbourhood for London, intending, as they said, to embark in some other line of enterprise.

I kept close watch upon the culprits, and knew all their movements; but still I could not, for a long time, bring any thing home to them with sufficient precision to warrant a prosecution by the insurance company. Among the things I did, however, discover, was an abundant series of links in a chain of evidence which, some day, I felt certain I could attach at its extremity to a great crime; and although my employers were, I think, getting a little impatient, as I also think I was myself, I never doubted that the result would be, if not the hanging of the Newtons, their certain condemnation to the bulks or a convict prison for the term of their natural lives.

I also ascertained that these villains were mixed up with, in divers ways, a gang who for many years past, and for some years after the date of this narrative, played a prominent part in, or were at the root of, all the great crimes of London, and many of those in the provinces. The Newtons appeared to have a special department of the criminal business allotted to or taken up by them. Although they had been concerned in a forgery or two, in a railway “plant,” and a burglary on a grand scale, yet their preference was to get up fires. They had been concerned as subordinates and screened performers in a large incendiary fire at Whitechapel, in another at Manchester, and, I also believe, one in Liverpool.

After about sixteen months’ waiting and watching—during which time the Newtons had made one or two pleasure-trips to the Continent, had resided at various parts of the metropolis in superior furnished apartments, and had patronised tailors extensively for various costumes—I ascertained that they had resolved to re-commence business.

One of them, Mr. Henry Newton, went into the west of England, to the town of B——, and took a large house and shop there, which he opened as a music-seller’s and a pianoforte warehouse. Next door to the goodly and capacious premises which Mr. Henry Newton had taken, was a small, dwarfed, and not by any means pretty building. This had been not long before to let, but had found a tenant about a month or six weeks before Mr. Newton took the adjacent more pretentious structure. The small house was opened, in a humble way of business, by an old man and woman. The old folk sold lollipops, fruit, children’s books, &c. Newton complained to the agent of the low character of this business, and went so far as to negotiate with the small shopkeeper for the surrender of his tenancy in the premises; but the negotiation broke off, in consequence of the small shopkeeper demanding what Mr. Newton thought any thing but a small price for his interest in the hovel. Mr. Newton declared that he had an unconquerable objection, on principle, to being swindled or robbed in that way. Rather than submit to the small shopkeeper’s gross extortion, he said he would put up with the nuisance, although it would interfere with the respectable business he intended to carry on.

I ought to explain, that Mr. Newton did not appear in the town under the name of Newton. He set up there as “Keeling and Co., wholesale pianoforte manufacturers, dealers, and merchants.” His establishment was called the “Temple of the Muses,” and a very pretty affair it was.

Mr. Albert Newton remained in London. He started, under the title of “Cross and Co.,” as “general commission-agent, importer, and merchants,” near Tower Hill, and soon found himself engaged in rather extensive operations at home and abroad. He also served as a reference for his brother, Mr. Keeling.

Mr. Keeling had not opened his premises long when he slightly intimated his intention to insure the “Temple of the Muses.” Several of the local agents of insurance companies left at his premises circulars and prospectuses, inviting him thereby to insure his life or his chattels, or both. He had interviews with two or three of the agents about terms, and was critical in comparing the different rates of their offices, the dates of their foundation, the respectability of their management, and all such other things as a prudent insurer would like to be well informed about. The upshot or result was, that he effected an insurance through the local agent of one of the oldest London offices (the title of which need not for the present be mentioned), although it cost him a trifle more than was asked by the agent of a modern office, because he had no belief, he said, in “mushroom concerns.” The agent, who profited by it, considered this decision a token of Mr. Keeling’s sound practical judgment.

Several pianos arrived, some large parcels of music, and other goods, which were duly taken from the railway station to the “Temple of the Muses,” by the railway servants, whose fatigue was usually lightened by a trifling *douceur* from Messrs. Keeling and Co.

Messrs. Keeling’s men, an assistant and a porter, were brought by them from London. The principal had been heard to say that nobody but London men could understand his way of business; and that although he liked the people of B—— very well (especially the better classes), he could not put up with the trade assistants to be got in that town.

Shortly after the “Temple of the Muses” was opened, the proprietor was scandalised by a little stall having been put outside the next house or hovel, with ginger-beer and other trifling articles of refreshment upon it for sale, which, indeed, seemed to be displayed with a sort of vulgar ostentation by the proprietor, as Keeling said, as a sort of means to annoy him, until he gave a fancy price in order to get rid of the fellow. In this, however, the small shopkeeper was not successful. Although Mr. Keeling’s indignation and disgust were intense, he would not buy off the nuisance at the price

demanded. He talked of going to law with the old man, and consulted the leading solicitor in the town about an action or an indictment; but was advised that the annoyance was insufficient to give him the remedy he sought.

No business seemed to be done by Keeling and Co. A few pieces of music were sold. A good many people called to see the pianos; but the prices asked for them somewhat alarmed the customers. Mr. Keeling occasionally got disgusted, and assured his visitors he could not sell such articles as he had to sell at the prices they were expected to be sold for, although he knew that common trashy things could be supplied at those figures.

One day there was a sale in London of the stock of a pianoforte manufacturer advertised in the daily papers. It announced an auction at some future day, unless the whole stock were previously disposed of by private contract, together with the lease and good-will of the manufacturer's premises. Mr. Keeling received a telegram from Messrs. Cross, which ran thus: "See the *Times*. Advertisement, sale of Mr.——. Stock, good-will, &c."

Mr. Keeling, after receiving this telegram, was very anxious to see the *Times*, which arrived in due course about mid-day. He sent to the railway station two or three times, and ultimately went up himself, to get an early copy of the paper. On his way there he met an acquaintance or two (one was my assistant, although he little dreamt it), whom he told there was a splendid opportunity, he thought, for buying a large stock, and perhaps getting a first-class Town business, to which his country trade of the "Temple of the Muses" might be added with advantage. He thought he might also be able to get a stock of pianos, of rather lower quality than he now had, which the people of B—— might appreciate at the price he could offer them. After he had procured the *Times*, and taken care to explain to a few people the precise cause of his journey to London, he only awaited the arrival of the next up-train, and away he went to Town by it. He expected to be down the next day, but found this impossible, as he explained in a telegram to his assistant or shopman, but said that he would positively return on the day following.

On the second night after Mr. Keeling's departure for London, about a quarter to twelve o'clock, there was a cry of fire in the town of B——. The

little hovel had caught light in the rear, and it happened that this wretched place actually joined the “Temple of the Muses.” A wooden outhouse behind the smaller structure also joined the back premises of the Temple, in which were stored packing-cases, straw, &c.

The flames soon demolished the straw-roofed lollipop-shop, and left nothing but a heap of ashes as a memorial of its devastation. The old man and his wife readily escaped, however, as the fire began at the back of the house, and they were not sound sleepers. Few old people, if we may believe the physiologists, do sleep soundly; so that to suspect the lollipop shopkeeper and his wife of incendiarism, on the ground of their escape, would be as absurd as it would be unjust. The old man was, moreover, not insured. What motive could he have to set his establishment on fire?

The “Temple of the Muses” fared not much better than the hovel. The walls and some of the cross-beams were left standing; but it was tolerably well gutted, and all the stock and furniture in it were consumed.

It unfortunately happened that the town of B—— had no appliances worth mentioning for the extinction of fire. It was worse off in this respect than the town in which Messrs. Newtons’ straw-bonnet manufactory was situate. There was the town-engine at B——, but it was found impracticable to get that crazy instrument into working order. It was a long time before the door of the engine-house could be opened for want of the key. It was then found impossible to get the parts of the engine together. Half of the town might have been destroyed before it could be got ready for use. Some portions of the hose were missing; the hinges were all rusty, and the metal-work dirty and corroded. The engine was, in point of fact, a wreck of time, and in an advanced stage of decay. But for this it is likely that the “Temple of the Muses” would not have sustained so much damage as it did; but happily no lives were lost in either building.

Mr. Keeling being telegraphed for, rushed, with the rapidity of an express train, to the scene of what he called his misfortune, and met the condolences of every body there, not excepting his rivals and most jealous neighbours.

The only man who could not understand the affair, but whose suspicions, if he had any, took no definite shape, was the agent of the company, deputy-registrar of births, deaths, and marriages, parish-clerk, undertaker, coal-merchant, and commission-agent. This respectable old gentleman informed

every body that there had been no house on fire in B—— for forty years. He had been agent for the insurance office thirty-four years himself; and, although he had taken in premiums not less than 10,000*l.*, he had never been called upon under one of those cases for a shilling.

The poor old man seemed to think, or one might judge by his manner that he thought, a claim of 3000*l.*, which Messrs. Keeling and Co., of the “Temple of the Muses,” would have to present, would about ruin the office, and utterly destroy him as an agent. He was very anxious, therefore, to explain all about it; to show the care with which he had made an examination of the premises; to exhibit how unfortunate the contiguous position of the “Temple of the Muses” and the adjoining premises was; to demonstrate how little he could have expected that a fire would have broken out in that hovel; and how, if he had thought of such a thing, he must also have concluded that the “Temple of the Muses” would not have caught light before the flames could have been extinguished in the other building.

The agent made a special journey to London, in order to see the board; and he did see the secretary, in an interview at which I was present. It was suggested by me that it could not be helped, and that such things must happen. The secretary said, “Yes; he did not know but that a claim like that was, in the long-run, rather beneficial to the company than otherwise.” The agent was consoled by the assurance that it might assist him in extending the operations of the company; that he might hope to make up the loss in new business; and that, indeed, he was entitled, when estimating the results of his own business with the company, to set off against this loss a larger amount, which he had during his thirty-four years’ agency remitted them.

The poor old agent, who could be of no use to me in my investigations, went back to B——, and unconsciously did me a little service by trumpeting the statements of myself and the secretary as the settled conviction of the company that all was right, and that its intention was to pay the claim in the most handsome manner—all of which Mr. Keeling got to know, and was no doubt as much comforted thereby as the agent himself.

One party in B—— appeared likely to be over-looked—the old man and his wife who, previously to the fire, sold sweetmeats and fruit, &c. next door to the “Temple of the Muses.” But the necessities of the venerable couple drove them before the public in a rather prominent shape. Handbills

were printed in the town, and taken round by the old gentleman to the various shopkeepers and other inhabitants, in which hand-bill was set forth the melancholy accident which had burned his house down, destroyed his stock, and left him in beggary, as he was unfortunately not insured. A great deal of commiseration was excited in and beyond the town, and the poor couple got something like 100*l.* subscribed for them by voluntary contributions. A clergyman preached a sermon in the largest dissenting chapel of B—— on the old man's special behalf; and the reverend gentleman drew such a pathetic description of the poor people's sufferings and forlorn condition, that a very tidy sum was dropped into the plates at the chapel-door as the congregation left the sacred edifice.

The old man did not, however, set up in business immediately, because the house or hovel was not at once rebuilt. The owner of the land formed a notion of erecting upon it a more elegant structure than the one which had been destroyed, and the former tenant could not tell whether he would be able to occupy the old site or not.

Messrs. Keeling and Co., of the "Temple of the Muses," complained very bitterly about the destruction of their premises and stock, just as they were on the threshold of deriving the advantage of their invested capital and labours over the dreary season. They made a formal complaint to the local authorities as to the construction of the building, and contended that if similar arrangements to those which prevailed in the metropolis had existed in B——, that is to say, if, for instance, proper party-walls had been erected between all the edifices in the town of B——, the "Temple of the Muses" would not have been ignited by the fire in the adjoining hovel. In fact, Mr. Keeling pretty extensively ventilated the grievance of his firm, although it never transpired who was represented by the "Co." He also, of course, commented with very legitimate warmth upon the wretched condition of the town fire-engine, and on the lack of means for extinguishing the flames before they had acquired a hold over the premises.

It is perhaps unnecessary to say that after this fire my inquiries were pursued with great vigilance, and that a careful watch was kept upon Mr. Keeling and upon Mr. Cross.

I advised the company to adopt a bold course; but the solicitors to whom this advice was directly given, in the first place, hesitated about endorsing it. The secretary of the company, whom I had reason to see on more than

one occasion, for the purpose of examining the papers sent in by Messrs. Keeling and Co. when the assurance was effected, also shared the timidity of the company's legal advisers. Still I was told to pursue my investigations, and I did so.

A correspondence ensued between Mr. Keeling and the secretary of the company immediately after the fire. The secretary was rather wily, but Mr. Keeling was as acute. After some parleying, and the exchange of one or two letters, the secretary, in a fit of impatience, told Mr. Keeling that the company had their doubts about the *bonâ fides* of his claim, and that he thought it was possible it might be resisted.

On receiving this intimation from the secretary, Mr. Keeling was indignant, and demanded an interview with the board of directors.

The garrulity of the old agent had given this man confidence. He thought he saw in that, and in other circumstances around him, enough to warrant him in a confident belief that his crime was unsuspected. Or he may have argued with himself that safety lay in a bold attitude and tone. So he adopted that kind of tone and attitude. He was informed, in reply to his demand, that he could not see the board, but that he might see the secretary on any day and hour he chose to appoint.

I should explain that this interview was part of my plan. The secretary was disposed to refuse to see the incendiary at all, but I overruled his objections to the meeting.

I had, previous to the appointment for this interview being made and kept, two or three very deliberate and somewhat anxious conferences with the solicitor and the secretary of the company. They were for adopting an exceedingly cautious policy. I was still for taking bold steps. I recommended the arrest of Mr. Keeling at once, suggesting, in support of that measure, that in all probability, if I did so, the other members of his gang would fly, and that evidence of guilt sufficient, at all events, to rebut any claim at common law for the insurance money, would be thus obtained. Indeed, I thought, in all probability, it would never be attempted to enforce the claim. This, I argued, would be the ultimate consequence, even should Mr. Keeling slip through the hands of the hangman or the convict-warder; but added, that I thought there was little doubt, if Mr. Cross, Mr. Keeling, and the old man and woman, the tenants of the hovel, were all arrested, I could get evidence enough to convict the lot—if in no other way, partially

by the confession of one of the set. I added, for the instruction and enlightenment of my auditors and employers, and as the climax of my reasoning, that I never yet knew a case in which a gang or a lot of confederates in crime were seized, that there was not a perfect race between them in tendering Queen's evidence. I could not lead the convictions of the solicitor and secretary up to the point of my demonstration or argument, but they agreed to allow me a tolerably wide discretion in my personal conversation with Mr. Keeling at the interview.

One Monday morning, at eleven o'clock, Mr. Keeling walked into the insurance office. He certainly looked very unlike Mr. Henry Newton. The clean shaven face of the manufacturer near Dunstable was now ornamented by carefully trimmed hirsute appendages. The sober garb of the straw-bonnet manufacturer had given place to the swell costume of the proprietor of the "Temple of the Muses," who dressed, I may remark *en passant*, in good clothes. Some people might say he looked the gentleman, although to my eye he looked just what he was—a consummate, perfect type of arch-villany. He was cool and collected. I was at least as calm as he was on the outside, and I warrant much calmer inside.

After some little conversation between the secretary and the criminal, in which the former suggested that the items of the demand he was trying to recover were vague and uncertain, and stated that the company would require to investigate them, and that he thought they would be sure to contest the claim, and in which conversation Mr. Keeling used strong language about the disreputable character of those threats, and indeed said that he should bring his action at once, and that the company might do their best or their worst, and that he would do his best to show them up to the whole world and effect their ruin,—I thought it time to intervene.

I stepped forward, looked Mr. Keeling steadily in the face, and I saw his eye quail as I addressed him.

"Look here, sir. It is time to put an end to this nonsense. Whether you know me or not, I know you perfectly, and all about you, and the gang to which you belong. Let me tell you, I know all about that fire in Whitechapel, and enough to transport you about that fire in Birmingham; enough, I think, to send you to Portland for a few years for those fires in Manchester and Liverpool. I have watched your career with my own eye for a long while, Mr. Newton, or Keeling, or Roberts, or Jamieson, or whoever

you really are—and now listen to me. You got clear off with that money through your fire near Dunstable. Think yourself lucky that you are not hanged, with your pretended brother Albert—Mr. Cross, I mean—for the murder of your confederate Paterson. Understand that it is no good-will of mine that will let you step across the threshold of this door again; and I do not yet know whether you will be permitted to do so. I know I have got at every thing about your B—— experiment, Mr. Temple of the Muses. I know who your neighbours, the old man and woman, were. They are Bill Smith and his wife, the fences of Rosemary Lane. I know what was done with the money got by the chapel subscription. Why, you bought your railway-ticket for London yesterday out of the proceeds of the charity sermon, you consummate villain. I was never the means of hanging a man yet; but I should like to hand you over to Jack Ketch, as much as I should like to enjoy a good dinner to-day.”

I placed my back against the outer door of the secretary’s office, in order that I might compel Mr. Keeling to listen to all I had to say. He was, therefore, obliged to listen to all I have here written down, and somewhat more than I inform my reader. It was, I imagine, a difficult thing for him to control the expression of his feelings; but he did so tolerably well, with the exception of a little restlessness of the eyes, and a slight nervous movement of the countenance. There was no distinct symptom of fear, or any thing of the kind, in his breast.

About half a minute after I had done, the fellow broke silence—being obliged to say something—by observing, “This is too bad, sir; and you will have to repent addressing me in such language.”

I knew what the company wanted. I had explained to them, in addition to what I have already told the reader, how I could, no doubt, trace the pianos to their source, and have shown that they were not paid for; or that they were manifestly inferior things, not worth 25 per cent of the sum asked for them in the way of trade; and that they were only intended as a blind or cover for the fraudulent claim. I could in fact, beyond all doubt, get a conviction of arson in any criminal court; but I knew that the company merely wished to avoid paying a claim that was fraudulent; and as corporations have no conscience, or care about hunting down a gang of incendiaries, or doing any thing with the simple view of serving public policy,—knowing this, and seeing the end of my game (without offending my employers) at hand,—I just put my arm in front of the incendiary and

murderer, gave him a chair with mock politeness, and asked the secretary if he would let me have the exclusive use of his office for a few minutes. He retired on this hint. He had scarcely left the room—he had certainly not been out more than a minute—before I said to the culprit, “As you came here under the invitation of the secretary, you are free to leave, but I will give you only two hours. I am a detective officer, as I dare say you have guessed, and perhaps you have wondered that you did not know me. Now, to be frank with you, I may say that this company will, I believe, be content to let you get away, but they will not be satisfied to let you or your confederates have the chance of defrauding either its shareholders or any other company again. Your movements will be watched from this door; and in every way that you turn you may reckon that we are on your track, as we have been for more than a year and a half. If you are as wise as I take you to be, you will get out of the country as soon as possible; and if you are then but moderately shrewd, you will never come back again. Mind, I have no authority to say this, but I do say it on the strength of my own responsibility.”

I opened the door which led into the lobby of the company’s offices. I looked at Keeling, and uttered my last monosyllable in his ear—“Go.”

He went.

I had the satisfaction of reporting that within a few days he was a passenger by a steam-vessel from Southampton to New York. I had also the pleasure of announcing to the company that within a few days afterwards Mr. Cross left our shores for the same port by way of Liverpool. I further learned and stated that the venerable old man and woman at B—— had returned to their old haunts, and had been heard to complain that they had been “sold” by Messrs. Keeling and Messrs. Cross.

The company of course saved 3000*l*. The solicitor highly complimented me to my face; I also had to listen to the compliments of the secretary; and I received payment of my bill. The secretary, who was a very gentlemanly man, appeared to think that something more by way of courtesy was due to me than the payment of my charges. He said that he should bring my case before the board, and would feel personally glad if I would call on him on the following Wednesday at 11 o’clock, when he would introduce me to his directors, and no doubt he should obtain from them instructions to further

recognise the services I had rendered, not alone to that institution, but to all the fire-insurance companies of the metropolis.

I accepted this invitation and attended the meeting of the board. The members of that board were a rum lot of fellows, but to describe them might be tedious. I should like to say that a fat old man was in the chair.

As the secretary was explaining the case in detail (for it seemed that the board knew little if any thing about the matter up to this point, every thing having been done by the orders of the secretary and the solicitor, on, I should imagine, their own responsibility), this old man interrupted him by such profound remarks as “Ah! I see; very bad case—How fortunate!—Villain ought to be hung—Why did we not prosecute him?—I think we ought to have prosecuted him!”

It was not, however, for me to interfere with the conversation. I merely listened; and at the conclusion, the secretary said that he thought he would ask this gentleman (myself) to attend to-day, in order that he might receive from the board personally some expression of their sense of, what it appeared to him, my eminent services.

The old man thereupon addressed me. “Oh, yes; oh, yes,” he said. “You have done your dooty very well, my man; very clever, I think I ought to say.” And he looked round at the other members for a nod of acquiescence, which was given.

One keen, intelligent-looking man said he thought some more substantial recognition of such services as the secretary had described ought to be made, and that he should, therefore, move a vote of thanks to me; which proposal was seconded by another gentleman, and passed unanimously.

The chairman, again addressing me, said, “You see, we have given you a vote of thanks;” which I acknowledged by a simple nod of the head—not, I am afraid, very highly esteeming the compliment.

Another gentleman then rose and said, “I know that a vote of thanks is all very well; but I think we ought to make this gentleman some substantial recognition of his services. I am only a young member of the board; I do not like to move the resolution myself, but I would suggest to you, sir, as chairman, whether you should not move that a sum of money be given to the officer?”

“I don’t see that,” said the chairman, “at all. He has done very clever; but he has only done his dooty, after all, like we are doing ours; and I don’t

think we ought to spend shareholders' money in compliments to men for just doing their dooty."

I heard this remark with not very comfortable feelings, but did not say any thing.

The gentleman who had proposed the testimonial said that he could hardly agree with their worthy chairman in all he had said; and another member of the board said something to the same effect.

The chairman now seemed to think he was a little in the wrong, and to treat these remarks as a rebuke. He appeared to think he was bound to recognise my services by what, I dare say, he imagined a little act of personal generosity.

Again talking at me, he said, "Well, well! do not let us waste time about this; we cannot spend the money of the company, that I am certain about. I will make this gentleman a present myself." Then turning to me, he proceeded, "Here, my man; you have heard what has been said by the board. I will make you a present of half-a-sovereign out of my own pocket."

This marvellous act of generosity I confess quite overpowered my self-control. I could not help a passing desire to insult the old man. For the life of me, I could not smother that resolution; so, taking the half-sovereign between my fingers, I said to him, "Well, you see, sir, I agree with you. When a man has done his duty, and especially when he has been paid for it, he should not want any thing else. I don't want any thing else. Your company has paid me 310*l.* 14*s.*, which amount will quite remunerate me; and if you have no objection, sir, as I have no doubt you have got some poor relations, perhaps you will hand one of them this half-sovereign, with my compliments."

I did not wait to notice the effect of this retort upon the pursy magnate; but laying down the coin on the middle of the table, I simply and hastily said, "Good morning, sir,—good morning, gentlemen," and quitted the palatial structure which contained the head-quarters of the Triumph of Meanness Assurance Company.

A RAILWAY ACCIDENT?

A FEW years ago, and about fifteen miles from London, a gentleman named Freeling, returning from the village of A—— to the village of B——, a distance of only four miles, had to cross one of the two trunk lines of railway which runs northward from the great metropolis and intercepts populous districts of England. To tell the exact truth about this gentleman, he had been visiting a friend—a man of substance, and likewise in the horticultural, floricultural, and agricultural lines, in which Mr. Freeling's mind had an inclination to run. To tell a little more of the truth, as it is desirable to tell the whole, after examining, approving, and admiring the skill of his friend and its results, Mr. Freeling was invited by Mr. Goodwin to dinner; and I believe that the guest imbibed rather excessively of his host's spiritual stores and wines. Yet he was not insensible to sights and sounds; and if he had been, he would not have figured as a character in this narrative.

The way of Mr. Freeling from his friend's house to his own home lay, after crossing the railway, through a narrow lane not far from a station. Happily for him however, perhaps, he was not aware that, near the footpath across the line (that is, the railway-line), there had been a great smash about the time that the two rustic amateurs had been discussing the good cheer of the host—somewhere about four hours before the incidents I am about to describe. The *débris* had been, however, cleared up before our friend passed the scene of the catastrophe, and none of its relics were visible in the moonlight. He had not proceeded far beyond the rails, when he thought he heard a low sound very like a groan; and if he were any judge of such things (he reasoned), it was the moaning of a man or woman in pain. He paused; he listened. All was silent. He moved on a pace or two; listened again; and the wind brought him something like a repetition of the moan. Could he be mistaken? he asked himself. No; that was a human voice; perhaps some drunken wretch. If so, the first thought which suggested itself was, that he should turn back and see that the man was not lying in the track of the iron horse or its carriages. Second thoughts are said to be the best,—and, if selfishness be better than disinterestedness, Mr. Freeling's second thoughts were better than his first. What did it matter to him, he argued with

himself, if people got drunk? They must suffer for it, was the second thought of the half-drunken man. So he trudged along again; but the sound, louder this time, overtook him once more. He was not essentially an unkind man; and although home had peculiar attractions for him in his then condition, he was obliged by the force of his human nature to pause.

Another groan. There could be no mistake about it. A poor wretch was lying somewhere near him in evident pain. He shouted:

“Holloa! what is the matter?”

A feeble groan responded.

“Where are you?” he cried.

Again a moan.

It was more than decent, although half-drunken, humanity could resist. He turned back in the direction of the railway a few steps. Then he paused, and once more a dismal sound greeted his ear.

“Some poor fellow,” the traveller said to himself, “must be lying on the railway in a dying state. What can I do? The nearest station, B——, is *two* miles away; the nearest house is two miles. Still, I must find where he is lying, and what is the matter with him, and do what I can to help him.”

This resolution taken, he walked back, ever and anon pausing to listen, and now and then guided by the plaintive cry of agony.

At length, after reaching the gate which abutted on the railway, he paused and listened for another cry to guide him in turning right or left. A moment supplied the indication he required. He turned to the left, and proceeded rapidly a distance of three hundred yards, when he met an obstruction to his course, against which he stumbled. A shriek, or something like it, followed. It was that of a prostrate man whose voice he had so frequently heard.

Mr. Freeling bent over the poor sufferer, and learnt enough to satisfy himself that an accident had happened to this man on the railway, and that medical assistance and attention were required.

The situation and its incidents had a beneficial effect upon the intoxicated man,—they roused his senses. In five minutes he was as sober as he had ever been in his life. Carefully removing the limbs of the prostrate body out of the way of further immediate danger, he ran along the course of the railway until he reached a station, where he learnt the particulars of a

collision; but was informed that all the passengers had been removed, most of them, if not all, being well enough to proceed on their journey to their respective homes. He insisted that there must have been at least one exception to this rule, which the officials at the station had not observed; and they did not require any further proof of their oversight than that he supplied.

With lanterns, and with the means of removing the wounded passenger, two porters, and two other men who were pressed into the service, walked with our friend to the spot where he had found the injured man.

He was still lying there, moaning and groaning with greater vigour than before. He was lifted with all the gentleness the four bearers were capable of, and carried by stages along the line back again to the station.

It was fortunate that, closely adjacent to this station, there was an hotel—a small, unpretentious establishment, which nobody who was perfectly master of his own actions would think of selecting for a temporary abode if he had the means of paying for his entertainment and refreshment elsewhere. Such as it was, however, it was deemed expedient to rest the burden under its shelter. The poor man was carried into the hostelry, and placed on a cosy bed, that formed the leading part of the furniture of a best bedroom.

He now rallied. He called for brandy, and was supplied with a small portion of a liquor probably distilled from potatoes in London, but retailed as the finest cognac.

The liquor seemed to have a good effect on the wounded traveller. After a few minutes' consciousness, articulation was restored under its genial influence. He asked one of the people in attendance to take from his breast-pocket a pocket-book, and from that pocket-book to take out a letter, the envelope of which gave his address:

“Mr. Ephraham Sweetman,

“19 — Street, Pimlico.”

The injured traveller was able to sustain a brief conversation.

“Is this your address, my good man?”

“Yes,” was the feeble reply.

“Are you very much injured?”

“Yes,” was again slowly and faintly articulated.

“Are these your name and address?” was asked by another person; and the interrogator held before the eyes of the wounded passenger the envelope of the letter extracted from his pocket.

A smile was accepted as a reply in the affirmative.

“We had better send for Dr. Scalpel,” observed a railway-porter to an agricultural labourer.

The poor fellow’s face betrayed signs of evident dissatisfaction. He dropped his head, as if fainting.

“We had better send for the doctor.”

“No,” escaped from the lips of the man upon the bed.

“What can we do?” exclaimed another of the party.

“Dr. Jones,” the wounded man hurriedly but faintly exclaimed.

“Can you tell us where he lives?”

No reply was immediately given; and as the poor fellow seemed unable to bear the weight of his own chest and brain, they laid his head upon the pillow.

The station-master, who had been awakened from his natural sleep, now entered the room; and having been informed what had taken place, he asked for the London Directory, which, by another happy circumstance, formed part of the furniture of the hotel. It was so discovered that in the street in which the poor fellow had been ascertained to dwell, one “Anthony Jones, M.R.C.S.,” also had a local habitation—about twenty doors from his own patient’s residence.

Dr. Jones was accordingly telegraphed for, and informed when the next down-train started from London.

Dr. Jones was an attentive man, and on receipt of the message he lost no time in repairing to the station where his neighbour was deposited.

On his arrival the patient revived a little, and on seeing the face of his own medical man he recovered sufficiently to indicate that the pain proceeded from the neighbourhood of his ribs.

The surgeon desired the men to leave, and asked for the assistance of a woman until morning. Again the beneficent telegraph was made use of. A message sent to London requested Mrs. Brandyface, who lived somewhere

in Pimlico, to come down to the B—— Station Hotel, informing her at what time the next train started from London in the morning.

These directions having been given, and the clothes of the unfortunate patient having been cut and torn off his body, he was put to bed, and made as comfortable as might be—the doctor administering something in a tumbler of water from a bottle which he carried in his pocket. He then told the woman of the house that she might retire after supplying him with some more of the London cognac before mentioned, for his own use during the night. The doctor sat up with his patient until Mrs. Brandyface arrived in the morning, when he handed him over to the care and attention of his own nurse.

Next morning Dr. Attrabilious, chief medical officer and surgeon extraordinary to the railway company, also came down by express train to see what he could do in the way of restoring the patient's health, patching up his wounds, and—most important of all—making an arrangement for compensation by the company, whom he served in the dual capacity of doctor and compensation negotiator, when the negligence of their servants had caused any mischief.

Dr. Attrabilious was of course admitted to the patient's bedside, to the evident dissatisfaction of his faithful nurse. The patient, however, would have nothing to say to him when he had explained that he came on behalf of the railway company. The poor fellow declared that nobody should attend him but his own regular medical man or surgeon. In vain Dr. Attrabilious pressed his services. The damaged passenger manifested an aversion to receive his attentions; and the nurse said she thought it was not right to force himself on the helpless gentleman when he was not wanted, as Dr. Jones was known to all Pimlico, if not all the world, as a very clever man.

This scene tended to disturb the patient's equanimity. The outrage of the nurse's feelings, or it might be prejudices, led to the discomfiture of Dr. Attrabilious, who was pushed out of the room amid a torrent of abuse for trying to kill the sufferer by impertinent officiousness. Dr. Attrabilious left the place in dudgeon, with all the humility of one who felt himself snubbed to the last extent and very nearly extinguished.

Dr. Jones telegraphed about mid-day to state that pressing engagements would not permit him to reach the village again until towards evening; but

that in the mean time he would send—and he did send by the next train—a small parcel of medicine.

The patient was attended with all possible care by Mrs. Brandyface and Dr. Jones for several days, when, on request to the company, a special train was provided, and in a carriage well supplied with all that could give ease to the invalid traveller he was removed to London and taken to his own house.

After some time, perhaps about a month, the patient was sufficiently restored to health to go about his ordinary business, whatever that may have been. A letter was sent by his solicitor to the company demanding a good round sum as compensation for three broken ribs, sundry contusions, permanent damage to the animal economy of the sufferer, and his past and future detriment in business. The company made an offer of 25*l.* in settlement, which was declined. A writ was issued out of the Court of Queen's Bench. The company defended the proceedings which were taken, and the action was ultimately set down for trial.

At the trial, Mr. Capulet Attic, Q.C., appeared as the leading counsel for the plaintiff, and in the course of his opening speech very clearly stated the facts already narrated. He dwelt with considerable emphasis upon the negligence of the company's servants, not only in allowing the accident to occur, which he said arose from the most patent and the grossest carelessness, but also for the, if possible, still greater and still more unpardonable negligence in allowing his unfortunate client the plaintiff to remain upon the ground for so many hours without attendance. He referred to the accidental detention of Mr. Freeling over his friend's dinner-table, and his journey homewards across the railway, which the eloquent lawyer called a special interposition of Providence, and without which his unfortunate client, the plaintiff, would in all probability have died a lingering death from cold, damp, and hunger. He bitterly censured the company for the employment of Dr. Attrabilious, not alone as a medical attendant, in order to dispense mercy to the wounded or injured plaintiff, but also no doubt for a purpose that he, Dr. Attrabilious, had frequently been employed to serve,—namely, effecting a compromise between the plaintiff and the company. He further condemned, in bitter terms, the shabby and mean offer of compromise which, since the action had been threatened, was made by the directors through their solicitor. Lastly, he confidently appealed to the jury to bestow upon his unfortunate client

substantial damages; and sat down smiling confidently to the jurymen, as if he expected to obtain all that he had asked.

Of the evidence it is needless to speak at length. The gentleman who found the unfortunate plaintiff described, like a perfectly honest and worthy man, the condition in which he was at the time. The cross-examination of this witness was almost a matter of form. How could any thing be expected from him in that way that would not strengthen the plaintiff's case? He was a perfectly honest and impartial man. He was indeed the witness of the truth as far as in him lay. The doctor and the nurse in attendance upon the plaintiff also gave their evidence very clearly, although endeavours were made somewhat to shake their testimony, and to prove that the injuries had not been so severe as was represented. Still not much was done by the defence, and it may be said that the plaintiff made out his case.

The defendants' counsel, Mr. Pompous Blower, Q.C., made an energetic appeal to the court and jury; but what could he make out on their behalf in such a case? The most he could do was to throw back the taunts of his learned friend Mr. Capulet Attic, and proclaim, in sonorous and round periods, the philanthropic character of the corporation he represented. He defended Dr. Attrabilious, or at least inveighed against the condemnation of that scientific gentleman in his absence. The learned counsel denied that Dr. Attrabilious had ever been so employed as was represented, and contended that the company had no other object in sending him to the bedside of the smashed or mutilated traveller on their line, than to relieve his pain and do the best he could for the sufferer. Dr. Attrabilious was not, however, called as a witness for the defence, and the plaintiff of course did not want him; so the allegation, that the doctor had on former occasions played the part of negotiator in the settlement of claims against his masters, did not receive such a contradiction as it might have had, and it might have been desirable for them to render.

The judge summed up, and said that it appeared to him very like an undefended cause; but he urged the jury not to suffer their judgment to be led captive by the eloquence of Mr. Capulet Attic, who had, however, acted in all respects very properly for the plaintiff, in so trying to run away with their senses. The plaintiff seemed to be entitled, almost on the admission of the company, to fair and reasonable compensation; but that was all. The presumed wealth of a great corporation like the —— Railway Company was not a fact that should lay them open to extortion, and he would tell the

jury that excessive damages might bear the complexion of meditated or of unconscious injustice.

The jury rose in their box, turned round face to face, had a little to say to one another during perhaps two or three minutes' time, and then returned a verdict for the plaintiff, with 500*l.* damages.

The company was somewhat taken aback by the largeness of these damages. The truth is, their case had not been got up so patiently and carefully as it might have been. A proper investigation into the antecedents and mode of life of the plaintiff, by any moderately intelligent lawyer's clerk, would have enabled them to lay such facts before the jury as must have reduced his claim to less than one-fifth of the amount he got,—if such inquiry had not led the investigator into a track for entirely exploding the plaintiff's case.

The defendants, as a random experiment, determined to move for a new trial in this case. A rule absolute for a new trial was granted, upon condition that they brought into court enough money to abide the event of such new trial—that is to say, to cover damages and costs. The railway company had before now derived immense advantages by delay, and were hopeful that time would bring some advantage in this case—as it did.

The success which had attended my investigations on former occasions in a somewhat similar case or two, led to my being employed on the present.

I had not much difficulty in effecting my object. I had several clues to the parties. I almost suspected, from the nature of the case, that the affair was altogether a conspiracy to defraud the company—and I was right in my suspicions.

The plaintiff had not been injured. The collision had taken place some time before his arrival on the spot. The principal guard of the train in which the collision took place was in the swindle. He professed to telegraph on behalf of a passenger who had been somewhat bruised to a friend in London, which message (in order to divert suspicion) ran thus: "Collision at B——. I am not hurt. All right." Upon this hint the plaintiff hastily communicated with one or two of his companions in such frauds, and hastened down to the spot in a gig hired from a livery stable. The vehicle deposited him about a mile from the place where the accident occurred, which had, in the mean time, been ascertained with precision. The gig was

then driven back by a companion, and the plaintiff slunk off to the margin of the line, and waited for an opportunity to sigh and groan with advantage.

The return home of Mr. Freeling, who had been seen by the watchful swindler, supplied the opportunity he wanted; and the plaintiff accordingly made the noises already described, which attracted the attention of that gentleman. Of course the scoundrel knew that the railway company would, as usual, send their doctor. He knew how to get over that little difficulty. He had his confederates, and he knew how to make the most of the unscrupulous tactics of the company in dealing with the real victims of railway collisions. He saw that he could turn Dr. Attrabilious's visit to good account by supplying it to Mr. Capulet Attic as one of the pegs for an oratorical display. The Dr. Jones who was sent for was a confederate. He belonged to the gang, and of course would have shared the spoil. The nurse was also in the swindle. The arrangement for the division of the spoil remunerated her more liberally than nurses are generally paid for their services. In fact the whole thing was a conspiracy.

I laid all these circumstances before the company's solicitors in my report. It was, however, resolved, as we had the whole set clearly in our grasp, not to arrest them immediately, but to await the progress of events, and see if the next combination of the gang for a like purpose did not reveal to us a few more of its members. It did so. I discovered that the doctor in attendance upon a damaged railway traveller in Lancashire, about two months afterwards, and the plaintiff in the first case, visited as friends the intended plaintiff in the second place. Just as our plans were ripe for execution, we were, however, forestalled by the arrest of five members of the dangerous confederacy on two gigantic cases—one for forgery, and the rest for a great railway robbery, which had been suddenly disclosed to the police authorities by a wretch who craved vengeance upon an associate in the gang because he had been successful in carrying off the affections of "a lady" with whom the informer had cohabited. Of these men captured, all were found guilty on the strongest testimony, got at through the informer by officers who laid traps under his guidance, and by surrounding circumstances to which he had assisted them. One of the parties to my action—that is, the doctor—made good his escape. I believe he went to America.

A PATRIOTIC BARBER IN FAULT

A FEW years ago I was employed to watch “the other side” in a hotly contested election. It was my first engagement of the kind, and I sharpened my wits in order that I might fairly earn my fee,—which the reader may be glad to know was a handsome one. Perhaps he may also be pleased to learn that I am an impartial man. It is true that, on the occasion I now speak of, I was employed by the agent of the Liberal candidate; but I have, on other subsequent occasions, rendered service, and I believe good service, to Conservative gentlemen who now wear the title of M.P. During this election many curious little incidents took place, as they always do at elections, and one of them I propose to relate. By the way, there is nothing which quickens human ingenuity like a vigorous electioneering struggle. Wit, humour, desperate practical joking, and ingenious stratagems, crowd in such exciting profusion, that sometimes the strict rules of moral propriety are hidden or get confused before the eyes of the parties concerned. Sometimes I think I behaved unhandsomely towards the barber of whom I am about to speak. At other times I think it served him right. The reader shall decide between my first and my second thoughts on this head.

In the borough of W—— there lived one John Shufflebotham, a barber who earned a livelihood—that is to say, earned or got money to buy scanty food, little raiment, plenty of beer, and a liberal supply of stronger waters for the consumption of himself and Mrs. Shufflebotham—by the exercise of his trade, or “profession,” as he styled it, and it was believed in no other way. This barber had a reputation for shaving his customers as clean as they could wish for a penny each—and he would do the job at half the price for regular patrons—and for cropping any rough and stubborn head of hair, popular tradition, and the tariff on his door-post, declared threepence to be a fixed or immovable charge. This, however, was not the only character which John Shufflebotham enjoyed. He was esteemed a man of principle; thoroughly incorruptible. Not a breath of suspicion of his political honesty had ever been floated on the turbid atmosphere of W—— at the most prying time—say just after the settlement of accounts between the “free and independent voters” and the candidates. I was told that John Shufflebotham wouldn’t require to be looked after. He had never taken a bribe, and to offer

him one would insure any man an ignominious chastisement. The barber was a stout man, and although beer or whisky had perhaps softened his brain a little, and rendered his muscles somewhat flaccid, there was strength enough in his legs to wield a heavy boot with almost terrible force.

This barber had acquired a degree of influence over sterling, honest working men by his reputed incorruptibility to an extent that he would not otherwise have gained, so that it became rather important to obtain his support on behalf of our candidate.

At the commencement of the struggle it was believed that John Shufflebotham would, as a matter of course, vote for our candidate; but this was a miscalculation. It appeared that something had turned the current of his political sympathies. He was down in the former poll-book as having voted for the Liberals, and so it was expected that he would vote again, bringing with him to the hustings about twenty honest fellows who believed in him.

On the contrary, he soon intimated that he had come to believe the Whigs were a little worse than the Tories. He did not think they cared, either of them, for poor working men like him or any of his customers, but that they (the Whigs and Tories) were both thieves. If he must vote, he would turn and turn about. Perhaps he should be inclined to give the Tories a turn this time; but he didn't know. He wasn't at all sure about it either way.

This man's defection from our cause produced a little alarm. The feeling of which he appeared to be the exponent was also, upon inquiry, found rather more extensive than was at first thought possible. It ran beyond the pale or circle of the barber's supposed influence; and to make matters rather worse, the barber, when assailed by a patron for apostasy, or urged to stand by his old colours, was compelled, as he said, to argufy in his own justification, which attracted other customers to his house, and it became the arena of controversy. John Shufflebotham was acquiring a reputation for oratory, in addition to his other qualities.

It was not my proper business to win over friends. My function was to look after foes; but I was taken into confidence about the case of John Shufflebotham. The chief agent of the candidate quoted the observation of some old dead statesman about every man having his price, and I agreed with him to learn what the price of the vote and influence of John

Shufflebotham might be. This view was arrived at by our agent only the day before polling, and it was then overruled by one or two people in the secrets of the head committee-room, who had a control over the incidents of the election.

Next day the polling began. It was a day of wild excitement. Beer and spirits and food were distributed *ad libitum* to the whole population by one side and the other. Drunkenness was the only general characteristic of civilisation in that parliamentary borough by twelve o'clock on the day for electing one of the prime wisdoms of the country to represent that town in the Legislature of Great Britain. Money was being spent profusely in bribes; voters had been "bottled"—that is to say, made drunk and then fastened up in a public or other house. These were the men who could not be induced to vote for us, or who dared not so vote because of something or other, but who voluntarily submitted to this process as a mid-way of service to us. Some electors were at any risk drugged, and hindered from obeying the dictates of political feeling. Some men were taken out of the town in vehicles. Respectability of every kind hid its head. Ruffianism and common vice of every kind had all their own way.

John Shufflebotham had not yet voted, nor had many of his friends. The Tories had lauded him as "a sterling, honest, worthy, good fellow;" as "a man of great political sagacity, who had yielded to the voice of reason," and "as one who had renounced the errors of political life, and determined to assert, in his own person, the rights of matured conscience."

They had fawned upon him; they had coaxed and wheedled him; they had held out every kind of future inducement and deferred benefit before his eyes—but John Shufflebotham had not been induced to give a vote, or the pledge of a vote, to the Conservative. He had made no distinct or visible sign of yielding to us, still it was observed that he had not been so lavish in the censure of our candidate during the previous day, or during the day of election, as before.

We had been prepared for his hostility, but hardly knew what to do with his neutrality. We had expected to find him leading a body of voters to the hustings for the Tories. Jem Smash, the head of our best gang of prizefighters, had accordingly received instructions to bestow the courtesy of his underlings upon the barber and the barber's friends.

Some of the liberal tradesmen of the borough of W—— were gloating over the satisfaction of seeing the barber “doubled up,” and a few of his believers horribly maltreated. This gratification had, up to the present moment, been denied them; and after much deliberation on the subject, it was not thought safe to commence an attack upon the humble abode of the recalcitrant worthy. Such a step might have brought some of our top people into disgrace, as an attorney, who had been retained at a heavy cost to advise our candidate and his friends from time to time how much iniquity they might perform without danger to their own persons or purses, was good enough to inform them. Such a proceeding, dictated or suggested in the committee-room, might be brought home to its occupants, and involve a lot of respectabilities as well as ruffians concerned therein to a mingled punishment.

As we could not retaliate upon Barber Shufflebotham for his obstinacy, apostasy, or whatever it was, we determined to see if he could not be won or bought over. The lawyer, and I, and the principal agent, who was not a lawyer, went into a little room to discuss this matter, and ultimately settled that I should first approach the barber. I did so; and as I do not want to incur a charge of immodesty from the reader’s lips, I omit an explanation of my visit. Let it be simply stated that I found the barber vulnerable on the statesmanlike point. I ascertained that he had a price; and the price was not, after all, a very large one, seeing the extent of the influence which he had to give, as well as his vote. The price was 100*l*. I struck the bargain with him—with a reservation that I hope may be forgiven, as well as the trick I also meditated and carried out.

One thing the barber stipulated. Appearances must be somehow saved, and (clever dog he was) he suggested to me how that could be done. There were two points in the political programme of the candidate which, John Shufflebotham and his friends contended a gentleman worthy of a vote ought to be prepared to support—one was universal suffrage, the other was vote by ballot. The barber said his men must be told that the candidate would meet them at least half-way. If this were arranged, and he were paid 100*l*., he would recommend his friends to vote with him for the Liberal. I agreed, not that the candidate should make these professions, but that somebody on his behalf should give that explanation to Shufflebotham and his immediate tail or circle.

I went back to the committee-room, and explained to the attorney and agent how I proposed to act. They laughed outright as long as they could afford time to laugh, which was not much; for minutes were precious, as my scheme required an hour and a half, or perhaps two hours, for the working out. I went back to the barber, and arranged that he should jump into a cab and run over the town, which was not large, and call his friends together at the Pig and Whistle in Backstairs Street, to receive a communication from the Liberal candidate.

I looked at my watch. It was then half-past twelve. The poll closed at four. There was a train from the town of W—— to the town of B——, which started at 12:45. It would not take long to cover that distance in a carriage drawn by the iron horse. There was a train returning from B—— to W—— at 2 p.m. precisely. That would do. I also arranged that an orator who had been employed for the purpose of addressing the political intellect of the free and independent electors of W——, should attend the Pig and Whistle on behalf of our candidate, and make one of his smooth, flowing, rapid, ornate addresses.

This gentleman could talk against time. He was to spout until he had “the office” to shut up his limpid stream of talk.

The orator did his business first rate. From what I recollect of that speech, I wonder that he deserted his title of barrister-at-law, turned aside from the ambition of wearing M.P. after his own name at some future date, and settled down, as he did, into the secretary of some association having its location eastward of the Royal Exchange.

Our hired barrister-at-law addressed the Shufflebotham circle as honest, noble fellows, whose adherence to principle was one of the most refreshing examples of political determination he had ever met in his life. He praised Shufflebotham as a man who had won an influence over his fellow-men, which a tyrant might envy, but could never command, through a stern and inflexible course of honest industry spread over an ample term of existence. Shufflebotham here turned a little red in the face; some people thought him modest, and took that crimson to be a blush. No doubt it was a blush, but whether of honesty or of shame I need not stay to point out.

After the orator had been speaking for some time, my man returned, and I received an intimation of that fact. The orator also got a nod and a very slight wink from me, when he stated that he had been requested to make an

explanation to them, but he felt somewhat exhausted by what he had already done, and he therefore asked their permission to leave that explanation to be made by his friend Mr. Yellowly, who sat by his side; and then, after a peroration, in which he talked a good deal about the moon, and the stars, and the four winds of heaven, and the British Lion, and the flag that braved a thousand years, and honest industry, he sat down amid such applause as I have only heard at the Pig and Whistle and in very large assemblies.

Mr. Yellowly, the attorney, rose, and said that he regretted he had not the eloquence of his learned friend; also that, as he was a plain man of business, he would address himself to the explanation he had to offer in very few words. The fact he was intrusted to announce, he hoped he might do in confidence; it was, that although our candidate could not go so far as universal suffrage, that most honourable and enlightened gentleman would go a long way in that direction, much longer than he even thought it prudent to express upon the hustings his intentions to go, lest he should excite the prejudices of the middle classes, and secure, by an indiscreet frankness, the return of their Tory antagonist. In reply to an inquiry, Mr. Yellowly said he could not exactly tell how far the candidate would go in the extension of the franchise, but no doubt he would go as far as they desired—say to the admission within the pale of the British constitution of the 2l. 10s. householders. As for the ballot—that most important political principle—the Liberal candidate would vote for such a shield being drawn over the poor but honest elector.

Shufflebotham played his part well—the rascal! He affected to be a little doubtful unless the explanation was made in public. Mr. Yellowly strongly appealed to the common sense of his auditors not to peril the election just at this moment (when the Tories were four ahead of the Liberals) by so indiscreet a demand. One simple-hearted man thought Shufflebotham was a little too particular and suspicious. He thought the gentleman, Mr. Yellowly, was right. Shufflebotham said he did not want to be a dictator. He was satisfied, if the others were. I, at that moment, suggested that they had better not be long making up their minds, for it was now a quarter past three o'clock, and the poll closed at four. It was then speedily settled that Shufflebotham and his men should, as a body, go up and vote for the Liberal candidate.

Our chief agent here craved five minutes—saying he thought they ought to have a band of music. He secretly determined to grace the final *coup* by a demonstration in which three bands were to play their part. He also privately determined to bring Jem Smash, and all his fighting men, and all the other hired ruffians, to guard our new contingent, in case the enemy, suspecting a trick, should set their forces in battle array against our unprotected citizens. We should lose the election if even a short delay arose from an attack upon us. Shufflebotham thought they might as well have a little music.

I was not at all sorry it was so arranged. I wanted to have a few words with Shufflebotham by himself, and to let him have a taste of my quality and smartness, or perhaps I should rather say, whet his appetite for that taste.

The barber led me outside to the yard of the Pig and Whistle, and addressing me, inquired, “I suppose you have got the money all right?”

“Oh, yes,” I replied.

“Will you give it us, then?”

“No,” I said; “I cannot do that until you and your men have voted, you know.”

“How am I to know that you will give it me then? No d—tricks, or by G—your gentleman” (meaning the candidate) “shall suffer for it, as true as my name’s John Shufflebotham.”

Things had worked more felicitously than I had anticipated, or than my plans were estimated to work. I now saw that the patriotic barber was already outwitted, if I chose to break faith with him at this point. He was bound to vote as his men did, or if he slunk away he had secured them for us. It was now impossible to invent another excuse to those truly honest fellows for reversing their collective decision. Still I thought it would be as well to keep in with the barber to the last. I wanted to let him and some people see how neatly I could work out the stratagem.

“Well, I think you have as much right to trust me as I have to trust you,” I said; “but I don’t mind meeting you half-way. I don’t care whether you do or not, though. I know those honest fellows will go up and vote for our man. You cannot prevent that now, can you, Mr. Shufflebotham? If you try to spoil our game (which I don’t think you can spoil), our bargain is off, and

I sha'n't feel bound to give you any thing, whether you succeed in upsetting it or not."

Shufflebotham saw that he was practically done, in the matter of security at least, and that he must entirely trust in me; so he agreed to meet me half-way.

"What do you mean to do, then?" said Shufflebotham, and as he spoke the sound of wind-instruments floated on the summer breeze.

It was evident that the musicians were coming in the direction of the Pig and Whistle.

I was afraid of the finishing touches of my artifice being a little marred, so I hastily said,

"Well, look here: here's a hundred-pound note. I divide it in halves. I give you one half now" (the musicians stopped, and I had to make this speech a little longer, so as to spin out the moments, and I proceeded to say slowly): "To-morrow morning, as early as you like, you come up to the central committee-room and ask for me, and I will give you the other half. I might say this evening. It would be quite as well, perhaps; but some people with sharp eyes may be about. Now mind, Shufflebotham, don't tell any one of this. I would not have it known for the whole world. It would do you harm, you know. Keep it dark, like the blackest secret of our lives. Don't get drunk to-night, or you will let it out."

The musicians had arrived within a few feet of the door of the Pig and Whistle. The barber had been waiting in terrible anxiety for me to hand him over his half security, and I now wanted to do it without delay. The note, which was for 100*l.*, had been divided in halves, and was ready for my device. I handed him over his half, which he rapidly thrust into his trousers-pocket, and left me as he might leave a tormentor, shouting out, "Come along, lads, and hear the music."

The procession moved forward amid deafening huzzas, and a volume of what I must, I suppose, as a matter of courtesy, call music, and the bewilderment of many spectators. Shufflebotham shouted, in well-feigned glee,

"All right, my lads; he's a right 'un. We are all going to vote for him;" and sundry other more extravagant exclamations.

Twenty-three votes were recorded by ten minutes to four by John Shufflebotham and his friends, without let or hindrance from Tory

prizefighters, roughs, or any other men. Shufflebotham did get drunk that night, and I neither saw nor heard any more of him until next morning.

Next day, about ten o'clock in the morning, John Shufflebotham called upon me at the committee-room as arranged. I preferred to have the attorney and the agent with me at this interview.

"Well, John Shufflebotham," I was the first to say, "I suppose you have come for the other half of your note?"

The patriotic barber, who had sold his vote and influence, looked a little sheepish and timid.

I said, "It is all right. These gentlemen are the lawyers; they know all about every thing connected with the election, and they are of course in our secret."

"They know what I want, then?"

"Yes, here it is," I observed, handing over to him the other half of the note which he sought; but as I did so, I said, "It is of no use to you. It is a Bank-of-Elegance note, which another man of your trade in B—— gives away in the street."

Whether Shufflebotham had examined the first half of his note, I cannot say; but I had caused the print to be divided in such a way (to guard against accidents) that he would see the words "Bank of E," and no more of the title of the establishment from which it purported to have been issued, and he was too illiterate or inexperienced in bank-notes to discover that the paper itself was not of the kind made for the Old Lady of Threadneedle Street.

The patriotic barber was thunderstruck. He was speechless for a moment or two with disappointment and mortification. When he had partly recovered himself, he stamped once, and swore in about two sentences that we were plunderers, and that he would have us prosecuted for circulating bad money. Our attorney thought this a good joke. It was one of a sort that he could appreciate; so drawing upon his imagination for his law, by way of retort Mr. Yellowly informed Mr. Shufflebotham that he had been treated as he deserved, that he had "better keep a quiet tongue in his head," that, at all events, he must behave himself in that room, or he would be kicked out by one of our roughs in close attendance, and that he might also get transported for bribery.

The barber gnashed his teeth, and went away not rejoicing. I believe he has voted twice for the Tories since that day, without fee or reward—unless

vengeance upon his Liberal betrayers was his motive and his compensation.

A ROMANCE OF SOCIAL LIFE.

ABOUT four years ago there lived, in the neighbourhood of Kentish Town, a wedded couple of the name of Green.

Mr. Green was a merchant, carrying on business in the City in co-partnership with a German gentleman; and in the enjoyment of a good income from "a house" at the head of which it was his pride to stand.

The couple had not been long united in the holy bonds of matrimony. When he married, he considered himself fortunate in obtaining for his partner a pretty little brunette of a woman, somewhere about thirty years of age, and of no mean accomplishments. With this lady for his wife, Mr. Green lived for a period of three years in an easy and comfortable, not to say happy or blissful, state. The couple had no children; but with that exception they had all the ingredients which should contribute to the material and social happiness of human beings.

The disparity in age between Mr. and Mrs. Green was perhaps a circumstance that contributed to limit the sources of affection; but, as every body said, they jogged along very cheerily, and the serenity and calmness of their lives made them the objects of a good deal of envy.

Mrs. Green had been the daughter of a confidential clerk to her husband. She had lost her mother early in life, and her father died when she was but eighteen years of age. His salary in the house of Messrs. Green and Schnackwether had been, for a long period prior to his death, very liberal, and he might, with reasonable economy, have saved a few hundreds of pounds out of it if he had been so inclined. He ought, certainly, to have left some provision behind him in the shape of a life assurance, but he did not. He lived entirely up to, or somewhat beyond, his means. Miss Thomson, his daughter, was consequently obliged to earn her subsequent livelihood, which she did as a daily governess. Her experience in this vocation was not, I dare say, much unlike the experience of other young women in that position, of which the reader will have a tolerably accurate notion, and therefore I will abstain from describing it. It may be enough to say, that it was a cheerless, hard, and mortifying experience. She confessed that rebuffs and petty insults shut up, and the wearing influence of consecutive labour dried up, the wells of female emotion, gave a certain piquancy or sharpness

to her thoughts, rendered her, indeed, distrustful of the world, and cynical, if not calculating and selfish.

During her girlhood, while her father lived, and after his death, but before her marriage, Mrs. Green had received many kindnesses from her late parent's master. He was attached to his clerk Thomson by that sort of attachment, and to that extent, which long and faithful service begets in the mind of an employer.

To do the father of Mrs. Green simple justice, it must be stated that he had never robbed; peculated, or been in the slightest degree unfaithful to the house he served, or its members.

Just before he died, the clerk received a promise from his master, Mr. Green, that little Helen should want for nothing as long as she lived, which promise was kept during her subsequent spinsterhood by inquiries, every quarter, with methodical exactness, how she was getting on, and what she wanted; answers to which questions were frankly given by her on all occasions, and betrayed to the merchant some requirement on her part every three months. It would now be a dress or a bonnet; it would on another occasion be the means of paying a quarter's rent of her apartments; it would again be something else. The article itself, or a cheque for its purchase or satisfaction, was uniformly forthcoming.

In this way a communication had been always maintained from the day of Thomson's death to the day of Miss Thomson's marriage between the young woman and her subsequent husband.

The courtship of the merchant was very prosaic. How long he had made up his mind that little Helen should be his wife, or at least have the chance of becoming his wife, is more than I can tell; but certain it is, that on one quarter-day—I mean her quarter-day—she received a note, in which she was invited to the house of the merchant. He said in this letter of invitation that he was very anxious to know how she was getting on, and what her prospects were; in fact, he said he was anxious to redeem the promise he had given to her dying father by the inquiries he had to make, and the intention he had formed of providing, if he could, for her welfare as long as she lived,

The last sentence was the only clue offered to the design of her benefactor. That clue was enough. It showed to her acute and reflecting mind what she might expect from the merchant, and she was thereby

enabled to survey at her leisure, before the appointed interview, the prospect laid open to her. She balanced in her own mind all the apparent advantages and all the disadvantages of becoming Mrs. Green.

She had no very high respect for Mr. Green's character,—yet she had no aversion to him. He was, indeed, one of those easy-going, even-natured men, who neither arouse affection nor excite the opposite of love. He was by no means the ideal which she had formed of a husband. Yet how could she, who had been a poor daily governess all her life, release her ambition in this respect? She had indulged the hope, as I dare say most young women have hoped, to marry a man handsome, educated, and of gentlemanly training—with a fortune. She would have been satisfied with a man of good standing or prospects in either one of the liberal professions—the army, navy, the law, or even the church. But a dispassionate consideration of Mr. Green's letter drove away all the phantasms of such ambition. She came, by a process of the severest reasoning, to the conclusion, in the first place, that, if she rejected the merchant's intended proposal, she might offend him. That was not, after all, so very serious a matter, as she was not very largely dependent upon his bounty; yet she could hardly afford to lose a friend. This conclusion led her to survey the bright side of Mr. Green's intended proposal. She would certainly, as Mrs. Green, be mistress of a liberal establishment. His years denied the reasonable prospect of her ever having a child. Yet this young woman, hardened by experience, saw a compensation for that denial of a true woman's hope in the freedom from a mother's cares and troubles. It was something to get rid of the drudgery of toil, and escape the snubbing and rebuffs of her present vocation. "Yes," at length she said to herself, in forming her resolution, "I might do worse than become Mrs. Green."

There was only one small difficulty—there was a prior attachment. "Well," she said to herself, "I shall have to get rid of Edward. That is not so very difficult either. I do not think he would break his heart about it. I know I should not break mine if he were to throw me off. I do not believe in broken hearts. He cannot bring an action against me for breach of promise of marriage. That is a pleasant thing to know. I heard Mr. Jones, who is a lawyer, telling his wife at the tea-table only the other evening, that a gentleman never got any good by that, and I think he said a farthing was about the price a gentleman's damages would always be assessed at. Well, I could pay that sum without much injury to my own purse; and if any

proceedings should be brought against my husband after I have married him. I suppose he would be responsible for them, among my other obligations, but I would pay that sum out of my pin-money.”

Miss Thomson agreed within herself to become Mrs. Green, and had so far realised this speculation in the lottery of life, that she began to sketch her future home, make arrangements for her bridal trousseau, &c., within ten minutes after forming her resolution.

Miss Thomson’s anticipations were correct. Her benefactor told her he had noticed she had been a very hard-working girl. The way she had striven to keep herself as a lady out of her own earnings, with such little assistance as he had felt bound to render her, reflected the highest possible credit upon her. He had noticed her conduct—he might say with admiration. He had never beheld such a combination of all the virtues which make up a good woman as he had seen in her. Now, he hoped he should not frighten or startle her by a communication that he was going to make. He had been living a lonely life, she was aware. He was not married. She knew he had no sister who could manage his household, and secure him those attentions and comforts in which he thought he might reasonably indulge after having been, he might say, a very successful man in trade.

During his speech Mr. Green stammered a little, and betrayed an unusual hesitation. At this point he had greater difficulty in articulation.

However, he proceeded to say that his admiration for her, and his belief in her virtues, and the other circumstances he had mentioned, had led him to offer her his hand and his heart.

The lady behaved as all ladies can, and I believe do, in such circumstances.

She delivered a very nice speech, which had been many times rehearsed in her bedchamber, and on the pavement as she trudged to and from the house of Mr. Jones, which, as a daily governess, she was in the habit of traversing, and at other times and places. Gratitude was a word that thickly interlarded her periods. She said that she did not know how to accept the proposal he made her, and, after a skilful pause or two, having come to the conclusion that there was no danger in a little delay (and, aside with the reader let me add, become convinced that there was no prospect of his withdrawing the offer), she craved time to consider his most noble proposal—not on her own account, because, if she was a selfish thing, he would see

that she must at once say yes—but because she scarcely felt equal to the position, and because the prospect of such an elevation dazzled and bewildered her little brain.

This was the sum and substance of Miss Thomson's speech.

The reader has already been informed that Mr. Green and Miss Thomson were married, and his imagination will supply the links in the narrative between the last interview and the realisation of that event.

During the almost monotonous life Mr. and Mrs. Green lived, there would of course occasionally arise small vexations. Not that they quarrelled. Nothing of that sort marred their happiness.

The vexations I speak of were of the most simple and ordinary kind. A friend promised to come and dine with them, and did not keep that promise. The tradesmen were not punctual in the delivery of their goods. The wine-merchant occasionally deceived Mr. Green, which caused him annoyance. The dressmaker or the milliner was not so exact as he or she ought perhaps to have been in executing Mrs. Green's orders. And those sort of things annoyed the one or the other of them.

Another annoyance in this house arose from—what Mr. Henry Mayhew has entitled the greatest plague in life—a bad servant. They had one or two bad servants, and on several occasions Mrs. Green made the observation, not, I think, quite unique—a sort of remark, on the other hand, which had been made by other ladies, and I believe will be again—that it was impossible to get a good servant.

However, one good servant was at last obtained. She was a young woman about twenty-four or twenty-five years of age. She was, to say the least about her merits, somewhat pretty. I have heard her described as beautiful. When I last saw her, I thought her exceedingly beautiful. She was, moreover, by no means an illiterate girl. She had received a fair amount of education—a much better education than girls in her station usually receive.

In consequence of the superior manners of this girl she was admitted to a considerable share of the confidence and respect of both her master and her mistress, and was allowed an amount of discretion in the arrangements of the household which is not usually given or permitted in such cases. Mrs. Green contemplated, with her husband's approval, the extension of their

establishment by the engagement of a third servant, and elevating this young woman to the position of a recognised companion to the lady.

Some time after this notion had been formed, there was discovered a new series of annoyances in the house of Mr. Green. A number of portable articles of value were missed. How they went appeared one of the greatest of all possible human mysteries. Discovery seemed impossible, and the irritation of the husband was excessive. His wife, moreover, inveighed in the bitterest terms against the undetected thief.

It was agreed between Mr. and Mrs. Green to lay all sorts of traps. They did so, but did not succeed in fixing any body with the crime.

The reader will imagine how such an affair operated. Not only did suspicion begin with the lowest and end with the highest of the three servants in the household, but it embraced every one of the few friends who came to see Mr. or Mrs. Green; and in the failure to discover the delinquent, or get the foundation for a rational and decided suspicion, even supernatural agencies were beginning to be hinted at by the wife. She, however, always prefaced her hints of this kind to her husband as women do their ideas of that sort, by a declaration that she was not superstitious, but if she was, &c. &c.

At length the loss of a gold watch, which Mr. Green had presented to his wife on her marriage, with a gold chain, drove that man pretty near the boundary of madness. When he first heard of it, he was frantic. He raved and he cursed, uttering language such as his wife had never heard from his lips before against some person or persons unknown, and vowing the direst vengeance against the offender. He declared that if he or she were his own brother or sister (which obviously could not be, as he had no brother or sister), he would transport him or hang him or her. And he also said that the worst feature of the case was the total impossibility in tracing the thief. He did not like to be beaten in that manner. It was so deuced aggravating not to know what had become of the things; that is, who had stolen them. It was such a hard thing to be suspecting all the servants and their friends. Was he to dismiss all the servants? If so, how did he know that he should then get rid of the thief? Was he to banish all his friends from his house? How did he know that it was some pretended friend that was robbing them? He finished in mutterings, which, although not capable of being accurately embalmed in printer's ink, may be safely interpreted as imprecations and direful threats.

In this mode his conversation with his wife one evening rambled; and at the conclusion of his incoherent ejaculations, he started to his feet as if he had made a grand discovery. "By G—, it must be somebody in the house. It must be one of the servants. It must be that girl you have so fondled and caressed. The ungrateful wretch! If I find it out to be her, and I must find it out, I will have her arrested, prosecuted, transported."

His wife was terrified. The idea of prosecuting this poor girl, whose life in many respects resembled her own,—the chief point of difference being, in fact, that she had not been able to catch a merchant husband,—told on Mrs. Green's sympathies. Yet, as she said to her husband—if he were right—it was horrid ingratitude in that girl to rob them so—if she had done it.

"But suppose," suggested the wife, "we should be mistaken, how cruel will be the suspicions we have engendered!"

"Cruel!" exclaimed the husband; "yes, if we are mistaken. But how can we be mistaken?"

He ran through the circumstances under which several articles of value had been lost, to show that no friend or acquaintance could have robbed them.

Burglary was impossible, because of the frequency, the width of time and occasion, and the comparative smallness, of the plunder.

It must, at all events, be one or other of the servants; and he felt it to be his duty to investigate the matter thoroughly. He was determined to do this. It was a duty they owed to themselves, and the other servants, and all their friends, and to the world, that this thief should be detected.

Mrs. Green said she could not bring her mind to a prosecution. She said that, at all events, the most she would do was to turn away either of the servants who was discovered. The case was certainly very bad, and the thief deserved all he or she got.

The husband reserved his decision. Perhaps, if the wretch confessed, he might be disposed to listen to her appeal for mercy. If that girl (for he persisted it must be her) dared to belie the evidence which must be got against her, he would have no compunction in hanging her.

With that kind of rashness or folly which men under such circumstances commit, he turned to his wife, and most unreasonably said to her, "Now, Helen, my dear, you must find out the thief for me. I know it must be that girl. Now, find her out."

Among the little trinkets Mrs. Green possessed were a bracelet and a locket, neither of which had hitherto been missed.

Both of them had been seen by her and her husband within two days before the present conversation. She missed them, as she afterwards explained, the day following this conversation. It was very strange that they should have disappeared just at that time. For her part, she would, if she could, screen the culprit; but her husband's mandate left her no discretion. She was to find out the thief. What to do she did not know. She thought of searching the girl's boxes—or of having them searched by a policeman. No, she would not do that. She hoped that her husband would not prosecute. She therefore contented herself by communicating this further loss to Mr. Green, and explaining to him the reasons which had stayed her in the extreme means of discovery.

Mr. Green, on his return home, was uneasy and excited. Something had seemingly crossed him in the City. I believe an advice his house received that morning told the firm of the bankruptcy of a Hamburg correspondent. This fact had soured the merchant's temper, and inflamed his desire for vengeance.

When his wife communicated her suspicions, he at once insisted upon a search of the girl and of her trunks.

Just at this moment, or before the resolution was carried out, a friend dropped in to see them. He observed a gloom on the countenance of the merchant, and began to rally him. The visitor wanted to know whether the firm of Green and Schnackwether were going to appear in next Tuesday's *Gazette*, and what the devil was the matter with him. He did not care to avow his loss in the City, and found an adequate explanation in his losses at home.

This friend suggested that examining the trunks was perhaps not an unwise thing; but he also joined in the wife's appeal for mercy, said that he thought the better plan would be to send the girl off to her friends, if she had any, and that he would not advise the expense and trouble of a prosecution.

The merchant, however, fully explained his reasons for not acceding to the last suggestion, and resolved upon the search.

The three servants were called into the room which Mr. Green denominated his library, and, in the presence of his friend and his wife, they

were catechised. They all stoutly denied the crime. They all shed tears, and sobbed, and demanded an investigation. They each resented the suspicion as cruel and unjust. A boy engaged as page and kitchen-assistant was defiant, and hinted vaguely that his father and mother would not stand it; that Mr. Green would hear about it; and that he would not stay in the house another moment after his boxes were searched—which they might be at once.

The search began with the boxes of the young male servant, and nothing was traced in them.

The trunks of the favoured young woman of superior beauty and accomplishments were next searched. In one of them was found one of these trinkets and a duplicate of the other.

Mr. Green's rage knew no bounds. In vain the girl protested her innocence, and declared it was the wicked device of some wretch for her destruction, or horrid conspiracy by some dreadful enemy to blast her reputation and dishonour her poor parents, which planted the evidence against her.

The merchant told her that if she confessed her crime he might forgive her. She would not admit a crime that, she said, she had not committed.

Mrs. Green remonstrated with the girl about her obstinacy, and advised her that it would be better to confess an offence which was so fairly brought home to her, and against the evidence of which it was impossible for a single moment to contend. The girl threw herself upon her mistress's sympathy, hoping that *she* at least could not think her guilty of the crime attributed to her, although appearances were so much against her.

At last, under the cross-fire from these accusers, the young woman, who still refused to confess, dropped into a chair, and, in tones of agony, implored God to witness that she had never taken a thing that did not belong to her from any human being.

Mr. Green said this was more than he could stand. Such frightful hypocrisy, such horrid cant, such blasphemy, was the grossest outrage upon Heaven he had ever beheld. He told the boy to fetch a policeman, which service the lad rendered with alacrity. The already-convicted thief was given into the custody of the officer, taken to the station-house, and locked up.

The next day at the police-court the evidence of these facts was laid before the magistrate. The pawnbroker who had taken in the pledge was not

able to identify the prisoner as the female who had pawned the article; but said that she was about the height, age, and appearance of the prisoner, although he would not swear to her. It was pledged, he said, about the hour of twelve in the morning; and Mrs. Green being called upon to give evidence as to the movements of her servant, with a view of confirming or breaking down the pawnbroker's suspicion—as the case might be—was obliged to say that Eliza had been out on an errand for her mistress between eleven and twelve o'clock on the day referred to.

The scene in that police-court was one of the most painful things ever witnessed. The prisoner had no professional assistance. No expert attorney was there to help or mar her defence. All she did, and all she said, was a repetition of what she had told her mistress and master and their friend the night before. She protested that she was as innocent as an unborn child; that her hands had been trained by parents (whose memory she revered, and who tenderly loved her) to honest industry; and that she had no more perpetrated these thefts than the worthy magistrate. She appealed to her mistress to bear evidence of her general character. (Mr. Green was not in court.) Her mistress gave her a general good character, and expressed the grief of herself and her husband at the discovery in the servant's boxes.

The magistrate put a question or two to the mistress, who seemed to betray an idea that one of the other servants, or some friend, had been the thief; or that, at least, the accused had not been, although she did not say as much in distinct terms.

The tone and manner of the girl had evidently impressed the magistrate with the belief that she was not in her proper place when in that dock before him as a criminal. He, however, remarked that the case was one of very grave suspicion, and that he should remand her for a week, in order that inquiries might be made, with a view to getting further evidence upon the case.

The accused had looked forward to her appearance in court as the ordeal which would establish her innocence. She had never doubted for a moment that a police magistrate would unravel the mystery, and turn the tide of false suspicion from her. When she heard the last words fall from the lips of the presiding justice, and ascertained that she was to be sent back to something like the loathsome cell she had passed the previous night in, her spirits gave

way. She uttered one heart-rending shriek, swooned, and was carried down from the dock—senseless.

Mrs. Green narrated circumstantially to Mr. Green what had taken place in court that afternoon, with a minute exactness, as he sipped his wine after dinner. As she did so, I believe he half repented the prosecution of this poor girl, although not a shadow of a doubt rested upon his mind as to her guilt. He said he thought it was a pity she had not confessed. As the hours rolled on, and bedtime approached, and he was about entering the solemnity of night—when, I am inclined to think, men's better thoughts usually gain the ascendancy (that is, unless the thinker be *intent* on the perpetration of crime)—he confessed that he did not know what to do; that he thought the poor girl ought to have an attorney employed for her; and that he would see his lawyer about it in the morning.

Next morning after having perused his letters, Mr. Green went to consult Mr. Scrowle, his private solicitor, about the engagement of some other attorney for the defence of the girl. Mr. Scrowle, however, put rather a new complexion on the affair. When he heard the previous good character of the accused; when he was informed of her solemn protestations of innocence in the house; when it transpired that the boy had run for a policeman with such pleasant, not to say indecent, haste; and was told that the magistrate was impressed by the girl's declaration of innocence,—Mr. Scrowle suggested to his client, Mr. Green, that his servant had possibly been the victim of what is called by thieves a "plant;" that one of the servants (perhaps that boy) might have been the thief, and might have placed the things in the girl's box for the purpose of directing suspicion upon her. Mr. Green did not think it likely that his attorney was correct, because of the difficulty the boy would have in getting at the room from which the trinkets were taken; but his lawyer, in reply, said he did not think much of such an argument, because thieves found opportunities of getting what they wanted under the most adverse or difficult circumstances. The attorney then suggested that Mr. Green might possibly get into trouble over the matter himself.

Many reasons, but particularly the last reason, inclined Mr. Scrowle to endorse the suggestion of his client, that the girl should be provided with legal assistance, procured at the cost of the prosecutor; and, when this point had been settled, Mr. Green told his lawyer he thought that, after all, the girl had been punished enough, and that he should not have any objection

whatever to letting her off, if it could be arranged, although she was an ungrateful and an obstinate minx for not confessing.

Mr. Green, who was a somewhat careful, not to say a penurious man, with great reluctance consented to give his solicitor authority to take what steps he might deem necessary,—either to pursue or to withdraw from the prosecution, to defend the girl, to unravel the mystery of the case, and to arrange it if possible, or thought that step expedient.

Mr. Green's solicitor, at this stage of the business, sent for me. I got leave to accompany the attorney who was employed for the defence (acting in the capacity of his clerk) to the house of detention, where we had an interview with the poor girl. It was one of the most painful scenes I have ever gone through. She had completely fascinated the matron and the female warders, who, accustomed to deal uniformly with crime, were slow to believe in any theory of a prisoner's innocence; yet they believed this girl perfectly innocent; and relying upon my experience of human nature, I almost immediately wrote her down as innocent.

It was evident to me, as I told her legal adviser, that a "plant" had been made upon her.

When he came out of the gaol, like a blackguard as he was, he said to me, "You must not let the case go off at the next examination, because both you and I ought to have some costs out of it." With difficulty I was prevented grasping the fellow by the throat. I did, however, suppress my loathing and indignation, and played the hypocrite with him sufficiently to suggest that it would be a good thing if we could get her off at once. There would be more credit attaching to us, I argued, than if the magistrate should commit the girl at the next examination for trial, and some ranting barrister of the Old-Bailey school got her off, and obtained all the merit. As to costs, I suggested that most likely some arrangement could be made for a fixed sum, so that he might earn as much by a successful defence at the next magistrates' meeting as at the sessions. These arguments had their weight with the attorney, and he soon coincided with me in thinking that we had better bring the case to as speedy a termination as we could.

At the suggestion of Mr. Green's own private attorney, I took a note of introduction to him at his house, with a view of consulting him directly on the facts of this case.

I was immediately shown into the library, where I found the merchant and his wife talking; and I was led into the drawing-room by Mr. Green, as I thought for the purpose of making a demonstration or producing an effect upon me.

We left Mrs. Green in the library. As Mr. Green, in the drawing-room, began to relate to me his conviction of the girl's guilt, my eye rested upon a splendid piano, the lid of which was closed, and, as I afterwards found, fastened, but jammed in which I thought I saw the corner of a note.

Here, I said to myself, is a clue. Something has been concealed in that piano for the purpose, I dare say, of removal to the pawnbroker's, or assayer's, hereafter. In imagination I dimly perceived, through the walnut-tree lid of the piano, something wrapped in that envelope of which a corner was palpably visible.

I did not venture to disclose my thoughts at once to Mr. Green. I did not know what effect any surprise might have upon him. I did not know that he might not spoil my game by some indiscretion on his part, if abruptly let into an explanation, &c. I let him talk, and I talked; but I thought also none the less.

Thus I mused as we chatted. Could that be a corner of an envelope, or was it a stray fragment of paper? It might or it might not be a clue. It might be nothing, after all, but an accidental bit of paper; or perhaps one of Mrs. Green's domestic accounts, laid there by her thoughtlessness.

No, it was a clue. It might not be a trinket. It might be a letter. I was perplexed and tantalised, and even, let me confess it, impatient to get that piano unlocked.

But Mr. Green might he seek to destroy the clue, in order to make good his consistency, if it led, as I had no doubt it would, in a contrary direction to that his suspicions had taken?

Towards the end of the interview we had this conversation: "Can you, sir, bear any sudden revelation touching this matter, which may, perhaps, show that you are wrong in your suspicions?" I asked.

"Sir," said Mr. Green, "I am an honest and upright man. I don't think I am wrong; but if you can show me that I am wrong, I am the man to confess so, and to make every reparation in my power."

"No doubt, sir; but you must pardon my caution. Gentlemen when surprised are not always so discreet as on ordinary occasions; and it must be

an unpleasant thing to feel that you have been made a party to the punishment of an innocent person for a thief's crime."

Mr. Green had before this seriously looked at the possibility of its turning out that his servant had been injured by him. He had comforted himself by the notion that, as he had acted *bonâ fide*, no great blame could attach to him; and if such discovery were made, he had determined to pursue the honourable course of restoring the injured girl, as far as he could, to her place in society. He assured me again of that fact.

"Then," I continued, "you will place yourself entirely in my hands pending this investigation. I shall ask you to let me search this house from top to bottom, and in every nook and cranny."

Mr. Green scarcely liked that. I somewhat surprised him, and threw him for a moment in embarrassment.

"I hardly think that necessary," he said.

"I do," I said; "and you know I have had much experience. I am afraid that time enough has been already given for the destruction of some traces of guilt; but I am sure that every hour facilitates the destruction of others."

"As you will, then, sir," said the merchant.

"Then I will again ask you to fortify yourself against the discovery of any thing surprising; to act with reserve; and I would implore you not to get up a scene in my presence. If the lad or your other female servant should, as the result of my investigations, be hunted down this evening, I shall ask you to take no steps for his or her punishment, or until you have had time for reflection. In the mean time, I will take care of the proofs."

"Be it so, then, sir."

"I propose to begin the search in this room, as we are here."

"Yes, sir."

I stepped to the piano, and was about raising the lid, which, of course, did not open at my desire.

"Have you the key of this piano?"

"No; my wife has it. You had better ask Mrs. Green for it, sir."

He called his wife in.

"My dear," he said, "this gentleman is a private detective. I have told him that we are anxious for the fullest investigation, and shall be glad,

indeed, if your servant in custody can be found innocent, although I feel that is totally impossible. Still he thinks he will be able to get some evidence that will divert suspicion from Eliza to one of the other servants."

"Well," observed Mrs. Green, "it is an unpleasant thing to have one's house pulled about in this way; but I suppose it cannot be avoided."

I nodded assent to the lady's speech.

"Will you let me have the key of this piano?" I inquired.

"The piano, sir!" she said falteringly. "That is my piano. What do you require the key of *that* for?" And the colour came and went from her olive countenance, in a way that told me I had discovered the real thief in the merchant's wife.

A train of thought passed through my mind as rapidly as messages are conveyed by the harnessed lightning over house-tops, beneath the solid earth, or under the sea. This was a curious little instance of kleptomania. The poor wife's morbid secretiveness, acquisitiveness, or whatever a phrenologist might call "the organ," was in large excess. I pitied her. Could I here abandon the search, and leave the poor lady's crime a mystery, or an undetected fact? No; that would not do. She, at least, had permitted the servant, my client, to be accused. I knew the depth of woman's cunning. I know how tenaciously one will cling to the outward forms of respectability and of virtue. I know how horribly unscrupulous a criminal at bay, with the chance of setting the dogs of the law on the wrong scent, could be. To relax in my vigilance would be fatal to my innocent client, whose late mistress, the real thief, would forge other proofs of the guilt of the guiltless.

Why did I reason to myself thus? Does not innocence tremble, and lose its self-possession under the remotest suspicion of an offence? Does not guilt, as a rule, maintain its self-possession, and look with a bold front upon the perils of its situation? Yes. Ordinarily I see in embarrassment an indication, not of guilt, but of innocence. But in Mrs. Green's case there was a firmness with the embarrassment; there was an expression which I cannot describe in words. There was a dread of me visible in the attempt to hide that fear. There was an indescribable *something*, which operated on my mind as moral evidence.

"I won't press for the key, madam, if you are unwilling to let me have it."

"I am unwilling only, sir, because I think it an impudent request."

“Madam,” I replied, “no request can be impudent which is explained by the fact that I am collecting evidence to rescue innocence from ruin and shame.”

“I shall not give you the key of my piano.”

“Again, madam, I say I will not press you for it; but I will state, in the presence of your husband, that I think it necessary to know what is contained in that piece of furniture.”

Mr. Green was thunderstruck, and bewildered to the verge of insanity. A light dawned upon his mind, of which I was then unconscious. He recollected, as he shortly after told me, that not a week before, having entered the drawing-room, in order to meet his wife, on his return from the City about half an hour before his usual time, he found her sitting by the piano. She heavily closed the lid of it as he opened the door.

It was a minute or two after this light dawned upon him before he recovered his self-possession enough to open his mouth.

His first silent inquiry then was how to save his own humiliation by covering his wife’s disgrace; but this desire mingled with indignation and disgust that she, so well provided for—even to the matter of pin-money—should rob her own home. It was, he argued, criminal insanity. Yet he must dissemble, and baffle me if he could, he thought.

“I don’t see what you want to open my wife’s piano for, or why you can wish to inspect the piece of paper, if it be a piece of paper, you see, which I am not certain about.”

“Mr. Green,” I said solemnly, “I shall insist upon opening that piano. I shall break it open if the key is not given me. I have a trust reposed in me, than which nothing can be more solemn or stern. It is my habit, sir, to do my duty; and in the present case no earthly consideration of profit or reward would induce me to forego the slightest clue to the vindication of the woman whose fate, I may say, is in my hands.”

The situation was a very awkward one for all parties.

I thought the better plan would be to take upon myself the first action, and thus relieve Mrs. Green from any further refusal to produce the key, by taking from my pocket a small instrument sufficiently powerful to break the lock. I did this, and neither husband nor wife ventured to resist me.

As I lifted the lid a letter became visible. Mrs. Green snatched at it, endeavouring to grasp it off the key-board of the instrument.

I had anticipated such an act on her part, and, as she felt the resistance of my right arm, I took it with my left hand.

“That is a letter of mine, sir.”

“It may be, madam; but I must know the contents.”

“Do you allow that?” she inquired of her husband.

“I am entitled,” he said, “to my wife’s letters. They are surely not your property, but mine.”

“I have no dispute, sir, about the property in the letter; but its contents, I suspect, belong to an unfortunate young woman now lying in prison on a charge of which I take her to be as guiltless as you are.”

“I don’t know how you propose to make that out,” said the wife.

“Nor do I, in frankness I may admit,” was my rejoinder, “yet *know*; but I think this letter will help me to the solution of the whole mystery of the case.”

Again it appeared to me that I must extricate the merchant and his wife from momentary difficulty by some action on my part.

“I shall,” I said, “keep this letter until next Monday, when, if you insist upon it, it shall be handed over to the magistrate; but, in strictness, I must say I think I ought to read it at once, and, if I afterwards see fit, hand it over to the prisoner’s attorney.”

“I don’t,” said Mr. Green. “You must give it up to me.”

His wife also vehemently claimed it.

“With all respect to you, sir, and to you, madam, I shall take the responsibility of detaining it.”

The husband, who all this while had been a prey to intensely painful emotion, then desired his wife to leave us alone, saying that he would manage me; and, after considerable hesitation, she did so. As she left the room I thought I could distinctly trace, in the lines of that pretty countenance, the external signs of a mind racked with the agony of crime.

When she had left, I took a chair, and Mr. Green did the same.

“This letter, sir,” I said, “may be an ordinary one, containing nothing that can affect the unfortunate prisoner’s case; and if so I shall be perfectly

prepared to hand it over to you at once; but I shall now ask, if you please, as a matter of courtesy, to permit me to read it.”

“A letter of my wife’s, sir!”

“Yes, a letter of your wife’s; and I can promise you no secrecy about its contents until I know what they are. If these contents be not essential to the interests of the prisoner, and do not call for its use, whatever be the secret this letter embodies, no living soul will get the least idea of that secret from me. If, on the other hand, it will furnish a material link in the evidence of that unfortunate girl’s innocence, no considerations, no regard to the position, circumstances, or happiness of you, will induce me to abstain from using it in a way to secure her liberation.”

“I think you should let me read it first,” said the husband, in terror.

“You must allow me to reverse the order of perusal. *I* must read it first.”

Mr. Green rose and paced the room. I sat musing, and observing him. At last he turned, and said,

“I know I can rely upon your judgment sir.” He sat down beside me. I read the letter in tones loud enough for him to hear, but let no sentence or word of it pass through the keyhole of that drawing-room door.

We drew our chairs closer together as I read the letter. It was addressed to the merchant’s wife, in the handwriting of the party with whom the prior attachment of her heart had been contracted,—from whom it had never been severed. She had in vain sought to wean her affections from him as soon as she received the proposal from her present husband; but it was useless. Cold, cynical, calculating, as she had been rendered by stern experience, there was yet in her breast sufficient of that element of human love to bind the attachment of her purer days. She did not muster courage for a long while to apprise the lover of her intended marriage. When she did so, he received it with what he called “philosophical resignation.” He professed to resign her, and no doubt did resign her, to what he said and conceived would be “a more satisfactory marriage.” It was, however, agreed between the lovers that their acquaintance should continue on the basis of friendship; but neither of them being led by high and lofty sentiment, being indeed both of a somewhat inferior nature, they were incapable of maintaining that cold relationship which even better minds might have found it no easy task to preserve in its frigid integrity. The attachment of friendship ripened into criminal love before the merchant took the lady to

the altar. That criminal relationship continued after marriage. Misfortune fell upon the lover nearly as soon as good fortune was realised by the woman intended for his wife, who had become the wife of another. He applied to her to assist him with her purse. She did this with all she could obtain from her husband—saved from domestic outlay. The demands upon the wife from this source, however, increased with her freedom or desire to satisfy them. Money, easily and ill-gotten by the paramour from his mistress, was lightly spent. What had been asked for in the first instance in tones of humble supplication, was ere long demanded under threats of exposure.

The letter taken from the piano demanded the sum of 10*l.*, in order that the writer might satisfy what he was pleased to call “a debt of honour” within three days. He must, he said, have the money, and he would have it. The wretch had the brutal audacity to say to this unfortunate woman in his power, “You have more to suffer by exposure than I have; and look out, if you don’t let me have the money.” This amount the wretched woman could not procure. She had about a week previously supplied him with a like sum, and his demands upon her had of late been so heavy that she had been in daily apprehension her husband would discover the malversation of the funds he had supplied her with to keep his house. Bills which she professed to have paid remained unsatisfied. Several hundreds of pounds had been diverted from their legitimate application. She had, therefore, on this occasion, as she had done on some other occasions when similarly situated, given him the material by which, through the pawnbroker, or in some such mode, he might raise the money he required for his unhallowed purposes; and be once more extracted, through his criminal hold over the mind, conscience, and body of the wife, the cash to expend in debauchery. The watch and chain, and some other trinkets, had been given by the wife to her paramour, and by him disposed of.

The effect which this letter produced upon the merchant may be more easily conceived than described. It is enough to say that this tolerably strong-minded man, who had so well played his part throughout the interview I have at such length described, here broke down, completely unnerved. He put himself under my guidance, and quitted the house with me that evening, leaving Mrs. Green therein—alone.

Mr. Green and I had a meeting on the following day at the office of his solicitor, to whom I handed a copy of the letter; and I also supplied a copy

to the attorney for the prisoner. It was arranged between Mr. Green's solicitor and his client that a person should be sent up to take immediate possession of the house at Kentish Town, which he had evacuated on the previous night.

The man, on his arrival there, discovered that Mrs. Green had fled. She took her departure early that morning. She left no article behind that was easy of removal. A somewhat extensive wardrobe was packed in boxes. All the articles of jewelry, that were easily convertible into money, she also took. Mr. Green had, at my suggestion, left her ten cheques, drawn upon his private bankers, for 5*l.* each, and each post-dated seven days apart. These, of course, she took with her. She left no address behind her. She took neither of the servants for companionship. Whither she had gone to nobody knew, nor did I care.

There was a meeting between the solicitor for the prosecutor and the solicitor for the prisoner—in confidence, and without prejudice.

Communications were, under this shield, freely exchanged. The poor girl was told that an application would be made for her release, when next taken before the magistrate, under circumstances that would be afterwards explained to her. She was further informed that her master was confident of her innocence; that the guilty person had been traced, but would not be prosecuted. For the injury she had received at his hands, which he was sorry to confess was the consequence of his rash impulses, he asked her forgiveness, which she readily granted him.

At the next examination before the magistrate the prosecutor's solicitor, who appeared for the first time, said that the case had been investigated since the former meeting, and that he would ask his worship's permission to be allowed to withdraw from the prosecution. The magistrate at once turned to the prisoner's solicitor, asked whether he had any objection to that course, and received for reply that his client had no objection to her release without conditions.

The poor girl was accordingly liberated, and taken away under the care of a relative, in whose hands means were placed for her immediate comfortable provision. Mr. Green provided those means.

Of Mrs. Green I have since heard. Indeed I had another engagement to trace her, the clue to which was furnished by herself. She employed an attorney about two months after her flight from Kentish Town, who waited

upon the private solicitor of her husband, and implored him, on the ground of humanity, to let her have money. The advocate begged him to think of the discredit that would attach to Mr. Green if the woman who bore his name were reduced to distress, absolute privation, and perhaps the workhouse. After several consultations with his solicitor, Mr. Green declined to allow any thing. He professed a total unconcern as to what became of the worthless woman; and in reply to a menace, then delicately put forward or hinted by her legal adviser, that she would be a source of annoyance to her husband, Mr. Green's solicitor informed his professional friend that his client would not scruple to hand her over to the police if she did so. So ended the negotiation.

Some time had rolled away since the liberation of the prisoner. Mr. Green continued to take considerable interest in her welfare. He frequently visited the residence of her aunt, at Camberwell, and betrayed an almost tender solicitude about the girl. In fact tender is the right part of speech to use as the qualification of solicitude in this case.

The merchant called upon his solicitor one day, and had a long conference with him. Without taking the reader through from the beginning to the end of that private conference, I may inform him that Mr. Green was determined that Sir Cresswell Cresswell should rend asunder the bonds which had been forged by Hymen or the Church-of-England minister, if legal evidence of the infidelity of his wife could be produced, and he imagined there would be very little trouble in getting it. The letter which had been discovered in the piano would of course be very important, but was not sufficient in itself.

I was accordingly employed, and following up such traces as I apprehended would lead me on her track. I was not a great while before I discovered that Mrs. Green had become "one more unfortunate" parading Waterloo Place every night, at present decked in the garments which Mr. Green, her husband, had purchased; and I further learnt that, out of the proceeds of her sin, she was maintaining "the prior attachment."

When all this evidence had been collected and laid before Dr. Jinks, a very accomplished lawyer, as I have seen cause to know, who practises in the court till recently presided over so ably by Sir Cresswell Cresswell; and when his opinion had been written upon "a case," to the effect that there was no doubt the court would grant Mr. Green a divorce from his adulterous

wife,—that gentleman called upon Eliza's aunt, and explained to her that he felt bound to mark at once his sense of the merit and virtues of her niece, and his desire to make the amplest reparation in his power for the injuries inflicted upon her, by offering to place her in the position of her late mistress as soon as the legal ceremonies clearing the way had been effected.

The court readily granted a divorce. The opposition on the wife's part was but a sham resistance. It was an attorney's defence, that would never have been made if the law, in its kindly regard for woman under all circumstances, had not allowed her, although demoralised, to dip her hands in an injured husband's pocket for the costs of any pretended resistance to his prayer, as well as for alimony during the litigation. As soon as Mr. Green issued his citation, he had to allow his wife at the rate of 600*l.* per annum until he got his decree for a dissolution of the marriage, and he had also to pay her attorney 150*l.* 4*s.* 6*d.*

These moneys being paid, and these processes having been gone through, and after further waiting the time prescribed by law for the other side—that is, for Mrs. Green—to appeal against the court's decision, no such appeal having been attempted, the adulterous woman was no longer entitled to the use of the merchant's name; she ceased to be, in the eye of the law, in any respect his wife; and Eliza became Mrs. Green, under the sanction of law and of the Established Church of England.

THE VIRTUE OF AN AMERICAN PASSPORT.

I WAS once employed to track an absconding bankrupt and hand him over to the tender mercies of a criminal court. There was nothing in the case, as it appeared on my instructions, to distinguish it from a host of other cases. It had not even the merit of difficulty to lend it interest. I made sure of catching my man with little trouble, as I did, and as I will point out. The affair, however, took a rather curious turn in the sequel, as the reader will perceive.

The bankrupt had been a trader in Liverpool. He had not been in business there more than ten months, but had contrived, during that short period, to contract debts to the extent of 84,000*l*. I don't know in what line he traded. I believe in many, or in all lines. He professed to be a believer in homely saws, and the philosophy they embody. He would not object at any time, he said, to turn an honest pound in any way. He therefore bought all that came within the range of his credit, from rags and hempen fragments to jewelry, and from tallow to diamonds. I don't know where he traded to especially. I believe that he sold more in the home-market than abroad, although he talked largely about consignments, bills of lading, &c. If he had a skill for getting credit, he had a genius for disposing of goods. He was also an expert at what is called hypothecating,—a process which, for the unenlightened, I may explain to be as like pawning as any one thing can be like another. A peculiarity of his business was, that he always bought on acceptances, and for credit; he always sold for cash on delivery. Hence he frequently, if not always, traded at a loss. He was sometimes so unlucky as not to be able to get half as much in cash for things as they had cost him in bills.

Such trading as this, the reader may think, would soon come to an end. It is quite clear that such trading must end in bankruptcy and ruin to some one, or to more than one. It is not, however, so sure that this mode of carrying on business would overtake ruin speedily. Our American bankrupt lasted ten months; and it is the opinion of many well informed persons that he might have gone on for three or four years if he had calculated well, and held his ground boldly. How was that to be done? Easily. There is a process

which I have heard scientifically described as “widening the ratio.” That would have done it.

Suppose that a man in trade loses 500*l.* upon the business of 1000*l.*, which is about the proportion in our Yankee’s business or its results. Suppose that he wants to spend, and therefore does spend, the 500*l.* on himself. Is he bound to stop payment at the end of that partial experiment, and treat the problem as one therein solved? No. He may double his business and losses, and still keep right, in a familiar sense of that nice phrase. If he should trade to the extent of 2000*l.*, and lose 1000*l.* upon it, he will be able to pay off the first credits out of the net proceeds of his second series of operations; and all the people who get their money—noticing, also, the activity of his business—will sound his praises as “a rising merchant,” “an upright man,” “a punctual tradesman.” To live during the second series of operations out of them, they should, however, be extended to 3000*l.* or 4000*l.*, instead of 2000*l.*; and nothing is much easier than to do this. Keep on paying each bill as it falls due (no matter at what sacrifice,—by the forced sale of goods, or by discounts at any rate of interest), and there will be no difficulty about “widening your ratio of trade,” until you are entitled to a place in that category of worthies which Mr. David Morier Evans has culled and put together in his work entitled, *Facts, Frauds, and Fallacies*. Some day the bubble will burst, I know; but the ball may be kept rolling for a series of years on this plan.

It is just possible that a hitch may stop the machinery. There are accidents against which no human foresight can guard; and if the bright pleasant road to ruin gets blocked up, you may in the side paths encounter a policeman, who will lead you to a judge, and a prison, or a hulk. That I take to be one of the inevitable contingencies which any swindler will look fairly in the face—avoid it, if he can; and if not, then meet it with calmness and resignation.

The Yankee did not, however, as I am told, understand this practical method of commercial swindling, and he would have inevitably come to grief if he had been an Englishman. The reader may as well bear that little fact in mind. A great man once observed that, although many persons resolved to live by their wits, the vast majority of those who tried the experiment got half starved by a scarcity of the material for that sort of existence.

The penal clauses of the New Bankruptcy Act are also to be kept in view as things to avoid, for I see by the Old-Bailey intelligence they are being enforced with terrible severity. If caught and discovered offending against any of the primary canons of mercantile jurisprudence, the weight of punishment is heavy. The reader must also not forget that, although he gives the criminal law and its officers no hold over him, he may encounter cantankerous or savage creditors, who, not satisfied with the loss they may have already incurred through him, will throw away more good money, not after bad cash, but in order to punish what they conceive a bad man. They may hunt him down to disgrace and beggary, hold him up to scorn and ignominy—in violation of the pure Christian theory which bids us “live and let live”—never ceasing until he has no certain and regular mode of existence left except begging-letter writing, holding horses at the West End of the metropolis, hawking ballads, vending penny newspapers, retailing vegetables or fruit or stationery, or a life of idleness in a union workhouse.

But I am moralising, preaching, or sermonising, instead of telling my story.

Well. Mr. Abraham Driver had run his career in ten months. During this time it was believed that he had, however, to use a vulgar term, “made a purse,” or “feathered his nest.” He had realised considerable sums by hypothecating and selling goods, getting advances on bills of lading, &c. Where the money had gone to, his creditors were anxious to know. They believed he could pay 20s. in the pound. As a matter of fact, he didn’t pay 1s. in the pound.

Abraham Driver, merchant, dealer, and chapman, as he was described in legal processes, was adjudicated a bankrupt. He didn’t surrender. Perhaps, if his creditors had had an adequate idea of the dignity of American citizenship, or the sanctity of the stars and stripes, or the potency of the meanest recognised Yankee diplomat, they would never have offered such an affront as they did through Mr. Driver to his bumptious nation.

The Yankee merchant and citizen, as I have said, didn’t surrender to his adjudication in obedience to a printed and written summons, which he received. He treated that “big broad slip of paper” with gross verbal contempt. Yet he thought it inexpedient to stay in Liverpool. That fine town was too hot for him. He therefore shifted his quarters to London before the day limited for his appearance in the Liverpool District Court of

Bankruptcy. When in London, he said he thought he might as well enjoy himself; and this notion carried him further from the late scene of his enterprise than the British metropolis. He turned his back disdainfully upon the land over which Queen Victoria's metaphorical sceptre sways. He went by rail and steamboat to the continent of Europe.

Almost as soon as Mr. Driver left the shores of the Mersey, I was desired to bestow upon him my attentions. I supplied him with an unseen guard of dishonour. His movements were watched until he landed at the port of ——. Here, as no instructions to arrest him on the Continent were given me, he was left.

The principal creditors of the bankrupt determined to follow him. He was now an outlaw. The time for his surrender had expired. A warrant that would run into France could be obtained for his arrest and for his removal to this country. The requisite processes—or those which able lawyers thought sufficient—were obtained, and placed in my hands.

I went over myself, and one of the Liverpool gentlemen was my agreeable companion.

In obedience to the wishes of my employer and associate, I consented to go with him to the office of the British consul.

The British consul was a high and mighty man in his own esteem, and he snuffed me out in the grandest style. I could not help admiring the art with which this servant of the British Crown reduced me, from the height of my legitimate self-respect, to the nothingness he thought my true status.

“They manage things differently in France to what they do in England, sir, I can tell you. Now, leave the matter all to me, sir, till the fellow's captured, and you have him again in England.”

I and my friend retired to the passage of the consul's office (which was one small room) to confer on the subject. The consul also had a conference in his office with his man of all work, whose name I afterwards ascertained to be Boggy. At this conference I agreed to allow the consul to take his own course of action in France, and I was to merely assist when asked to render aid.

“Well, my man Boggy shall go and see whether the fellow is at this moment in the port. Boggy will soon ascertain that.”

Boggy's palm was crossed with a golden coin, which bore an effigy of England's Queen, to stimulate his zeal in the execution of her laws.

The Frenchman was not long in discovering Mr. Abraham Driver's whereabouts. He came back to announce that the man we wanted was unsuspectingly smoking a meerschaum at the Anglo-American Hotel.

Now to seize the villain. I was ready, and the defrauded creditor was intensely anxious for the fellow's capture.

"Nay, nay," said the consul. "We must go to the commissary of police. I must pay his fees. It will not take long to get through the ceremonies, but it will cost money to arrest the scoundrel. Nothing is done in this country, sir, without money."

"What will be the amount of the fees, do you suppose?" asked my client.

"I can't say exactly. About 16*l.* or 17*l.* You had better let me have 20*l.*, and I can return you the balance."

Boggy here threw his mercurial eyes at the consul, and then at me, and then at my client. This had the desired effect.

"Never mind about the change. I don't object to give 20*l.* (handing over the money) for the villain's capture. You can let this good man have the balance," said the gentleman from Liverpool.

Boggy, with glistening eye, and with triumphant mien, led the way. I followed with my companion.

We passed into and out of several mysterious offices. Our warrant and other papers were scrutinised with tedious minuteness. Boggy seemed at home, and at ease with the minor officials, and to have a becoming veneration for the big-wigs.

At length we quitted the head-quarters of the commissary, and our procession looked really formidable as we marched towards the Anglo-American Hotel. There were six gendarmes, a sergeant at their head, Boggy in their rear, and two Englishmen in the rear of the British consul's Frenchman.

As we passed along the quay, we observed, not far from the Anglo-American Hotel, and with steam up, ready for her departure, a vessel bound for a distant Atlantic port.

"He is going away by dat ship, is he?" chuckled the Frenchman. "See, here he comes," the lively man continued to exclaim.

He was quite right. There, at a few yards' distance, was Mr. Abraham Driver, merchant, dealer, and chapman, late of Liverpool, an absconded

bankrupt.

He was walking coolly down to the quay, smoking his cigar, and about to take his departure in the vessel we had noticed.

At a suggestion from Boggy, the sergeant arrested the English bankrupt. The creditor and the debtor exchanged a very few words, not of mutual compliment.

“I guess you’ve made a grand mistake, my good gentleman,” said Mr. Driver, with a strong nasal accent (which had never been remarked in Liverpool), as if anxious to supply the evidence of his nationality, and save the trouble of being asked for it.

Up to this moment neither the creditor nor I had any idea that he was not an Englishman and a subject of the Queen’s.

“What do you mean, sir?” asked the sergeant of gendarmes, in tolerably good English.

“Why, I guess you know that I am an American citizen; and mind now, I warn, you, sir, not to annoy me for the delight of those confounded Britishers.”

The officer looked at us.

“He is an English bankrupt subject, to the jurisdiction of our laws, and a felon,” I observed.

“I calculate that’s very tall talk, all that, and when you catch me back in that old country of yours you may be all right, I dare say; but I tell you, sir, that if you keep me here till after that ship’s gone, you’ll have a very pretty penny to pay, that you will, I reckon.”

“You must come with us to the *maire*,” the sergeant said.

“Oh, I guess if you say I must, that I must; but here—look—here is my passport. It’s all fair and square, you see. Now, mind what you do to an American citizen—that’s all I tell you now.”

The hissing of the steam increased.

“Now, I guess,” he continued, “that you’ll take me first to the consulate of the United States, won’t you?”

“No, to the *maire*.”

He looked round wistfully, and took out a ten-franc piece from his pocket.

“Who is there will go to the consul of the United States, and tell him that an American citizen wants his protection. Ask him to come to the *maire* before that steam-ship there can go away.”

Boggy grasped the piece of money.

“Here, I don’t mind doing that. An Englishman in trouble would like to have his consul’s advice. That’s only right.”

Away Boggy ran to fetch the guardian of the stars and stripes, as cheerfully as he had devoted himself to Mr. Driver’s discovery.

Three minutes took us to the *maire*. The American consul was there as soon as we were. The British consul was not there. The *maire* heard what the bankrupt and his consul had to say, and then ruled that there was no ground to justify the further detention of the bankrupt, who was protected by the passport of his nation. He could certainly not be given up under the English warrant, and he should not detain him unless his accusers could enter into sufficient recognisances, available in France, to indemnify the accused.

We had nobody present to enter into the required bonds; the extent of the risk was an unknown quantity, and the vagabond was set loose.

As he parted from us, he put his finger to his nose, and whistled a bar of “Hail Columbia.” He picked out a fusee from his pocket, then lit his cigar, and, with a degree of speed compatible with an air of mock stateliness, the blackguard walked down to the quay, then on board the ship, as she let slip her hawser.

We were neither of us very well pleased at the result of this excursion. It was impossible to resist the mortification of seeing the blackguard slip through our hands, as we thought we had him effectually in our grasp.

We did not return to the consulate of her Britannic Majesty. We stayed only about another hour in France to refresh ourselves, as there was a vessel then about to start for England, and we were desirous of getting home.

There is a moral to this story which politicians may relish; and I am therefore about to add material out of which a Member of Parliament might make a reputation. I have disguised the names and localities of the actors in this little international mercantile drama. It may, however, be worth while to add, that the facts are substantially and—with the specific exceptions I

name—literally correct. If any Member of Parliament or noble lord wants the real name and address of the consul, I am at liberty to give it; if he wants the real names of any other actors in this little drama, I can and am at liberty to supply them.

On our return homewards we discussed the conduct of the consul—our own consul—in this affair. We were led to doubt the propriety of his taking that money from us. We suspected that he wanted it, not to pay the French police any fees, but to put in his own pocket. We thought that, if our suspicions were accurate, the conduct of the consul was scandalous.

I made inquiries. In a letter from the commissary of police I was informed that the French officers were not permitted to take fees, and that not one sou had been paid to a gendarme out of the 20*l.* taken from us. By direction of the French local authorities, proceedings against the British consul were taken in a local court. He disputed the jurisdiction of the French tribunals. He set up his consulship in bar of the suit. On this purely technical point—the merits of the case being taken from under the control of the court—an appeal went up to a court of appeal. The consul's plea in bar of jurisdiction was held to be a good one. The French judges held that the defrauded person being an Englishman, and the alleged offender being an English consul, the remedy was by an application to the Foreign Office in London. Memorials, setting forth all the merits or demerits of the case, and setting forth the miscarriage of justice in the French courts, accompanied by newspaper reports of the arguments and the decisions, were laid before a late Foreign Secretary. The answer to this memorial and evidence was, that, as the case had been taken before the French courts, and decided upon, his lordship saw no reason to interfere. Further explanations were offered, rearguing that the merits of the case against the consul had not been heard, that he took effectual means to prevent these merits from being touched by the French courts, and that the case was indeed remitted from French law to British diplomacy. Still, almost word for word, and to the same precise effect, was the answer. A third application, further endeavours to show the Foreign Office its duty, elicited only an answer, almost word for word, and to the same precise effect. So the matter was dropped, and it now lies where it was dropped a few years since.

WHO WAS THE GREATEST CRIMINAL?

ABOUT six years ago a detective officer, in the employ of the regularly constituted authorities whose local habitation is Scotland Yard, Westminster, was directed to track a young delinquent who had, it was said, forged the autograph of his master, a tradesman in the borough of Southwark.

The search was not a very difficult one. The culprit, who had only defrauded some one of 50*l.* by that operation, I dare say, thought he had got possession of an inexhaustible fortune; or I should rather say that he acted as if he thought so.

It is said that thieves (I mean strictly professional thieves), who have either been born and bred to the craft of robbery, or who have served an irregular apprenticeship thereto, look with cool deliberation at the risks and contingencies of every enterprise, weigh its profit or loss, and are careful not to load the adverse scale of probabilities by rashness or indiscretion. This is, I believe, the case with regular thieves. It is not the case with those who are betrayed by impulse or necessity into the commission of a single crime. Fast men (clerks, shopmen, and the like), when they rob a till, steal a few pounds' worth of goods, or even perpetrate a forgery, act in the most foolish way imaginable. In most cases they aid the task of their discovery, if they do not entirely lay open the secret of their crime.

The case I am describing illustrates one half of my theory, and shows the truth of an old saw which affirms that ill-gotten money does no good to the possessor.

The means of the fraud or forgery were procured by the criminal on the Monday afternoon. On the Tuesday morning he made use of them. He did not on that day put in an appearance at his situation, and his absence was immediately remarked. An inquiry was made, by his master's directions, at his lodgings, and it was ascertained that he had not slept there since the Monday night. His landlady was as uneasy about him as his master—perhaps more so. She was starting to make inquiries concerning him, when inquiries were made of her on the subject. The good woman, a widow, who was the mother of a family (all grown up to man and woman's estate, and off her hands), dreaded that some harm had come to her lodger. These

forebodings of evil took no definite shape,—that is to say, a hundred different forms of peril, misadventure, and suffering crowded so rapidly on the kind-hearted woman's brain, that they became merged and confused; but her suspicions never traced the fact, nor any thing like the reality. The master of the young man, so far unlike the landlady, was not troubled by many thoughts about his clerk. All that gentleman said or thought about him may be put into a few short sentences. He said he was a blackguard, and that he should never have a character from him; that it was a rascally shame to leave him in the lurch, without the slightest notice; that he ought to be punished (as artisans are in the manufacturing districts) for neglecting his work, and breaking his contract for service. Yet, argued the master, "there are plenty of fish in the sea as good as were ever caught. I dare say I can get another clerk, after all, any day, at 15s. per week, quite as good as that fellow. When Mr. Thinshanks comes back whining for me to employ him, he'll find that I won't, that's all. No, it isn't all either. I shall just tell him a bit of my mind as well. I'll kick him out of my counting-house, and tell him to go to ——" Well, never mind where, my readers; it wasn't Botany Bay, nor Woolwich, nor Portsmouth, nor Millbank, nor Pentonville, that the metaphor or expletive assigned as his destination. Perhaps your imagination, reader, will spare me all excuse for sullyng my pages by mentioning the locality, which some original mind has said is not fit to name or write to ears or eyes polite.

In Wednesday morning's *Times* there appeared an advertisement, which informed the readers of the leading journal that Mr. Crapp wanted, as clerk, a single young man, of good education, quick at accounts, who wrote a superior hand, of unquestionable sobriety, strict honesty, and enjoying one or two minor qualities. These must must be vouched by undeniable references. The salary offered by Mr. Crapp was 15s. per week. Three hundred applicants wrote to J. C. (Mr. Crapp's initials), at the post-office adjacent to his place of business, in the course of Wednesday. On Thursday morning the employer selected from the lot half a dozen letters, and saw as many young men that evening. On Friday an applicant who had passed through "the ordeal by reference" whole and unscathed in body and reputation, was given the stool on which Mr. Thinshanks had been long perched with honour.

That day the new clerk received a numerous body of commands. He had been called upon to solemnly declare before Mr. Crapp that he wasn't afraid

of work; and the truth of such averment was tested, as far as it could be, in a single day—on the Friday.

Among the numerous directions Mr. Crapp gave his new clerk were instructions to write to Messrs. Clockwork and Rigid, politely asking the reason why they had not acknowledged the receipt of the cheque for 50*l.* 4*s.* 1½*d.*, which had been sent them in due course on the previous Monday afternoon?

This firm carried on business in the neighbourhood of Shoreditch. It did not take long for Mr. Thinshanks's successor to write that and a dozen other letters of equal brevity, and it, with the others, was posted by eleven o'clock on Friday morning.

Messrs. Clockwork and Rigid were astonished. They had not received any such cheque, although they had expected to receive one for such an amount from Mr. Crapp. They also knew that the cheque could not have been delivered at, and lost or mislaid in, their establishment. The extreme regularity of all their proceedings, the elaborate system of check and counter-check which their genius had many years ago devised and set in motion, enabled them to say at once that the error or accident or wrong, of whatever kind it might be, was not to be laid inside their doors. Further than this they did not care to inquire. The loss, if there was to be a loss, would not be theirs. As a matter of fairness and good-will as between tradesmen, Messrs. Clockwork and Co. thought it their duty to inform Mr. Crapp as speedily as they could that his cheque had never reached the firm in Shoreditch. A letter was immediately written and despatched to Mr. Crapp, apprising him of that untoward fact.

Mr. Crapp saw at a glance, as any fool might have done, that between the non-receipt of his cheque by Messrs. Clockwork and Rigid and the disappearance of Mr. Thinshanks there was a link. The money which ought to have passed from his bankers to the bankers of his correspondents was that link. He had been robbed of 50*l.* 4*s.* 1½*d.* by that villain Thinshanks! Such base, black, vile ingratitude, after the kind manner in which he had treated that vagabond! He deserved to be hung, quoth his late master, in token of the remnant of that same loving kindness of which he had just spoken.

Mr. Crapp dismissed the messenger from Messrs. Clockwork with a formal expression of thanks, which, out of the frame of mind he then

enjoyed, it was hard to extract.

He determined—although, as he said, it was a painful duty—to prosecute the villain with the utmost rigour of the law. He put on his hat, and, to speak exactly, he may be described as having rushed to his attorney's office. That gentleman had left for the day. He was able to quit the dingy office for a cheerful home at an early hour just now. The incidents I have described took place during that portion of the year so obnoxious to plaintiffs and pleasant to defendants (always except debtors on bills of exchange, who come under the purview of a statute designated by some gloomy wag as the Sudden Death Act), the Long Vacation. The business on which the client wanted the advice and guidance of his attorney would not justify an invasion of the home of the latter; so he must necessarily wait until to-morrow.

While pausing for the interview between Mr. Crapp and Mr. Croak (the solicitor), will the reader ask himself, Had the clerk robbed *his master* of the 50*l.* 4*s.* 1½*d.* in question?

Perhaps the reader has a judicial mind. I hope he has. Some day he may have to sit on a jury, as no doubt he has already had to do. That frame of mind has enabled him, and will enable him, to discharge his important duties to society as a jurymen in a sagacious manner. Well, then, the reader, having a judicial mind, can't exactly say. The evidence is insufficient. He will wait and hear what other facts I have to disclose, before he gives his decision on the issue I have raised. A wise reservation.

Mr. Crapp went home again after his fruitless visit to the attorney's office.

He looked critically and suspiciously at his new clerk, to see whether *he* looked like a thief or not; and he did many other things, which, as they do not touch the issue just raised, or that raised by the question at the head of this narrative, the reader need not ask me to relate.

Mr. Crapp, it may, however, be as well to say, was impatient for the capture of the thief. He reasoned much and seriously with himself on the subject, and came to the conclusion that, if he delayed all action in the matter until the morning, he might be neglecting his duty to society at large. The culprit might escape in the course of that very night to America, or some other sanctuary for crime. Too much time had already been given him for defeating the pursuit of British justice. The police ought to be instructed

at once. Yes, he would go to the nearest station-house and inform the police. He did so. The inspector on duty introduced him to Mr. Sergeant Downey, and that expert thief-catcher and mystery-prober took from Mr. Crapp a full, true, and particular account of the matter—as far as the prosecutor could relate it.

Sergeant Downey had not much doubt about catching the offender. The young man had the good or ill fortune to possess a marked and individualised countenance and gait. The offence was, in all probability, his first crime. The officer did not think the thief had left the country; nor had he, as the next incidents will show.

That night a row took place in one of the haunts of pleasure and vice at the West End of the metropolis. A robbery was committed upon a young man from the country in one of the night-houses of the Haymarket, during a squabble between some “social evils” and fast men who had there congregated. The police, on being called in, seized two men on suspicion of having perpetrated the offence. One of them next morning was liberated by the sitting magistrate. His pocket-book, his card-case, and his own explanations, warranted his declaration that he was “a gentleman,” and innocent of the robbery. Another, and a young man, was not so fortunate. Having, he said, the fear of the reporter and the newspapers before his eyes; being, he added, unwilling to disgrace his respectable friends; and being withal sure to lose his situation if it transpired that he had spent an evening in such disreputable society,—he refused to give his name and address. The victim of the affray could not identify the reticent person as the thief, and was ready to admit the reasonableness of his excuse for secrecy; but the magistrate thought the police ought to know something more than they did about him before he was set at large. “It was,” the learned gentleman said, “very strange that a young man should have about him, in such a place, in bank-notes and gold, about three-and-twenty pounds.” Notwithstanding his appeals and protestations, and in despite the air of injured innocence he put on, and although the police knew nothing to his disadvantage except his presence at the scene of the robbery and the possession of this money, he was remanded, in order that further inquiries might be made about him.

Sergeant Downey paid a visit to the house of detention, and was allowed to see the reticent prisoner. The sergeant asked him if his name was not Thinshanks? The prisoner said, “No, it wasn’t.” The officer shook his head in token of doubt about the truthfulness of that denial, and grinned

sardonically. He went direct from the house of detention to the abode of Mr. Crapp. Both afterwards visited the temporary prison. The plausible sufferer was at once identified by the tradesman as his absconded clerk. Mr. Thinshanks, although sullen and as reticent as ever, was humiliated and crushed by the terrible eye of his late master.

Mr. Crapp's solicitor, when first consulted by his client, advised him not to think of prosecuting. Such a step was, he said, unsatisfactory. If the thief were caught, the affair would cost his prosecutor a tidy sum of money, in addition to his present loss, and a world of trouble to boot. The prosecution could not be left in the hands of the police. If so, the scoundrel would, in all probability, escape; and who could tell that he might not then turn upon the kind master he had robbed, and bring an action against him for false imprisonment? If, on the other hand, the prosecution were conducted by Mr. Croak with proper vigour and skill, so as to secure a conviction, as the scoundrel merited, Mr. Crapp would have to pay a bill of costs; he would have to kick his heels for several days about the Surrey Sessions-House (the atmosphere of which was physically deleterious); he would sustain discomfort, lose his temper, and impair his digestion, or perhaps his health, in addition to the loss of his money. Mr. Crapp inveighed against the rules and practice of British criminal jurisprudence, because it did not bear all the cost of prosecutions, liberally pay witnesses for their time and trouble, and hold out premiums to loyal men for their energetic pursuit of justice. But, at any necessary cost, and any unnecessary inconvenience or annoyance, he said he was prepared to do his duty by hunting this forger as near to the gallows as such a culprit might be driven.

When Mr. Croak was informed that the criminal had been taken, and that upon him nearly half the proceeds of the cheque had been found, the legal gentleman's objections to a prosecution were not so pointed and decided as they had been. He merely observed to his client that the fellow must now be so prosecuted as to insure his conviction; and he thought, although he did not so say, that the money which Mr. Thinshanks had not dissipated would suffice, in addition to the scanty allowance of the Home Office, to pay the cost of his judicial condemnation. Mr. Crapp, who ostentatiously grieved over the wickedness of the foolish young man, withal begged that, in the interests of outraged justice, Mr. Croak would employ all his eminent skill; and at the same time wished it to be understood that when the trial came off he desired the counsel for the prosecution would inform the judge, the jury,

the spectators, the reporters, the readers of newspapers, and the outer world, that he, Mr. Crapp, the prisoner's kind-hearted master, recommended him to mercy.

James Thinshanks was in due course taken before one of the magistrates of Southwark on the accusation for which he had *not* been arrested, and the one for which he had been taken up was dropped.

At the first examination of the prisoner Mr. Crapp was represented by a counsel in a stuff gown, and very learned in the criminal law of his country. The reader will not care to have a report of his speech when I tell him that it was not worth reporting. Of this scene and its incidents it is enough to say, that Mr. Snayke, the learned counsel (then attired in stuff, but who now wears silk), did not trouble himself to examine the charge-sheet, and took the accusation as it had been framed by the police, without inquiring about its accuracy. The evidence was yet, however, of the flimsiest character, and scandalously incomplete. The cheque was not in court; and so many other essential ingredients of the case were only conspicuous by their absence, that Mr. Snayke should merely ask the bench to remand the prisoner. An insignificant fact or two were then given in evidence, and the prisoner, who offered no objection, was remanded for seven days. He would have acquiesced in a remand for seven or ten times seventy months. Much as the stupid and mean thief disliked the house of detention, its diet, and its restraints, he had an intenser dread of what is called "a trial," with its inevitable sequel, a conviction. He drew a species or a degree of comfort from the philosophy of Hamlet. He would very much rather bear the ills he had, than fly to others which appalled by their very uncertainty. He had not yet arrived at that other stage of criminal philosophy (which a genteel villain named William Roupell found, it is said, in Spain) that draws its only consolation out of knowing the worst.

After the first examination of the prisoner, Mr. Snayke intimated to Mr. Croak he thought it very desirable to have a consultation as early as possible. Mr. Croak understood, or—not to pay him an undue compliment—he saw that there was *something* in the suggestion. He therefore indorsed the learned counsel's brief with that potent word "consultation," and with the yet more potent figure of two guineas.

A meeting between attorney and counsel took place that very afternoon at the chambers of Mr. Snayke. Mr. Croak attended it himself, and nobody

else was there. It was a secret meeting; but I shall take the liberty of drawing aside the veil, and letting the reader into this consultation. I shall ask him to prick up his ears, so that he may lose nothing of the conversation, and to concentrate his attention, so that he may understand what he hears.

“Mr. Croak.”

“Yes, sir.”

“Pray be seated.”

“Thank you, sir.”

This was the frigid tone of a greeting between the mouthy criminal advocate and the patron attorney who buttered his bread on both sides. I am told that this bumptiousness on the one hand, and humbleness on the other, is the almost invariable style of intercourse between the technically upper and the technically lower ranks of the legal profession. Much of the power of wig and gown is said to depend upon the maintenance of a relative status in the business of the law.

After a moment or two of iciness, Mr. Snayke’s consciousness of what was due to the attorney warmed him, so he grew polite and more condescending towards his inferior brother and paymaster.

“You see, Croak,” said the great Snayke, “that it is very important to frame this charge against the prisoner accurately, and I should like to know the real facts of the case—such as can be established in evidence exactly—which I do not yet. Did the prisoner steal a cheque with the amount and so forth filled in, and with his master’s signature attached in his master’s own handwriting, or did the fellow steal a blank cheque, and fill it in, and sign it with his master’s name? The distinction is important to the prisoner himself, because the different facts establish different crimes; but the prosecutor is far more interested, as it seems to me, in this part of the affair than the accused.”

“Pardon me, sir, if I say I don’t see *that*,” the attorney ventured to say.

“Oh, obviously,” replied Mr. Snayke. “If the cheque had been perfectly drawn by the prosecutor—if it had his signature making the 50*l.* 4*s.* 1½*d.* payable to Messrs. Clockwork and Rigid or bearer—if it was a complete and genuine cheque, then it is plain that the loss must be borne by Mr. Crapp. It was an act of embezzlement of a cheque or its proceeds by his own clerk. Suppose, on the other hand, that the prisoner stole a blank

cheque, and wrote his master's name at the foot thereof, that would be a forgery; and the bank must bear the loss, because they have no right or authority to pay forged cheques."

A light entered the head of the attorney. He was lawyer enough to see a point when his microscopic vision had been sharpened, and when the point was held up to him. He told Mr. Snayke that he could not distinctly say—he had not positively ascertained from the prosecutor—whether or not the cheque was stolen in blank, or after it had been filled up and signed. He would see how the matter stood in this respect, and further instruct Mr. Snayke.

The attorney afterwards had a conference with his client, in which he endeavoured to expound the law of the case to the prosecutor before he sought to learn how the facts stood. I don't know what the reader may think of this order of proceeding. It strikes me as having not been quite logical, or morally correct. It was very like giving Mr. Crapp a hint how he might shape the facts, and throw off a burden or loss from his own shoulders to those of the banker. Until indeed this result of the legal demonstration was made quite apparent to the prosecutor, he could not be induced to tax his memory about the facts.

"You see," said Mr. Croak, "if you really did fill up and sign the cheque, and happened to suffer it to lie about unnoticed for an hour or two; or suppose, after filling it up and signing it, you handed it to Thinshanks to post to Clockwork's, and suppose he stole it or cashed it without authority, and appropriated to his own use the proceeds—?"

"Well, suppose he did. That's what he did do, I dare say," replied Mr. Crapp.

"I hope not," rejoined the attorney.

"Hope not! What's the use of hoping not? the blackguard's bad enough for any thing."

"No doubt he is; but, you see, if he stole a cheque after you had signed it, we couldn't say that he forged your signature, could we?"

"No, I suppose not; but what matters about that? Isn't it as wicked and abominable to steal a cheque signed, as it would be to steal one unsigned? If it isn't forgery, it's robbery, felony, isn't it?"

"Yes, yes, my good Mr. Crapp; but I must speak plainer, I see. I want to find out who is to be at the loss of the money—the 50*l.* odd."

“Why, I suppose I must be—of course, mustn’t I?”

“I don’t know. Let us see how the facts and the law stand. I hope I can show that not my client, but the bank, must bear the loss of the cash.”

“Oh, I see your drift; but how is that to be made out?”

“Why, suppose you left your drawer open—just suppose, you know, it had so happened—and that you left your cheque-book available to your clerk.” (Here the attorney drew breath, and looked critically at his client.) “Suppose that he tore out a blank cheque, and filled it up, and wrote your signature under the order to pay, that would be forgery, you know.”

“Yes, I know that.”

“Then you would *not* have to lose the money. The banker would lose it.”

“Would he?”

“Yes; because if he pays a forged cheque, the consequences are his, not yours.”

Mr. Crapp was bewildered by the strength of his new enlightenment.

“Ah! I see. Yes. I wonder how it was? Now, ’pon my word, Mr. Croak, I can’t tell for the life of me at this moment how it was. I’ll rub up my memory. I’ll let you know to-morrow.”

The client and attorney parted company. The former, on his return home, at once sent his pass-book to the bank, and got his account made up. The cheques which had been cashed since the last balancing of his account were of course returned in the pass-book, and among them the cheque made payable to “Clockwork or bearer,” and not crossed.

Whoever wrote the signature of “Jno. Crapp,” there could be no doubt that the date and the amount (in words and in figures) were written by Thinshanks. This, however, was not remarkable. The clerk usually wrote the body of cheques, for his master to sign.

Mr. Crapp pondered long and anxiously over the document. He compared the signature “Jno. Crapp” with the same autograph on other cheques. Did he doubt who had written his name at the foot of that order to pay? No. He knew it was his own writing. He was only looking at it to see whether he could find a sufficient excuse to say it was not his writing. Strangely enough, the “Jno. Crapp” on this cheque was not exactly like that on the others. This signature was a little more extended, or sprawling, than his customary autograph. How was that? He recollected perfectly well. He

wrote it in a frightful hurry. He had on the day he wrote it—in the afternoon—promised to take his dear wife, Mrs. Crapp, to the theatre. He was racing through his business that afternoon. It was also very odd that he neglected to cross the cheque. That neglect arose through the same cause. Dare he venture to say, on his oath, with all the consequences of perjury before his eyes, that he had not written “Jno. Crapp” on that slip of paper? Why not? Who should contradict him? Who could do so? Only Thinshanks. Was that possible? Yes, he might from the dock contradict him, but his evidence could not be taken; and the unlikeness of the signature was a further guarantee against harm to the prosecutor from such a denial. He (Mr. Crapp) was a respectable man. Could he swear to the lie without blushing? He was afraid not. Yes, he could—he would. He couldn’t afford the loss of 50*l*. It was a heavy sum for him to lose. It was a fleabite to Undertails. They were rich beyond computation. He would venture to say it was not his signature, and risk discovery. Nobody could give legal evidence to the contrary—that was very certain.

At the next examination Mr. Snayke opened the case as one of forgery. The learned counsel argued that the prisoner at the bar had doubtless seized an opportunity, when his master’s back was turned, to tear out a blank cheque from the book, had filled up the stump; he had filled up the body of the cheque (which was not unusual), but he had also written his master’s name underneath—a course never allowed by Mr. Crapp, never before done by this young man, and which he had no authority whatever for doing. Of course he had not crossed the cheque, which showed his intention to misapply the proceeds, so that he might get those proceeds to dissipate in that haunt of vice from which he had been taken. It was (Mr. Snayke proceeded to say) an artful contrivance, and had so well succeeded, that his master, guided by the stump-cheque, was really led, in the absence of reflection, to suppose that he had, in the usual way, signed the draft itself with his own hand; but on looking carefully at the signature he immediately saw that, although a clever imitation of his autograph, this “Jno. Crapp” had never been written by him. He (Mr. Snayke) could very well understand how even a bank-clerk might, without pausing to compare signatures, honour the forged draft; but the worthy magistrate, or any one, upon making the comparison between the several cheques he now offered for comparison with the one payable to Messrs. Clockwork, see that it was not in the same handwriting as the others. His highly respectable client would distinctly

swear that the signature was forged, and there could be no doubt about it. The case was now complete, or would be when he had laid the evidence he had in court before his worship; and he should ask for the prisoner's committal to the next sessions, to stand his trial on the charge he had described.

The evidence sustained the learned gentleman's address. The prisoner, who was not a little astonished at the extraordinary blunder of his master, as he thought it, saw no object in explaining how the case really stood. If he could get rid of the proof of the one alleged forgery—that of “Jno. Crapp”—he could not hope to grapple with the other charge. He saw that the robbery of the cheque and its proceeds could be proved. He did not know the object his master had in swearing that his own signature was not his handwriting, and if he had been informed, the same authority might have told him that his purpose would not have been very effectually served by trying to expose the fraud and villany of his master.

What did happen in the progress of this very remarkable case, the reader will learn.

The prisoner's committal was reported in the newspapers. His family, with whom he had not communicated, thus got to know of his situation. They communicated with him. They employed an attorney for him, whose name I shall call Shark.

Mr. Shark, who is a notable man in the transpontine region of the metropolis, and looked upon as almost a deity, at least in power or skill, by the criminal heathen “across the border,” had private interviews with the culprit in his temporary gaol. Mr. Shark told his client to make a clean breast of it with him—that he must know the whole truth, if he was to do him any good, &c.

The unhappy client was as candid as the attorney could wish. He pleaded guilty at this investigation—not of forgery, but of the other offence. He insisted that the “Jno. Crapp” had been written by the hand of his master, in a hurry, as described, and that the neglect to cross the cheque had been the clerk's temptation. He saw that by intercepting the course of the cheque from Crapp's to Clockwork's, and that by presenting it at Messrs. Undertail's himself, he could easily get the sum of 50*l.* 4*s.* 1½*d.* Under an evil impulse he determined to do so, and was foolish and guilty enough to obey that impulse.

The wretched young man declared that he had never before been guilty of a dishonest act. This was, he solemnly protested, his first offence. His whole career had been blasted by yielding to the one temptation. He also poured into the indifferent ear of his legal adviser the story of his wretchedness from the moment when he clutched his ill-gotten money. He had, he said, endured an agony of remorse. In wild excitement he had afterwards, until his arrest, obtained his only relief from the pangs of conscience. Several times he had resolved to throw himself upon the mercy of his late employer; but the savage sternness of that gentleman's character made him tremble on the threshold of that good resolution.

Mr. Shark saw at once, and almost admired, the ingenuity of the device adopted by the prosecution for throwing the loss of the money upon the bankers. He did not think it necessary to enlighten his client on this head, and allowed him to indulge the belief that Mr. Crapp's evidence contained an involuntary misstatement of fact. He did not, he said to himself, think it any part of his duty to interfere between the prosecutor and his bankers. The prisoner had scarcely any object to gain by the denial of the forgery; and he would assuredly get no one to believe him.

This criminal practitioner saw just one use he could make of his client's frank instructions. The threat of an explanation on the one hand, and the promise of silence on the other, might get a strong recommendation to mercy from the prosecutor.

Mr. Shark called upon Mr. Croak. What passed at the interview may be guessed at through the result. When at the trial Mr. Snayke repeated the speech of which I have given an outline, he added that the prosecutor, who had been convinced that this was the prisoner's first crime, and was anxious that he should have an opportunity of recovering his lost character, instructed his counsel to recommend him to the merciful consideration of the court.

The facts were proved, and something more than the facts were sworn to. The jury found the prisoner guilty. The judge, after giving, as he said, full effect to the generous recommendation of the prosecutor, sentenced the culprit to four years' penal servitude.

The bankers allowed Mr. Crapp the amount of the stolen cheque, which had been declared a forgery by the deliberate judgment of a criminal court.

About twelve months out of the four years of hard punishment allotted to the dishonest clerk had been served in patience and unrepining penitence. He had won the good opinion of warders, governor, and chaplain. He was granted such indulgences as were consistent with the discipline of his prison. He was not unlikely to get a ticket of leave as soon as one could be granted.

One evening, amid the calm thoughts which solitude engendered, there came a notion that he ought not to have allowed that error of Mr. Crapp's about his own autograph to have gone uncorrected. It was, he had always understood, desirable to tell the truth—if for no special or other reason, for the abstract interests of truth. And, for his own sake, was it not desirable to let the real facts be known? Why should he suffer under the odium of a deeper criminality than he had been guilty of? He determined to speak to the chaplain on the subject. He did so. The chaplain thought he was right in desiring to make these explanations. The reverend gentleman, in his simplicity, said he would write to Mr. Crapp and so endeavour to lighten the burden of that gentleman's prejudice, and perhaps get his signature to a memorial on his late clerk's behalf. The chaplain, in an accidental bit of wisdom, mentioned the story of the convict to the governor. The governor saw at once, or suspected there had been, an object in Mr. Crapp's evidence, although he hardly knew what it was. His brother-in-law, who was a solicitor, was then on a visit at his house for a couple of days. The whole story was repeated by the chaplain and governor to the lawyer. He traced the successful fraud in his imagination at once. The circumstances were accordingly mentioned to the proper authorities, who directed that the facts should be communicated to Messrs. Undertail, the bankers.

The head of the banking firm who had been so defrauded out of 50*l.* 4*s.* 1½*d.*, consulted their solicitors, and was informed that under the new law of evidence the testimony of Thinshanks could be used in a prosecution against Mr. Crapp, which they recommended as an act of simple justice, and for the interests of the banking community. Mr. Undertail's partner was a truly generous man. He shrunk from the destruction of a respectable tradesman, and the firm was by this partner led to hesitate. Mr. Undertail consulted the solicitors again on the subject, and they still thought the firm were bound to prosecute.

There were some difficulties about the case. The evidence of the convict might be disbelieved. Mr. Snayke, or whoever might be Mr. Crapp's

counsel for his defence, would assuredly argue that the convict had, in the solitude of his prison, invented this story, in order to gratify a revengeful feeling against the master who, although he had prosecuted him to conviction under a stress of duty, had recommended him to mercy. Yet there were some corroborating facts to be laid before the jury. Experts might testify that the signature was not a forgery. Mr. Crapp's hurry might be sworn to by the convict; his visit to the theatre, which caused it, might be proved. The motive of throwing the loss upon the bankers could be argued.

Second thoughts in a counting-house at Lombard Street ran in the same direction as in the solicitors' office. It was determined to prosecute Mr. Crapp, in the prospect of his conviction for the good of society.

Within a few hours of the formation of this opinion Mr. Crapp fled from his house, and as a living man was never again heard of. The body of a man resembling him was ten days afterwards washed ashore at Barking Creek.

I suspect that Mr. Undertail's partner was led by his excessive generosity to warn the wretch of his peril, that he fled in consequence, and that, dreading capture, shame, and punishment, he committed suicide by drowning.

Does the reader wish me to answer the question at the head of this narrative? He is welcome to my opinion, and at liberty to differ from it if it does not please him. I think Mr. Crapp was worse than his clerk; I think that Mr. Croak was a greater criminal than either; but I consider that the vilest knave of the lot was Mr. Snayke.

A GRAND RAILWAY "PLANT."

DOES the reader know that all the money taken at a railway station is sent up to head-quarters every night? Such is the arrangement. The money is put into a box, constructed as well as may be to render peculation or robbery on the way difficult, if not impossible, and off it is sent. An "advice" is of course also sent by the station-master or cashier from the particular station to the head-office. The money for paying salaries and wages is also sent in a like manner in a reverse course from head-quarters to the tributaries from which it originally came. The chief station, terminus, or office, is in fact the centre of an arterial monetary system. Every thing in the form of cash comes in there and goes from there.

The mode of paying wages, or at least of conveying the wages from head-quarters, is this. In order to guard against robbery or fraud, a list of all the porters, engine-drivers, guards, and other servants who belong to or are allotted to each station for payment, is sent up to head-quarters. On a given day—say Friday or Saturday—this list is taken back to the station by a clerk from the cashier or secretary's office, who also takes with him the sum required to pay all these servants their wages. The clerk makes a journey from one end of the line to the other, depositing, as he goes along, a parcel of money packed up with the wages-list. These parcels are received from the hands of the clerk by some one who is always on the lookout at each place of deposit, with that eagerness or care men usually betray when they expect to obtain the reward of their industry. The arrival of the cash-bearer is always either known by fixed arrangement or by a special telegram which is sent down the line.

The reader is, I dare say, also quite unaware of the fact that, until a year or two ago, there existed a gang of the vilest scoundrels, who derived enormous gains by the systematic plunder of railway companies. Their modes of operation were as various as the devices of wicked ingenuity could possibly make them, and their ramifications were astonishing to the most practised detectives. Their subterfuges, plans, and arrangements furnished me with many a long and lucrative job; and very many cases, it is fair to suppose, went undiscovered, or even unsuspected. They brought actions for injuries never received, by persons who were never present at

collisions or smashes; they made demands for lost parcels which, as an Irishman might be excused for saying, had never been lost; they stole passengers' luggage; they appropriated goods in course of transit; and they had other schemes of plunder. So widely ramified was their machinery, that in nearly every large station there would be a confederate ostensibly doing the company's work, receiving the company's pay, and ranked among the company's faithful servants. On every ninth or tenth train there was a guard who had a connexion, either as principal or agent, with the plunderers. At the head-quarters of many lines of railway throughout the kingdom—in the secretary's, chief cashier's, and manager's offices of several lines—they had their spies, informers, and associates.

The usefulness of these spies at head-quarters was enormous. Take the case of a pretended accident by way of an example. An action was once brought against a company having its chief station in the metropolis. The plaintiff asked damages or compensation for the injuries sustained through a collision. The company did not see its way to resist the claim entirely, but as they considered the amount wanted by the plaintiff to be excessive, they thought it could be reduced by negotiation. Two thousand pounds was the sum originally asked. The plaintiff, however, in the course of the negotiation, reduced his expectations to 1000*l*. This was, his attorney said, the very lowest he would accept. The company's solicitors reported this one day, and were authorised to settle by payment of 800*l*. and costs. The company's solicitors thereupon offered 700*l*. as their very highest figure. If this was declined, they must, they said, fight to the end, and see what a jury would give. It was of course their intention to spring 100*l*. at the last moment, rather than let the negotiation break down. The plaintiff's attorney, however, in reply to the offer of 700*l*., wrote back to say that he had seen his unfortunate client, who, in order to put an end to dispute and litigation, would take 800*l*., but not 1*s*. less; and added, that it was useless to negotiate further if that concession were not met at once by an assent. It did not appear, nor was it at all remarkable, that the negotiation should be thus conducted up to the very point at which the company's solicitors were empowered to settle; but the real cause of the plaintiff's agreement to accept 800*l*. was the information he had received that that sum was the most he could hope to get without passing through the ordeal of a public investigation—a test the gang would always yield much to avoid.

It happened, by a singularly fortuitous combination of circumstances, that I had under my vigilant eye at that time a man who was concerned in getting up a forgery. In the course of my watch I saw letters passing to and from the secretary's office of an important railway. It was no part of my business to report the circumstance. To have done so might have spoiled the game I was playing; so I took no notice, or rather made no sign. In less than a week after the delivery of the last letter, about six o'clock in the evening, my plot was ripe, and I seized my man. Extraordinary inadvertence, and wonderful care! He had destroyed one link in the chain I was constructing with his own unconscious aid, but he had preserved one link in another chain of equal value and utility to his other foes. On his person I found a note, in cipher it is true, but written on paper which had an impression of one of the company's seals.

The cipher was, moreover, not so very hard to decipher. A friend, to whose skill I paid a deserved compliment in my former volume, soon unravelled that mystery.

Would the reader like to guess what the letter contained? It was a transcript in cipher of the minute of the board in relation to that case of damage and compensation! A confederate of the gang, or at least one of its spies, actually held a confidential situation in the secretary's office, so near to the heart of the company's innermost secrets that he could copy the minutes from the book in which their resolutions were recorded. It was under this guidance the plaintiff instructed the attorney, employed by the gang for that action, to take his stand upon 800*l.* precisely, and it was through this infamous betrayal of the company's confidence that the plunderers got the money.

Of course I now handed the document over to the company. The money had, however, been paid. My prisoner was found guilty on another charge, so that it was not requisite to prosecute *him* for the railway fraud. The clerk was also not prosecuted. He escaped that fate under the shelter of his respectable connexions. He solemnly assured the directors that he had not participated in the plunder, that the forger was not one of his regular associates, that he had learned the cipher, but as an amusement, playfully, and that he merely told him the effect of the board's resolution in order that he might induce his friend, the plaintiff (who he supposed had been indeed hurt), not to persist in his excessive demand. The directors believed, or affected to believe, this story. Perhaps they did not like it to transpire that

fraud and villany had nestled in their head-quarters, and so near to the very centre of their administration. However that may have been, I know that they reprimanded, censured, and dismissed the clerk, and that they abstained from his prosecution.

When this young gentleman, who had copied the minute, was discharged, the company imagined no doubt that they had weeded out the fraudulent elements which tainted their confidence. How great their mistake was will now appear. The matter I am about to speak of occurred only about twelve months after the episode just narrated.

It so happened that, at the date of this grand “plant,” a clerk attached to the chief cashier’s office, whose duty it was to convey the wages down the main line, had arranged to take his annual month’s holiday and to start on Friday—the day on which he had always delivered out the money.

“What is to be done about the wages, sir, this week?” the clerk inquired of the chief cashier.

“Oh, that’s easily managed, Wilson,” replied that gentleman; “you must pay on Thursday.”

“Thank you, sir. But shall I telegraph to the stations and tell them we pay this week on Thursday?”

“That may be as well, Wilson,” added the chief cashier.

Now, whether any message was handed to the telegraph-clerk by Wilson, or not, is a mystery yet unsolved. He says that he did so. The telegraph-clerk says he did not. Between these conflicting statements there hangs a painful suspicion to this day. It would seem only probable that the liar was a confederate of the gang, but that is not a certain inference. The written message may have been handed by Wilson to one of his fellow-clerks in the chief cashier’s office, in a confusion or excitement resulting from his impending holiday; or it may have been inadvertently placed aside by the telegrapher, and one of his associates may have destroyed it in order to favour the criminal enterprise which its suppression (from whatever cause arising) did render possible.

The board of directors could not, and perhaps could not be reasonably expected to judge between the conflicting declarations of the two clerks, so they dismissed both from their situations, and thought they had done all which impartial justice and their duty to the shareholders required.

The only certain fact is a negative one. The telegraphic message was not sent. The wages were looked for, and looked for in vain, on the Friday.

Wilson, laden with a good round sum of money, went down the line on Thursday, as he had arranged with his chief. He went, as ill luck would have it, according to his promise in the telegram, by an afternoon express, and, as if the elements favoured the fraud, a heavy autumnal mist, nearly amounting to a fog, lasted during the whole of his journey; although I don't know that events would have taken any other form or colour if the day had been distinguished by sunshine.

As Wilson approached each station the train slackened speed, according to usage when he travelled by it on such an errand, and he put out his head from the carriage in which he enjoyed a separate compartment. As soon as it appeared he was greeted by a friend—or at least some one who knew his features very well.

“Good afternoon, Mr. Wilson. You're early this week. Never too soon to take money. Hope you'll enjoy your holiday, Mr. Wilson.”

These sentences embody the pleasant wishes of his quondam friends, and with slight variations confirm the letter, as well as the substance, of all the greetings he received.

As each friend so greeted the clerk he took the money designed for a particular station, and in double quick time the train was again in motion.

In some cases the train didn't stop at all. The money was dropped out much in the way that mail bags are dropped; an attendant being on this Thursday, as on previous Fridays, in readiness to meet the expected boon.

At one station—it was a large station—a man, who was there patiently waiting to receive the cash from Mr. Wilson, was disappointed. An old acquaintance caught a glimpse of the cash-clerk as the train slackened speed.

After a moment's shaking of hands Wilson offered the station-clerk the money.

“Here it is,” said Wilson.

“What?” inquired the other.

“The screw.”

“It's only Thursday.”

“Yes; I'm off to-morrow for my holiday.”

“Oh! very well. It’s just as welcome to-day as to-morrow, I dare say; but why didn’t you say you were coming to-day? ’Pon my word, I wasn’t looking out for you; and what an awful lark it would have been if you had had to take the money back to London!”

“I did telegraph on Monday.”

“The d—l you did! The gaffer never told me any thing about it. It’s just like him; but never mind, I’m mum about his carelessness. He’s a good sort.”

The train moved on again, and the expectant thief went empty away.

From another station the money was lost. That is to say, it reached neither the hands for which it was intended by the company’s cashier, nor those who laid a plan to divert it into other channels. It went in a direction that neither party contemplated.

The train did not stop at this station, and a man was there to receive the money, but his movements had, he thought, been noticed. He was cautious—perhaps needlessly timid. He thought that as the train approached two faces were peering at him from the station-master’s office. So he turned, went into the station, asked when the next down-train which stopped at that station would arrive, and sneaked away.

Wilson arrived at this station in due course, and saw what he took to be a man in waiting for him. Unluckily the wheels did not properly bite the rails, owing to the damp and their slipperiness, so that he had not sufficient time for observation, although the condition of the atmosphere rendered careful notice doubly requisite. Into the hands, as he supposed, of the official in waiting, the incautious (and I think I must, after all fair allowances, say very negligent) clerk dropped his packet, which lay there unnoticed until morning.

An old man and woman, passengers by the market train, then saw it, picked it up, took it home, said nothing, but inserted it in a hole up the cottage chimney for a long while; after which they informed the parson of the parish that an uncle of the husband’s mother had sent this money to them. It was the amount of a legacy. The clergyman thought it remarkable that this money should be received abruptly, without his knowing a word about any previous correspondence with lawyers; but the parson was not a suspicious man, and he made no inquiries.

The sum, although not large (only about 53*l.*), was very much more than the usual weekly apportionment to the station where it was dropped. The wages there were not more than 8*l.* per week. There was, however, a sum due from the company to a cattle-dealer, as compensation for the unpublished destruction of a part of his freight; and this was forwarded along with the wages to the station-master, with strict directions about the form of the receipt he was to take for it.

The clergyman advised that the money should be laid out under the guidance of Messrs. Seal and Delivery, highly respectable solicitors in the neighbouring town of H——. He gave an introduction to those gentlemen by a letter, which explained the matter as it had been explained to him; and this introduction, and his explanation, saved all inquiries as to the source of the funds, which they profitably invested for the childless couple, who will never enjoy a penny of it.

The two miscarriages I have mentioned were the only failures of the plan of the gang to capture one whole week's wages throughout the line of the Great —— Railway Company.

Next day (Friday) Mr. Wilson went on his holiday trip to Paris. The company's servants were expecting him, as usual—except at the one station to which a misadventure had taken the money intended for its use. It is needless to say that no Mr. Wilson and no money reached either of these places from London, as expected. Until rather late in the afternoon, when the chief cashier's office was closed, and that exalted functionary and all his clerks had gone home, nothing was said about the affair. It had not indeed until then become very remarkable; but as soon as the fact became the subject of particular notice, it rose to the magnitude of a grievance, and threatened to become a scandal.

"We've had no money, and ain't likely to get none till to-morrow," said a porter at one of the extremest stations to the guard of an up-train.

"Oh, bosh; don't come that, you know. I sha'n't lend you another shilling in a hurry," retorted the guard, who had two days before lent that small amount to the friendly porter.

"'Pon my soul, we ain't," rejoined the porter; and he appealed to his fellow-servants for a corroboration, which they supplied.

"It will be all right to-morrow," said the guard. "I suppose the chief cashier has got a headache and hasn't been to the office, or Wilson has got

the belly-ache, or some fine thing or other. Well, it's lucky for me my old woman isn't without a pound; so she can go to market, if we are as bad off at our station as you are here; and I suppose we're all in the same pickle."

The porters were less philosophical. All their domestic and personal arrangements were planned on the theory of a week's wages on Friday, and no other day. The wives might have been allowed to postpone the purchase of the Sunday joint and the rest of the needful week's supply of provision, but every man had engagements which could not be so easily deferred. Every Friday night the porters assembled at a "public" to spend a convivial hour. Was this enjoyment to be sacrificed, or even postponed? It was more than human nature, cast in the railway-porter mould, could endure without protests as loud as they were deep. Were they to be laughed at, and jeered at, and told that the company was insolvent, that their masters couldn't pay their wages? It was too bad. Hadn't they feelings as well as a secretary, or a general manager, or a director, or the chairman of a board? That was what they would like to know. They meant to say it was shameful, scandalous, atrocious, and abominable, and worthy of harsher terms of description. This is not only what they meant to say, it is what they did say.

During the night the news had circulated up and down the line, and over all its tributaries. In the morning it was known to the secretary and the chief cashier. The circumstances of the case were so peculiar, that these leading functionaries did not feel themselves competent to deal with it. The secretary hastened to confer with the chairman of the board, who again consulted two of his colleagues, who happened to be in Town, and, in consequence, certain steps were taken.

In the first place a cheque was drawn upon the company's bankers for the amount they had been robbed of—exactly 2310*l.* 18*s.* 6*d.*; and a clerk was despatched to all the stations for the satisfaction and comfort of all the indignant servants, who had now grown clamorous for their wages.

Wilson's conduct was the topic of serious consideration. Could he have run away with the money? How could the robbery have been effected without his participation or connivance? What was his previous character? What sort of references did he bring to the company when he first entered its service, now five years ago? The latter questions were answered satisfactorily; the former were not. The chief cashier echoed a general opinion when he declared that he did not think Wilson capable of such a

villanous and wholesale robbery. Yet the chairman of the board and the secretary did not see how the thing could have been perpetrated without his connivance, or, they thought, indeed without his active participation. They asked again and again, How could it have been done in despite of his vigilance? They searched the papers, and examined the “Clerks’ Reference Book” to see what sort of references he gave when engaged as one of their servants. Nothing could be more satisfactory than these. Their distinctness, emphasis, and verisimilitude were, it would seem, an adequate guarantee for his fidelity in any place. Yet again and again these very inquiries landed them upon the question, How could it have happened without at least his connivance? His mode of life, his habits, and his manners, conversation, tone of thought, and known tastes, were repugnant to the theory of his criminality. Yet again, here the chairman of the board ventured to say that he had heard of rascals who covered the most nefarious designs, and even found their opportunities for the commission of crime, in the well-sustained outward show of virtue. He was absolutely sure that that fellow Wilson was at the bottom, if not also at the top, of the crime.

The solicitors to the company were instructed to take such steps as they might think fit in the case. They consulted me, and I gave it as my decided opinion that the facts were as consistent with the innocence of the clerk as with his guilt. This was a view of the matter which had not occurred to the solicitors. Lawyers have a kind of second instinct, which always makes them lean to the dark side of conduct and of events. Of criminal lawyers this is especially true. A regular Old-Bailey practitioner cannot understand a theory of innocence. It would be far more easy to convince any judge or jury of the guiltlessness of an accused man or woman, than it would that able and accomplished gentleman with the hooked nose and guttural voice, who is known as the “thieves’ attorney-general,” in the City of London. But what does he care about the guilt or innocence of his clients? Literally nothing. Under the genial influence of a fee, he will speak as eloquently (in his own and in some other person’s opinion) and contend as loudly that his client is really guiltless, whether he be so or not. If any thing, as he has often had occasion to say, he likes to have a confession of crime from the accused, because then he knows that the client is not humbugging him; he relies upon a knowledge of the worst; he is sure that no facts are being concealed from him; and he can tell how far it is safe to carry his objurgations or his cross-examination of witnesses. The company’s

solicitors were, it is true, not men of this precise stamp. Still, they had in their professional career seen so very much of the corrupt and evil in mankind, and so very little of the higher traits of human nature, that they were always ready to accept unfavourable hypotheses in explanation of human conduct, and slow to receive opposite theories in their place. They were hard to convince that Wilson *might* be innocent of all participation in the robbery. At length, however, after carefully weighing all the reasons I advanced against the immediate arrest and accusation of the clerk, they admitted it was just possible that he did not aid the conspirators and thieves otherwise than by his gross and culpable negligence.

I speedily ascertained how and where Wilson intended to spend his holiday. It was arranged that I should follow him. If, when I overtook him, he consented to return with me, I was not to legally arrest him. In case he should, however, refuse, or manifest any decided unwillingness to return, warrants for his seizure in Paris and his rendition were procured, and placed in the hands of an ordinary detective officer, who accompanied me, and had instructions to obey my directions.

Thus armed, we proceeded to Paris. To discover the suspected clerk was not difficult. It was one of the easiest tasks I ever had allotted me. I found out the hotel he put up at. He was not in when we arrived there, somewhat early in the evening. I left my companion with the warrants at the hotel, while I went further, in quest of Mr. Wilson.

I had a special motive for this part of my little arrangement. I did not think my man would return during my absence from the hotel. I thought it most likely—as I knew my way about Paris, was acquainted with the institutions of the gay capital, knew I could get aid from the French police in my search, and for other reasons—that I should bring Mr. Wilson back to the hotel, a prisoner in fact, although under no formal detention. In case I did not discover him out of doors, I resolved to return alone to the hotel in good time—in all likelihood to meet him there. I wanted to have the first word with him, and, if I could, to have that word in the absence of my fellow-traveller, clothed with so much authority.

And why, the reader may ask, did you want to take this advantage of the law's proper servant or officer? I did not want any such advantage. I would have given him an advantage, which might have served his turn at Scotland Yard, if I could have done so with what I considered fairness towards the

suspected. I did not wish the circumstances of his arrest to prejudice him with his masters, and it might have been before a criminal tribunal. My experience of human nature and of society had suggested to me that this young man might perhaps, when so far from the scene of his labours, beyond, as he supposed, the eyes and ears of his employers, and in a holiday mood, visit some places, not thought proper places by many right-minded folks, of whom I am, at least in this respect, one. As I felt that the weight of suspicion, before evidence of guilt, already bore with undue force upon the clerk, I thought it wrong to let the weight of another element (however fair in itself) be added to the burden of prejudice. If I had then been, as I have on other occasions often been, employed to watch leisure movements and scan the holiday pursuits of a clerk, so that his masters might by my report determine whether or not he were fit to hold a position of trust, I should have had no desire to screen the incidents of Mr. Wilson's visit to Paris. Here I saw or thought I saw it my duty to bring him back to London, in order that he might render such explanations as he could about a particular crime. To do this effectually, I argued that it was desirable, for his sake truly, but also for the interests of justice, that he should encounter no prejudice which the clerks' reference book, his antecedents, and his general conduct did not warrant. This, I hope the reader will see, was but an act of simple justice to the suspected. Let me add, that I foresaw, if the clerk were really innocent, but if prejudice led to his wrongful arrest, the true culprits would have had an effective warning to destroy any clue while their pursuers were on the wrong track. Whatever the reader may think, I am candid enough to say, will not alter my conviction that I acted so far prudently and justly.

I found Wilson, costumed a little *outré*, in a "fast" dancing-room of the French capital. A gendarme pointed him out as a new arrival. An inspection of my photograph satisfied me of his identity.

I accosted him as "Mr. Wilson?"

"That's my name."

"I know it perfectly well. I want to speak with you."

"Who are you? What's your name? What have you got to say to me?"

"If you step aside to the other end of the gallery, and leave this pretty little lady here, I'll tell you."

"You be—"

I stopped the remainder of the sentence by a look which terrified him.

I whispered in his ear that I wanted him, and should, if he did not obey me, call upon the police, who were in force in and about this haunt of folly and vice, to arrest him, on a charge of robbing his employers, the —— Railway Company, of 2310*l.* 18*s.* 6*d.*; but that if he followed me back to his hotel, and from thence to London, he would have an opportunity of rendering any explanation of the case which lay in his power.

He extricated himself from his frail companion, and we proceeded together to the end of the gallery, where conversation, unheard by the disinterested, was possible; and I told him in greater detail the circumstances of the robbery. He naturally denied all knowledge of the affair; said he was entirely unable to account for it; and, although it was plain to see the terror inspired by a bare suspicion against him, he expressed an ardent wish to return with me to England, and lend all the assistance he could in the discovery of the culprits.

I explained my reasons for not allowing my friend with the warrants to arrest Wilson. He was very grateful. I told him that if he followed me out I would allow him to make his way, under my eye, to one of the least objectionable of the cafés on the Boulevards, where I should take him into my custody. The poor wretch was glad enough to avail himself of this privilege.

I telegraphed my success that night. By an early train next morning we took our journey homewards, and arrived in London the same evening in due course. Mr. Wilson consented to become my guest for the evening, and until either the stress of duty compelled me to hand him over to the police, or I had the pleasure of announcing that he was no longer under restraint.

The day after my return to London there was a solemn conference at the head-quarters of the —— Railway. That august assembly, the board, had been hastily convened, and had a special meeting. The whole matter was investigated by the light of facts now within the knowledge of its officers and advisers. Other minor and auxiliary conferences were held in ante-rooms between myself and the leading partner of the firm who enjoyed the lucrative and honourable appointment of solicitors to the company. The results of the whole deliberations put together were, a resolution not to prosecute the suspected clerk, because there was not enough evidence at hand to warrant a conviction; and another resolution, that as there was more

than enough evidence to justify a strong suspicion of his complicity in the affair—as there was abundant proof of gross negligence—the clerk Wilson should be dismissed.

One victim not being sufficient to compensate for the loss of so much money, the two other clerks—one in the chief cashier's and one in the telegraph department—were also deprived of their situations.

The most unsatisfactory part of the affair, to my mind, was the abandonment of all further search for the culprits. No why or wherefore was given me in explanation of this abrupt and extraordinary decision. I suspect the cause was an unwillingness to allow so palpable a sign of administrative weakness at headquarters, and from the very centre to the extreme circumference of the financial operations of the company, to be trumpeted throughout the world. I have known much heavier losses quietly submitted to for a like reason by joint-stock companies and by great mercantile firms. When one of the oldest, wealthiest, and most highly reputed discount-houses in the City of London discovered that its chief acting partner had advanced a young firm of traders a vast sum of money upon the security of forged dock-warrants, it determined not to prosecute the scoundrels, because the defrauded gentlemen, knowing their own importance, feared that if it should become known in Lombard Street that they, the great, old, wealthy, and “knowing” house, had been so let in, all the floating securities in the London markets would be discredited, a panic would seize all the money-changers, metropolitan bankers would be involved in trouble that might upset a lot of them, the governor and company of the Bank of England would have to guard its issues, limit to the minimum its credits, and, in fact, that through the one gigantic fraud a radius of half a mile round the Royal Exchange (where the potentates of gold, who are the arbiters and controllers of manufacture all over England and beyond this Queendom, do congregate) might become a scene of despair, ruin, or chaos. Am I overstating the case? Let the reader who thinks so peruse the evidence given by Mr. Chapman, of the well-known house of Overend, Gurney, and Company, at the London Bankruptcy Court, and in the Central Criminal Court, in the proceedings taken against Messrs. ——. Or, if he cannot readily learn the particulars of this noted case, let him ask any friend who knows the history of British banking and British trade during the last twenty years, and that friend will supply him with at least as many instances in which splendid swindles, forgeries, and frauds have not been investigated—

ay, or, being investigated and proved, have been secretly condoned, for such reasons as my imagination assigns to the directors of the —— Railway Company for their decision in the present case. No man of the world, no one who has had much experience in practical business, will gainsay the probability of my suggested motive. I do not say that the reason hinted at was the operative reason in this instance, but I think it was, and I say that I think it was; and the intelligent reader can form his own opinion as to the soundness or hollowness of my hypothesis.

It may be satisfactory to further explain (as I have very much pleasure in doing), that although not instructed to hunt down the perpetrators of this crime, I was requested to assist the officials of the company in framing such arrangements as would make it impossible to repeat a robbery like that so successfully accomplished. With the aid of the company's officers, I did this; and I have the satisfaction of knowing that if any further designs of the same description were afterwards conceived, they were never carried out. A survey of the obstacles to their realisation must have warned off the conspirators.

The reader who desires to see poetical justice summarily inflicted on every wrong-doer as soon as the wrong has been committed, may have been grieved to learn that a gang of villains escaped their merits. I shared that feeling. I do not believe that Wilson was in the fraud, although I cannot undertake to say that the evidence of my faith is so perfect as I could wish. He, however, was utterly and hopelessly ruined, by the dismissal from his situation under circumstances of so grave suspicion; and if his worst offence was negligence (as I suppose), he has been terribly punished. The last time I saw him (not six months ago) he was selling penny packets of "stationery for the million" on a stall in one of the popular marts at the East End of London. The reader last mentioned may obtain some proper comfort in the evidence I can supply as to the ultimate vindication of justice upon the persons of the whole of the gang concerned in this great "plant." I hunted down four of them not long since, and one volunteered a statement of the facts of that case (as each of the four did), in the hope of being admitted to the privileges of what the Irish call an approver. During this conversation (after he had completed his confession of the offence he was then charged with) he also told me that he had taken part in this affair along with all his present companions in crime,—who were the last of the set who had up to that date eluded justice.

AN EPISODE OF CRIMINAL JUSTICE.

SOME time ago a robbery was perpetrated in the mansion of Lord H——, which is situated in one of the squares of Belgravia. The thieves made a tolerably successful and remunerative haul. They cleared out the whole of the plate, and also much of the jewelry, which chiefly belonged to Lady H——, and was of enormous value.

How the thieves obtained access to the premises did not for a long while seem at all clear. Appearances on the surface warranted a belief that one or more of the servants of his lordship or her ladyship had aided and abetted the robbery. But there was no scintilla of what is called legal evidence to justify or warrant that suspicion. Nobody attached to the household was therefore arrested on the charge; but a reward was offered for the discovery of the offenders, and ordinary police vigilance was exhausted in the endeavour to track the delinquents.

Weeks and months (about three months) rolled by, and nobody was brought to justice.

His lordship was irritated beyond measure by this failure of justice. He one day went to his solicitors, declaring that he would spend half his fortune, if necessary, in order to secure the offender and his adequate punishment.

What share in the production of this decision Lady H—— may have had I do not know, but I have a notion that she had much to do with it; for it is certain beyond all doubt that the loss of her jewelry preyed upon her spirits, and exasperated her to the last pitch of intensity. Being rather shrewishly inclined, she would, I verily believe, have inflicted summary vengeance on the stoutest of the thieves if she could have clutched him.

Lord H——'s solicitors were somewhat annoyed at the failure of the police in the discovery of the criminals. They communicated with me upon the subject, and I at length was employed.

It was a teasing and difficult job. It gave me ten times more trouble than many a greater and more important business. Yet, having undertaken it, I was determined to go through with it. I would not, I felt, be baffled.

For a long while I could obtain no clue. At length I did get a scent of my prey, and from that moment the result was certain, although it could only be overtaken by a circuitous and uneven track.

I at length hunted down the principal delinquent.

The whole robbery had been effected by one man and one woman. The woman fled as soon as the man was arrested. I might have secured her before, but in doing so must have lost the man. Her arrest would have given him notice of his peril; and, in truth, I was almost careless about the female's escape if I could catch her companion.

Lord H—— was more exasperated than ever when he ascertained who the criminal was; although he assured his solicitors, as they informed me, that he had not the slightest knowledge of the man, nor did he suppose the delinquent had any knowledge of him beyond that which all thieves of London might have in common of a nobleman.

I suspected that some mysterious cause inspired this desire for vengeance in his lordship, besides the natural influence of his loss upon his mind. That was sufficient to account for much revengefulness, but it did not appear to me an adequate motive for the sudden increase of such an emotion since the disclosure of the identity of the criminal. I do not, however, know that my suspicions were correct. It is possible that they were incorrect.

The offender was brought before the magistrate, in the usual course, and remand upon remand was applied for and obtained. The prisoner's attorney resisted the application with all his argumentative power and force of advocacy, but in vain. The prosecution was thought by the bench to be entitled to every opportunity for discovering their property, and so involving the prisoner in the evidence of his guilt as to render his escape through the meshes of the law impossible.

At length the case was brought home with sufficient clearness to the prisoner, not only to warrant his committal for trial, but to secure his conviction when that trial took place. He was accordingly committed.

Next sessions a true bill was found against the prisoner by the grand jury of the Central Criminal Court, and in due course the prisoner was placed in the dock, to go through the great ordeal in connexion with this case.

The court was somewhat crowded. The incidents of this robbery had attracted public attention. The value of the plate, the rareness of the gems,

the neatness and completeness of the exploit, had all combined to invest the case with an air of public importance.

In the court, awaiting the trial with greedy anxiousness, were Lord and Lady H——.

In the gallery was a female, attired in costly raiment, enriched by here and there a jewel of considerable value. She was, perhaps, one of the handsomest women in London; and her beauty was of that order usually denominated “sweet.” There was an apparent gentleness and amiability of expression underlying the traces of deep and painful emotion which something then transpiring, or anticipated, had aroused.

The eyes of this elegantly attired and beautiful female rested entirely upon Lord and Lady H——, who together occupied seats upon the bench on the right hand, a short distance from the judge, and who were prominent marks of observation for other persons beside this interesting female.

The case then before the court was a tedious trial for perjury, in which there was a mass of conflicting evidence. The tasks of judge and jury were rendered peculiarly difficult by the tangled mass of fact and fiction which the skill of the prosecution and the dexterity of the defence had laid before the court. To the parties interested in the next case—that of the plate robbery—no doubt this protracted evidence was very irksome, as well as to the man in the dock, whose liberty trembled in the balance of this conflicting testimony, or the discrimination of his fellows the jurymen.

Simultaneously with the latter portion of this trial for perjury, the counsel for the defence, Mr. Sergeant Ponderous and Mr. Anthony Stuffgown, were engaged in a consultation with Mr. Wheedle, the prisoner’s attorney.

A communication had been made to the latter “gentleman according to Act of Parliament,” the night before. It was a letter written by the fair spectator in the gallery of the court, who had also had an interview with Mr. Wheedle that morning.

The position she then occupied in court had been selected for her by the prisoner’s legal adviser. He had calculated with tolerable precision where his lordship would sit, and he wished her to be within the range of his vision, without being too prominent to the disinterested spectator.

The prisoner’s attorney had, in this consultation, explained to the counsel his stratagem, or intended *coup de théâtre*. The learned sergeant and his

learned junior considered the idea a good one, and may be said to have approved it; although, as they explained, it was no part of their professional duty to offer an opinion upon it. When the consultation was ended, the counsel returned into court, one taking his seat and the other hanging listlessly on the railing of the counsels' boxes.

Mr. Wheedle was on the staircase of the court, watching its two modes of egress, and awaiting the effect of his little stratagem.

An usher received a three-cornered note from the hands of somebody, addressed to Lord H——, with a small gold coin, and a request that he would put the half-sovereign in his own pocket, and hand the note to his lordship unseen by her ladyship.

The note ran thus:

*“Gallery of the Old Bailey,
“July 19th, 185-.*

“MY LORD,—For Heaven’s sake, don’t prosecute my brother, and kill your faithful
CLARA!”

His lordship cast his eyes to the gallery, and for the first time in that place he beheld the form and features of a lady not unknown to him, but one he had very frequently met elsewhere. Those eyes, and the recognition of the writer, were too much for the nobleman’s delicate sensibilities. His face became as pale as chalk. He trembled almost as violently as a man attacked by St. Vitus’s dance. He swooned immediately after he had thrust the missive unseen into one of his pockets.

This event caused what the reporters for the daily journals described as “a painful sensation” in court. His lordship was removed in his carriage to his residence in —— Square, Belgravia, without uttering more than one sentence.

That sentence he so uttered was an instruction to his solicitor to get the trial postponed.

The trial for perjury, after a short interval, was proceeded with, and ended in the prisoner’s acquittal.

Whereupon Mr. Keeneye, as one of the counsel for the prosecution, rose after a conference with his learned brother retained for the defence, and, addressing his lordship, begged that, owing to the sudden illness of the prosecutor, the trial of the prisoner might be postponed. The prisoner’s counsel felt, they said, some difficulty in resisting the application after what they had seen, but added, that they thought the prisoner, who had done nothing to cause his lordship’s illness, was entitled to be liberated on bail. The judge, after glancing at the depositions, said he did not see that the accused had any such claim, and declined to attach that condition to the adjournment of the case, as prayed for by the prosecution.

Clara, who from the gallery beheld all that had gone on, and who devoured every word that had been uttered by the lawyers and the bench with greedy ears, maintained a wonderful show of self-possession, but was stirred by the intensest and most anxious thought. She left the court when this decision had been arrived at in her brother’s case; he being, indeed, quite unconscious up to this moment as to what had taken place in his

absence, and, when it was explained to him, being left ignorant for the time of its cause.

Next session the prisoner was again brought up for trial. His lordship attended—but not her ladyship. She was induced to remain at home by the solicitude of her husband, who apprehended the effect upon her of the fetid atmosphere of the court. Although he had been up to the day first appointed for the trial resolutely bent upon securing to the prisoner the weightiest punishment he could get inflicted, he was now prepared to recommend the prisoner to mercy.

The evidence, which in the briefs as originally delivered to counsel disclosed a complete chain of proof, was remodelled. They now contained a narrative which set forth the difficulties of the theory for the prosecution, and went far towards explaining away the points against the accused. The briefs for the defence, which as originally delivered set forth no possible answer to the charge, now contained a theory which reconciled the evidence as it stood, or was expected to stand, with a possibility of the innocence of the accused.

A witness for the prosecution did not answer to his name when called; and the reader may be informed that this witness had gone beyond the jurisdiction of any English tribunal. The result was, that the prosecution broke down, and the culprit was liberated.

The explanation of this miscarriage of justice is simple. Pretty Clara was the mistress of the noble lord. He had indeed seduced her some years before, and she had been living since then (unknown to his wife) under his lordship's protection. She was the sister of the prisoner. She was innocent of all participation in or knowledge of the robbery. For many years she had not seen that brother. They were orphans. They had both been thrown upon the world at a very early age to earn their own bread. She, when not more than fourteen years of age, had been placed in one of the West-End millinery houses, and had won a promotion to the counter of a shop in Oxford Street. He had occupied a situation in a City warehouse, but had never obtained a promotion by the exercise of any industry or fidelity on his part.

Brother and sister had both diverged from the paths of virtue in different ways and at different times, and had been for a period of six years unknown to each other. Neither cared to let the other know his or her whereabouts, pursuits, and mode of life. What had become of her, the reader knows. Of

him it is necessary to say, that he robbed his employers, who forgave what they correctly believed to be a first offence, but discharged him without a character. From step to step he travelled deeper and deeper into the mazes of criminality, until he got inextricably involved with associates in various cases of fraud, larceny, and burglary.

The mode in which the robbery had been effected was very simple. The prisoner had won over the affections of a servant in Lord H——'s household, and used the information he thus obtained to effect, with her connivance, if not her assistance, the crime for which he afterwards stood charged at the Old Bailey. This, however, was not his first appearance in that court. He had been there on a former occasion, and had, as on this day, been acquitted by a flaw in the evidence against him. The sister, through whose instrumentality he now escaped, became acquainted with his last crime and peril by a newspaper, which, in noticing the cases laid before the grand jury, mentioned, as a fact discovered by the prosecution, the real name of the accused, and one or two instances of his early career, sufficient to prove his identity with her lost brother.

From the moment when Clara made this discovery, it had become impossible for her to get access to his lordship. Her first thought was to throw herself at his feet, and ask, as the only disinterested favour she had sought at his hands, and as the highest reward for her dishonour—a brother's liberty. Foiled in this, her woman's wit suggested a communication with the attorney for the defence. She had no difficulty in ascertaining who had that task allotted to him, and she met Mr. Wheedle, who arranged with her the stratagem which proved so successful.

This little episode was followed by one or two circumstances that the reader may be put in possession of. Lord H——, who was by no means a strong-minded man, accepted the incident as a warning of Providence. He would not for a trifle risk the enmity of her ladyship, to whom he was somewhat attached, and he dreaded the notoriety of his own criminal association with the prisoner's sister. He resolved to be virtuous, and carried out that resolution by a financial arrangement with his mistress, through the family lawyer. She, who had not been further tainted by sin than in her illicit connexion with the prosecutor, used the means now placed at her disposal in a way that enabled her to gain an honest and creditable

livelihood henceforth. Her brother tried to do the same; but that wish was broken down by the constant interference with his good resolutions from old associates. He also tried various modes, like his sister, for obtaining an honest livelihood; but the impossibility of maintaining an incognito rendered this impracticable. Ever and anon he encountered former “friends,” who reviled his intentions, and frustrated them. It was a good joke, they told him, that notion of his of working for a livelihood. “Did he,” they asked ironically, “really think of turning honest? What a funny idea!” they exclaimed. They persecuted him in various modes. They would demand money from him, and if he hesitated they would threaten to “split” or “peach” upon him. He had to give them on such occasions all he had, and promise more than he had or could perform as the price of their forbearance. Dogged on every hand, and finding it impossible to earn an honest livelihood in this country, he fled from it, with the aid of money supplied him by his sister and brother-in-law (for by this time Clara had become the wife of a good-natured, easy-going fellow, who held an appointment in her Majesty’s Customs); and I lost sight of him amid a crowd of steerage passengers on board an emigrant ship bound for Australia, where I hope he is now living as a creditable member of society.

THE WORKHOUSE DOCTOR.

OF all scoundrels in society, there are none so bad as disreputable or dishonest lawyers—unless it be unprincipled doctors. And I think that the palm of villany, if there be such a thing, might be claimed by a few of the latter class in any competition with the former. There is no limit to the mischief, and no fathoming the depths of crime which a surgeon may commit. Few men, perhaps, have also such ample opportunities for eluding detection. It is fair to say that I believe the crime of dishonesty, or malfeasance, is rare among that most honourable profession of medicine and surgery; but the exceptions, although few, are terrible.

“Doctor, you have been very good to me,” said an old woman, “and I have done wrong to you, and hope you will forgive me, and be kind to me; for I am a poor lone old woman, with no friend in the world but you, doctor.”

The doctor smiled blandly at the compliment here paid him.

This old woman was a pauper patient. The doctor attended her by order of the relieving-officer of the —— Union; the locality of which, it is enough for the reader to know, was on the south side of the metropolis.

The doctor had been many years a parish surgeon; and at this time he was also the medical attendant at the workhouse of the union. He was accounted a successful man. He was in large practice, but his gains were not commensurate with the extent of his business; and owing to a somewhat large family, with expensive habits of his own and his wife’s, he had not made, after all, very much way in the world. I think I may describe him as a poor doctor, although he lived in a big house and kept up a liberal establishment. Yes; I may call him poor. There were unmistakable, although negative, signs of comparative poverty. He kept no carriage, and had to trudge on foot from the beginning to the end of his daily rounds. He rarely indulged in the luxury of a cab, which, I take it, showed either an extreme prudence, not consistent with some other habits I have mentioned, or very straitened circumstances.

“Yes, Goody, I hope I have been kind to you, and I will be kind, as I know a doctor ought to be to all his patients, but especially to all the poor

and old ones.”

I ought to have mentioned, incidentally, that the doctor had obtained a reputation for his urbanity to all people, and his especial affection to the poor.

“Doctor,” she exclaimed; “ah, I have something on my mind. I don’t think I have acted properly by you. Will you forgive me?”

As she spoke these latter words her wretched crone-like features betrayed a ghastliness which appalled the surgeon, and he could scarcely, for several moments, answer her.

“You will forgive me, doctor, won’t you?”

“Forgive you, Goody! What have I to forgive you?”

“Oh, it was very wrong to deceive you.”

“But how have you deceived me?”

“Oh, it was very wicked.”

“Why, what’s the matter? What do you mean?”

As the doctor uttered this last interrogation, in soothing accents, he drew a chair near to the old woman, and, in the extremeness of his urbanity, or with the desire of a confessor to lighten the load that weighed upon her conscience, as he so drew his chair by her side, he actually took her lean and withered hand in his.

“Come, tell me all about it, Goody. In what way have you wronged me? In what deceived me? In what respect acted as a poor woman should not?”

“Well, doctor,” she stammered, in reply to this kind and confidential inquiry, “indeed I have a fortune.”

The doctor started.

“Pray don’t expose me. I shall die if I am found out. Kill me, doctor, if you won’t forgive me.”

“A fortune! and you for so long have been living on charity; obtaining relief and medical attendance from the union! Oh, that is wicked indeed!”

At this moment there passed through the doctor’s mind a thought more wicked than any of the thoughts or acts of the pauper patient. He was then walking the streets of London, attending his patients, earning his own bread and his family’s bread by the sufferance of a Christian usurer, who had obtained judgments against him on bills of exchange, and who extracted, as

the price of what he called forbearance, enormous interest and costs for a disreputable attorney, who (let me say in confidence) I have reason to know divided them with his client. The bitter poverty of the man was his strong temptation.

“Could I manage to get this woman’s property into my hands?” he asked himself.

“No!” was the answer of his conscience.

“It would be an enormous blessing to me if I could get a little money just now, and pay off that infernal Tompkins, who threatens and harasses my life during the twenty-four hours in every day; whose sheriff’s officer ghost haunts my steps from the moment I leave my door in the morning till the moment I return at night; who disturbs my repose at home, and the fear of whom disturbs my sleep. If I could get the use of the money, I would repay it. To wrong this wretched pauper would be a crime I am incapable of; but to use the money of the old sinner for a while, and make it up again, would do nobody any harm. I will try if I can get it.”

Such was the train of thought, interrogation, and reply, and of resolution, which passed through the mind of the doctor, with more rapidity than it has passed under the eye of the reader.

“My good woman, as you say, you have acted very wrongfully, not alone towards me; but you have, in that respect, done a great injustice towards me. By what means can I live and maintain my family than by the exercise of my profession? If you could have paid my fees, you should have done so. I would willingly have attended upon you as long as you lived, without charge, if your necessities had required it; but as you could pay, I think you ought to have paid.”

“Doctor, it is but little I possess, and I have always been afraid of spending it or reducing it. It is only 500*l.* that I have; and if I lost it I should lose my all. How do I know that I shall not want it, every farthing? And I have a son, for whom I have kept it these ten years. Where he is now I don’t know. He left England in a ship for the Indies. He ran away from his home during his father’s lifetime, and I believe he helped to break my husband’s heart. But he used to write me long, long, and such nice letters; and used to tell me that he would come home some day. It is a very long while since I heard from him, and maybe he is drowned. But I don’t think he is. Sometimes I dream of him, and in my sleep I think I hear a voice telling me

that I shall see him again. When he comes home I will give him all I have, and I am sure he will be kind to his old mother, and keep me happy and comfortable as long as I live.”

While the old crone thus garrulously related the secret of her miserly thrift, the doctor was pondering over a scheme which he had already matured.

“Well, my good woman,” he said, “it is not my business to tell upon you. I will not bring you into disgrace. I will not reproach you. From me, at least, you shall suffer nothing.”

“Thank you, dear, kind, good doctor!”

“Will you not pay me something on my account?” he inquired.

“Oh, yes, doctor.”

As she spoke she rose from her seat and went to a cupboard, from which she took a little box and unlocked it. In this box were contained two savings-bank books. How extremely cunning this old lady had been! How well, for one in her position, and at her age, did she understand that difficult rule of prudently investing money! She laid these books before the doctor, again imploring him not to let any body know of her hoard.

“I will give you 10*l.*, doctor,” she said, “as soon as I can draw it out from the savings-bank.”

“I am much obliged to you,” observed the surgeon meekly.

The old woman was struck, perhaps flattered, by the comparative humbleness with which the doctor acknowledged the proffered money. That acknowledgment reduced him to something like the level of his patient. The confidence at this moment became that of friends; and, when the sea of conventionality had been bridge over, the two talked *tête-a-tête*.

The doctor pointed out to the old woman the perils she ran, by fire, robbery, or other accident, of having her books destroyed, and the evidence of her investment, or that investment itself, obliterated. She listened to this demonstration with greediness and anxiety. She saw the force, not to say truthfulness or disinterestedness, of the suggestion. He pointed out to her the comparative profitlessness of the mode of investment she had selected. He told her that money was worth twice, thrice, fourfold, or even tenfold, under careful, judicious management, the amount she was receiving for it.

The greediness of the old woman was aroused. There is nothing so tempting to the over-thrifty and penurious or miserly person as the offer of large interest. This is a weakness they share with the common usurer, who is met with in the ordinary walks of society. I believe it would be possible to cheat an ordinary Jew bill-discounter, or the most subtle and acute of Christian usurers, by the temptation of large interest, and a little manipulation of their great ruling instinct of greediness.

The pauper patient, before this interview had been concluded, entreated her good kind doctor to lend her the benefit of his extreme practical sagacity, great worldly experience, and unmistakable judgment, in the investment of the moneys which had been saved up by her. After a little hesitation, he agreed to comply with her request.

Within a fortnight the money was withdrawn from the savings-banks in which it had been distributed, in order to evade those regulations which prevent more than a certain sum being at any one time invested in any one bank. And after being withdrawn from this channel, it was placed in the hands of the surgeon, for him to lend or employ as he might deem expedient, and upon those securities that would yield a larger return.

The doctor used the money thus intrusted to him in payment of claims which pressed upon himself, and in reduction of his own embarrassments. He paid the old woman, or rather carried to her account, an interest of twenty per cent. per annum with the greatest regularity; and his conscience was satisfied by a belief that he was conferring upon her an essential benefit, by enabling her to obtain this liberal usufruct in preference to the scanty dole of interest she had been receiving. He satisfied scruples, or rather prevented her distrusting him, by from time to time showing her bills of exchange, documents, or papers, which he called bills of sale, and slips of paper which he denominated scrip, railway shares, &c. &c., all of which, he explained to her, were bringing interest at a rate more than four times that she had been previously obtaining.

Goody thus learned to regard the doctor, who alone possessed her secret and stood in the relation of her confessor, as her best and sincerest friend. She occasionally rewarded him, as she thought, by purchasing little presents for his children, and by an occasional visit to the hosier's or glover's to make some slight purchase for his own benefit or comfort.

After two years or thereabouts had rolled away, Goody, whose physical infirmities increased, whose mental knowledge became more and more warped, whose miserly vices had become more intense, also became dissatisfied with the irregular mode in which she obtained the charity upon which she continued to live, while in her imagination she saw her investment increase.

One day the doctor called upon her, to explain that the interest upon a railway debenture fell due to-morrow, and 4*l.* 15*s.* had been thus obtained, which he was prepared to either hand over to her or hold for her investment. She told him she would much rather that he kept all of it except a shilling, which she needed for some purpose, and which sum he gave her. He promised to lay out this further amount, as he had laid out all the rest, in a way to increase its store.

“There,” she then continued to say, “I have been thinking that I feel very lonesome and very uncomfortable here by myself, and I should like to get into the house.”

“What! the union workhouse?”

“Yes, doctor.”

“I am afraid it cannot be done.”

“Oh, I am so sorry. I wish it could. Can’t you manage that for me, doctor?”

“Well, you see, Goody, somebody might find out that you have money, and I might be ruined if it were to transpire that I had assisted you, or even suffered you to become an inmate of the workhouse, and to live out of the ratepayers’ money.”

The old woman was crest-fallen. The idea which she had nursed for many months seemed dashed to pieces. Her hopes were destroyed.

The doctor continued: “I am afraid it would be hardly right, Goody.”

“Nobody could know that I had money, doctor, unless you told them.”

“I should not, of course, think of disclosing it, and perhaps, after all, it might not be so very great a crime for me to let you take your own course. Only, mind, I won’t help you. My conscience will not let me do that. It would ruin me, if found out. No, Goody; if you can get into the house, I will not be the man to tell upon you; but you must get in by yourself.”

The doctor by this time had begun to tremble, lest every moment the old woman should demand the delivery up of her securities, and should discover that he had used the greater portion of her money. He knew that he could not recover or replace it. He was at his wits' end oftentimes to determine what he should do in such an emergency. He therefore liked the idea of this old woman's going into the house, where he knew she could get, because the additional falsehood and imposture of her position would be an added security for her silence. While there, she would hardly dare to claim from him the money or the documents. He would have far less difficulty in maintaining the secret of his fraud upon her than he had hitherto done.

It will be enough to further state that the old creature made application for admission into the union workhouse, and that the relieving-officer investigated her case; that a report was laid before the board of guardians; and that, without much difficulty, she obtained an order of admission. So the fraud upon the ratepayers was effected and prolonged; so the doctor's crime was further concealed.

The old pauper was accustomed in the house, and out of the house when permitted to go beyond its walls, to laud the praises of her kind doctor, who, on his visits to the place, would inquire after her, who would find her very often ailing, and who very frequently ordered her luxuries that did not fall to the lot of other paupers not so cared for.

Three years rolled away, and during this time the pauper grew richer and richer (as she thought) out of the usufruct of her savings. The doctor all the while continued with growing certainty to look upon the fund he had employed for his own advantage as money he would never be called upon to replace. He had only to keep up the deception a little longer, and the real owner of that fund would pass into her grave unnoticed and unknown.

One day the old woman obtained her customary leave of absence, and wandered beyond the usual track of her accustomed visitations when so liberated. She called first upon the doctor, and obtained from him a small sum of money—a few shillings—and afterwards among the places she visited was the miserable home of an old acquaintance. Here she took dinner and tea, and after tea drew out the money, which she said had been given her by her dear kind friend the parish doctor, and insisted upon standing treat for her companion.

About nine in the evening a conversation took place between the two women.

“Goody,” said her friend, “you know I don’t want to hurry you. You know I am very glad to have you here. I am very fond of you; but it is getting late; and if you don’t make haste, you will get shut out,”

The speaker was what is called a little the worse for liquor, and Goody was more than a little intoxicated.

She spluttered out in reply something about not caring for the porter, or the relieving-officer, or the board of guardians, or the overseers, or the church-wardens, or any body. That if she was late, it did not matter, and that she would not stand any of their nonsense. That if she was late, why—she was late. If she could not get in the house, she must stay out; and if they did not care to keep her, why, she could keep herself.

“What nonsense you talk! What would you do, at your time of life, to keep yourself? Why, if they were to turn you out, you must starve. You could not work, and you have not got any thing to live upon.”

“Oh, haven’t I, though!” the old woman incoherently exclaimed. “That is all you know about it. I don’t care for them all. Dr. Jalaype has got my money. He takes care of it for me. Why, I tell you, I have got a fortune; that is, I mean he has got it keeping for me. I have got more than a thousand pounds. Is not that a fortune? Would not you like to have it, old girl? I dare say the chairman of the board would like to have it, but he won’t. No, that he sha’n’t. I won’t go back to the house. I will stop here. There, go and get a quartern more gin.”

With the shilling now produced another quartern of gin was fetched, and the old lady imbibed a further quantity, and got considerably worse, and was soon reduced to a state of beastly, hopeless, and helpless intoxication.

After having drunk themselves into this condition, the two wretched creatures left the scene of their dissipation and endeavoured to toddle in the direction of the workhouse. They had not gone far, when two riotous boys, returning from their work to their homes, saw them reeling, and began to poke fun at them. The female pauper, smarting under a rude juvenile insult, endeavoured to rush forward and seize one of the delinquents, but instead of effecting the capture of the offender, fell flat on her face. Her companion endeavoured to pick her up, but rolled over; and while the sympathetic woman maundered, in her intoxication, words of consolation to the

disfigured pauper, a policeman came up, and, observing their condition, took them both to the station-house.

Next morning, on being brought before the magistrate, they told an artful tale, which that worthy functionary accepted as true, about having met an old friend, who treated them to a half-quartern of gin (they were sure it was no more), and it overcame them. They were discharged with an admonition, and toddled off to the house, at the gate of which they parted,—the one to find her home, like an independent woman; the other to sneak into her ward, and bear the gibes of her associates as best she might.

It was some time before these women could meet again. When they did so, among other things, they talked about the fortune. Goody the pauper would have liked to have said nothing about the matter, but her companion was not to be put off in that way. She had a principle which led her to argue that what people said in their cups might be regarded as their most sincere belief, and that the words uttered in drunkenness had a truth not always attaching to the words of soberness. She persisted in her inquiries, and the result was that the pauper Goody took her friend into confidence.

“Why, you see here,” she said, “nobody knows what may turn up. I have been a lone woman these many years. I have got a son, leastways I believe I have, and some day *he* may turn up, you see. I love that boy, and I have screwed and contrived for him; and in case any thing should happen to me, why I should like to have a little money by me; so I saved and put my money in a savings-bank. But, then, one day I told the doctor about my money, and he told me not to let it be there. I asked if so be he would be so kind as to look after it for me, which he said yes, he would do so. So I gave the money to him, and he lays it out, and gets me the best interest for my money, and I place that interest along with the money, which makes the money bigger, do you see, every year. I have done this for many years, and now I have no doubt I have got hard upon a thousand pounds.”

“Lor! You don’t say so?”

“Yes, ’pon my honour, I have.”

“Well, I wish I had got a hundred pounds, that’s all I know.”

“A hundred is not much,” said Goody, whose ideas were prone to expand on financial theories.

In this way the couple chatted, until Goody’s friend became almost as wise as Goody herself upon the matter of the investment, and the doctor’s

fiduciary relationship became equally well known to two females as it had previously been known to one.

Now, it is said that women cannot keep a secret. I believe this doctrine is not to be accepted or taken as a rule without exceptions. But it is certain that Goody's friend prattled and tattled long and pertinaciously, although in solemn confidence, to a variety of people. At last the fact or fiction of the pauper's fortune became known to Mr. Doe, a popular baker, and chairman of the board of guardians of the union which had the honour of maintaining out of its public funds the wealthy pauper.

Mr. Doe was a man of independent mind. How he won his way, as he frequently had occasion to say, to the distinction of a member of the vestry and chairman of the board of guardians, was by his own talents (sometimes he said genius), and his untiring energy, and his uncompromising honesty. He was not the man to overlook any abuse; he was the last man in the world to permit a fraud to go unnoticed or unpunished. When he heard of the case of this female pauper with a fortune, he determined to sift it to the last. He told the story as he received it to his colleagues or subordinate members of the board of guardians; and a sub-committee was appointed to investigate the matter. The clerk to the board was directed to write to the doctor demanding from him an explanation. Upon that the board dropped the subject for a fortnight, in order that, as Mr. Doe said, every body might have ample opportunity for their proper defence against the grave charges he had to make against them.

The doctor still held his situation of medical adviser and attendant to the workhouse.

The female pauper was unfortunately ill, and at the time when this outcry arose she was an inmate of the infirmary or sick-ward. The doctor was then in attendance upon her.

When the surgeon received the letter, he was of course naturally amazed. Long-continued success and concealment had led him to confidently believe it was unknown to any body but himself that he held the money. How the secret had leaked out he could not tell or guess. A conversation, which he found no difficulty in obtaining, with the patient did not help the solution of the mystery; for she, like an old sinner that she was, denied having mentioned the thing to a living soul. She affected to be as much in the dark as he was as to the mode in which the intelligence had reached the

board. She did not affect to be, but really was, terribly alarmed by the discovery. The doctor heightened that alarm by telling her she would be prosecuted and punished; no doubt sent to the treadmill; or, it might be, transported for fraud upon the board of guardians. He told her that the only course for her to adopt was one of entire secrecy. She must deny every thing; she must declare she had never said that she had money; utterly deny that he had received any from her for any purpose; and if she did so, he would back her statement up by declaring that he had none of her money in his control. The poor deluded wretch saw that she was placing herself entirely in the hands of her doctor, and that he might turn round upon her; or at least she thought so. But still, as between the treadmill and transportation, she hesitated to run the risk of the doctor's possible fraud upon her.

The meeting of the board took place. The doctor, in reply to the letter sent him, wrote a short pithy answer, declaring the statement touching him and the female pauper and patient to be a flimsy fabrication, which he thought it beneath him to answer in detail. He gave his unqualified denial, and should do no more. As for entering on a defence against such accusations, why, his character was before the world, and he left the guardians to judge the mere probability of such a statement as that which had been made by somebody to his discredit. If the guardians felt inclined for any further information, perhaps he might be disposed to give it; but his present opinion was, that he should not.

The female pauper on being brought up before the guardians for examination,—or, to speak more correctly, a deputation of the board, or its committee, waited at her bedside,—she stoutly denied every thing. She declared most solemnly that she had no money, and asked the inquirer, if she had such money, would she be there, in that wretched infirmary, on their bed, in unsavoury pauperism, and taking the noxious workhouse physic? One member of the deputation was convinced that the chairman had led them on a wild-goose chase: that the woman had no such fortune as had been represented; that the whole affair was a bag of moonshine. Another had no opinion at all; he said, in frankness, that he did not know what to make of the matter; and a third had a notion directly contrary to the first, and thought the ratepayers had been swindled for a long while; that the chairman of the board was quite right, and that the matter ought to be further looked into.

It unfortunately happened between the date of this inquiry of the baker and the deputation that the pauper died. Poor creature! she expired under the treatment of her friend and conspirator against the ratepayers,—the Workhouse Doctor. That death was a godsend to him, for it practically stopped all further investigation.

The chairman of the board of guardians, Mr. Doe, at the meeting when the report of the committee was brought up, expressed himself dissatisfied; he said he thought he smelt a rat; he had his suspicions that the doctor had got the woman's money; he was sure, almost certain, that the ratepayers had been robbed. He would like to have the whole thing out, and at once. He did not like that evasive letter of their surgeon's; he should like that gentleman brought before them at once, and be asked to explain. If he came, and did explain, well and good; Mr. Doe would not object to apologise when he had been convinced that he had been in the wrong. Until he was so convinced, he should hold his own opinion, and vindicate it. The upshot of the whole investigation of this worthy, and energetic, and prosperous, and dignified tradesman was, that the surgeon was sent for by a special messenger, and that he attended their deliberations at the board meeting I have last referred to. He manifested a lofty spirit of mock dignity. He protested against the outrage to which he had been subjected by their suspicions and by their demand, and by having him arraigned before them like a criminal at a public tribunal. He did not know that he was doing at all right in noticing these charges; but concluded by laying his hand melodramatically upon his heart, offering many objurgations, and ultimately, in the most familiar way, offering to prove—as he did prove, to the satisfaction of the majority, and the dissatisfaction of the minority, of the board—that the tattle of the chairman's informant was a tissue of falsehood, or the wild imaginings of a lunatic.

The sequel to the whole of these incidents and this investigation was a resolution, passed by a majority of the board, expressing confidence in their medical officer, embodying an opinion that he had been unjustly aspersed, and requesting him to continue to bestow upon the paupers of the union under the control of that board of guardians his eminent services and truly Christian-like mercies.

THE MISSING WILL.

MR. FRANKLIN was a solicitor in good practice at the West End of London, having offices at —— Chambers, Regent Street, and a private residence near Fulham. He was a man of somewhat peculiar habits, although very shrewd, able in his profession, and generous towards his friends—who were not a few. His domestic life had been far from comfortable. He had been separated from his wife, through incompatibility of temper; and that lady, with one of her children, lived in a distant part of the metropolis, upon a liberal allowance from his purse.

This description will cover the life and pursuits of Mr. Franklin during a series of about fifteen years. All this while, and probably much earlier than the beginning of this epoch, he saved a considerable portion of his earnings, and invested it with that success a prudent lawyer was able to command. He was not, it is true, what is called a speculative or “enterprising” man. He was rather a plodding or hard-working man. He had a notion that lawyers ought not to engage in risks, lest they should be tempted, in the frenzy of greed, or to cover some unusual loss, to use the money which clients might by necessity or choice leave in their hands. He never made “lumps of money,” but grew rich by slow degrees, as the accumulated instalments of his frugality were piled on each other, and as the usufruct thereof, year by year, swelled the total of his husbanded gains.

At the head of his staff or firm was a managing clerk; and at the top of his rather small establishment in the country was a housekeeper. In both these persons Mr. Franklin had the utmost confidence. That comfortable feeling, I suppose, grew out of long experience; but it was not one I found it possible to share on my first introduction to these worthy persons. The clerk exhibited all the salient features of his calling. He was cunning, reticent, and conceited. I dare say he was faithful to his master. Fidelity is a peculiar merit of the attorney’s clerk. I have known many in my time, but never knew one treacherous to his master; and never heard, on reliable authority, of one who betrayed a client’s secret. I have often had occasion to know that bribes have been offered to the wretched copyist, whose earnings have probably not averaged a pound per week; and to office-lads, whose wages were but a few shillings—bribes equal to at least a quarter’s honest income

—but not a secret could be extracted in this mode. I have often mused on this phenomenon, but never could fully understand the exact relation between the cause and the effect. The reader is perhaps a better psychologist than I am, and can explain it. I leave the fact in his hands, or head—merely vouching for it as a fact. As I have said, there was this faithful clerk at the head of the staff in Mr. Franklin's office.

The housekeeper who presided over the domestic economy of the lawyer's dwelling was a very ordinary sort of person. She was somewhere about forty-eight or fifty years of age. She was rather tall, and somewhat bulky in form. Her features were a little harsh, her voice was not one that could be described as musical, and her manners were not of that order denominated ladylike. She also was a faithful servant—or at least she very often told me so, and I have no evidence to the contrary. She declared to me, soon after my introduction to her, that she had never robbed the good man (that is, her then late master) of a penny. She had always laid out his money to the best advantage, never got a commission from the tradesmen who supplied butter, cheese, eggs, or other comestibles; and, in fact, never plundered him after the manner of her sisterhood. She was in fact—I take it for granted, and ask the reader to assume—a model housekeeper.

This is a censorious and scandalmongering age. I cannot, I fear, rely upon it that my pages may not fall into the hands of some one or two persons always ready to suspect and say ill of their neighbours. Let me, therefore, at once clearly and emphatically state, that no relationship whatever subsisted between Mr. Franklin and this lady but the ostensible one of master and servant. On this head there ought to be no doubt.

Mr. Franklin one day, after a short illness, died.

The fact of his death was almost immediately communicated to his relatives and friends, who mingled a few natural and conventional tears over his dead body, which, in due course, was interred, without needless pomp or ceremony, in a churchyard not far off.

After and before the funeral much surprise was expressed at the non-discovery of a will.

Had he made a will, or had he died intestate? On that head there was much speculation, and many decided opinions formed. Some folks argued that it was very foolish for a lawyer, above all men in the world, to leave his intentions undisclosed, and bequeath a negative legacy of trouble, distrust,

suspicion, heart-burning, and social war among his acquaintances and kindred. They didn't think he could do it. Others contended that there was nothing remarkable in a solicitor's not making a will. These persons may be divided into two classes. One lot cynically remarked that shoemakers' children were usually worse shod than other brats; that the offspring of tailors were to be usually known by the seediness of their costume; that publicans never drank the liquors they vended; that parsons rarely illustrated, by their practice the virtues they taught in their pulpits; and that a lawyer should betray a crowning want of prudence was not, therefore, wonderful. This was the reasoning by which some were led up to the belief that Mr. Franklin had certainly not made a will. Another lot sneered at this circumlocutory and unsatisfactory process of argument. They said that the thing was plain enough. The deceased was a lawyer. He well knew, and was satisfied with, the arrangements made by the wisdom of the legislature for the distribution of the personal estate of intestates. Against all this speculation there was, however, the unswerving and oft-repeated declarations of the managing clerk, who said that his late master did, about two years before his death, make a will. The draft thereof was in the handwriting of Mr. Franklin. He had also engrossed or copied it for the executors with his own right hand. The attestation had, however, been made by that faithful clerk and by "that rascal Edwards," a junior clerk, whose skill in the imitation of autographs had secured him gratuitous and comfortable board and lodging at Portland.

If the deceased made a will, where could it be? That was a knotty and interesting question. In its solution nobody took a deeper interest than the housekeeper. If it could be found, it would. She was as sure as of the fact of her existence (and of this, as she had never heard the Berkleyian theory propounded, she had not the slightest shadow of a doubt), that it would secure her the reward of long and meritorious servitude. The relatives and friends, who desired to find a will, and thought she might aid in its discovery, promised to reward her if her faith were not justified by the document when it turned up. The clerk was also zealous in searching for it every where that his sagacity pointed out as its probable lurking-place. Neither will nor draft of a will could, however, be found. The office and the house were ransacked. The safe, all the tin cases, drawers, and bundles of papers, were critically examined without success. Suspicion, it is needless to say, was rife. It must have been destroyed, was the conclusion almost

uniformly arrived at; and the delinquent was marked out by the imagination of several.

The lawyer's only son, who had been a riotous youth, and a sore trouble to his father, was the suspected criminal. It was notorious that this young man had drawn heavily upon his parent from time to time. He did not like the honourable profession of the law, and, in order to accommodate his taste, Mr. Franklin had paid considerable premiums to men of repute in other professions; but the student, or apprentice, forfeited the money thus paid at different times for his benefit. He had twice robbed his father of large amounts. The lawyer's patience and affection had apparently been exhausted some time before his death. The son, deprived of all allowance by which to sustain an idle life, was ultimately compelled to gain his living in a comparatively humble position, and when the father died he was earning a pound a week in a merchant's counting-house. Mr. Franklin, junior, who lodged with his mother, heard of his loss as soon as that lady did. He at once threw up his engagement, under the vague belief that a fortune had been dropped into his lap. He practically took possession of the offices and the house of the deceased, and had abundant opportunities of getting rid of any document obnoxious to his interests. Uncharitable rumour, therefore, set down as fact that this young man, had ascertained that an indignant parent had cut him off with or without the proverbial shilling; that the missing will was the instrument by which his just punishment had been effected; that he had discovered the will, and in it his fate; and that, in order to get the benefit of the statutable distribution of the estate, he had destroyed both the document and the draft thereof.

About a fortnight after Mr. Franklin's death I was instructed to probe the mystery of this lost will. It was chiefly desired that I should find the will itself; but that was thought a hopeless task. The next thing desired was, that I should get clear evidence of its former existence, its provisions, and bequests. It was also desired that I should get evidence enough to sustain a prosecution against the young man.

My task, which appeared almost hopeless, and not likely to be profitable, turned out short, easy, and satisfactory.

A brief investigation of overlooked circumstances informed me that Mr. Franklin had "protected" a young woman, who, in consequence thereof, bore him two children. This attachment he had managed to conceal from all

his friends and acquaintances; and some of them were greatly scandalised at the discovery of such an offence against social morals. I called on this lady, and in my first interview went right through the mystery of the will's concealment. The poor creature was awfully embarrassed by my inquiries, and immediately I thought it wise to let her know the real object of my visit, she fancied herself a delinquent. "Upon my word, sir," she said, "I didn't take it. He gave it me. He told me to keep it until he died, that it would be my only protection after his death, and that I was only to give it up to Mr. Thistlethwayte." I saw the whole design of the late Mr. Franklin. I asked her to let me see it. She replied by an entreaty that I would not take it from her, for she asked, "What will become of me and my dear children if I lose it?" It was plain that the unsophisticated woman knew nothing of legal formalities, and hugged the paper as though its mere possession would obtain the money it set apart for her. I promised her that I would not deprive her of it; that I would certainly aid, rather than frustrate, the intentions of the father of her children. Of its contents she could know nothing beyond the general statement of the deceased—that all her future protection was bound up in its provisions. The will had been handed to her in a closed envelope. The wax was unbroken when she laid the packet before me.

How to act did not require a moment's consideration on my part. It was not my duty, and it was repugnant to my feelings, to place this young woman at a disadvantage. In finding the will I had done more than was hoped for, and all that could be expected from me. I advised her at once to consult a respectable solicitor; and she went with me to the office of a gentleman in the neighbourhood—a total stranger to me, except by reputation.

The erring son of the deceased was cleared from suspicion; the will was proved at Doctor's Commons, and the intentions of the testator were faithfully carried out.

One of the persons largely interested in the residuary estate of the deceased, which formed its bulk, was much grieved because of the depositary chosen by Mr. Franklin for the safe custody of his will. "It is not," said this person, "as if he had left the creature a large sum of money. I don't complain of the provision he has made for the unfortunate children, but he might have spared us the humiliation of asking her for the will. Why could he not have left that in the custody of some one of the respectable people to whom he has given the principal part of his fortune?"

The explanation was, "Why, don't you see, my dear madam, that although the creature had but a small interest in the estate, that interest depended entirely upon the preservation of the document. As the bulk of the property was distributed by the testator nearly the same as the law would of itself have distributed it, he had small occasion to make a will at all, except to provide for the creature and her offspring. He chose the safest of all places in which he could deposit it, as of course he did not wish it destroyed by any of those respectable people, who would not have been much concerned if the mother and her little ones had been left absolute paupers."

"Do you mean to suggest that either of us would have destroyed the document?"

"Certainly not; but I apprehend that the deceased thought it quite as well to preserve you all from temptation."

THE DUKE'S MYSTERY

LITTLE more than five years ago, a series of robberies on a grand scale was perpetrated at the West End of London. There was hardly a tradesman of note who did not suffer from these depredations, which for a long while baffled all the skill and vigilance of the police.

After a lapse of perhaps six months from the formation of the belief that these robberies were the result of a concerted action by the rascaldom of the metropolis, the victims and their friends formed themselves into a committee, and I was retained to investigate the affair.

As the matter had by this time assumed great importance, I employed five or six assistants, and systematically went to work. The police were also on the alert, and special instructions were given from Scotland Yard that they should coöperate with me, or practically, I may say, act under my instructions.

It would be tedious to relate all the disguises and stratagems which I assumed and devised. It must suffice to say, that half a dozen men went through more variations in their appearance than the chameleon, and were nearly or quite ubiquitous during the investigation.

I saw that a gang had to be crushed. I knew that success or failure was but an issue of time and money. Of the former I could give and get as much as the associated tradesmen would pay for. Of the latter there would, I believed, be no stint. The parties affected, and liable to be affected, by the operations of the gang, were prepared to lay out all the cash needful to secure the punishment of the criminals.

The job was not a light one. We made a few mistakes, to the injury, however, of no one who had a character worth keeping. We got at times on wrong tracks. We were often on the heels of the thieves, and yet failed to grasp them. We were none of us faint-hearted, or lacking in patience. Each trip only made us walk the more carefully. Each blunder only made us wary. Each divergence only made us examine the supposed clues with greater nicety.

One morning a police constable and one of my men came to me with news.

“We have a clue, sir,” said police constable U 99.

“That’s well. What is it?” I observed.

“At least we think we have,” said my assistant.

“I told him of it. I found it out,” added the constable.

“No, don’t say that. I had most to do with it.”

“How do you make that out?”

“Well, how much did you know about it before I told you of it?”

“And how much did you know when you told me of it?”

I saw that there was a pretty quarrel brewing between this pair of worthies, and I tried to stop it; but that was not so easy a task as the reader may at first be inclined to suppose. If I put a restraint on my assistant for the sake of peace, I might be incidentally puffing up the constable’s vanity, and wantonly injuring the laudable pride of my own staff. If I attempted to curb the policeman, I might drive him off to Scotland Yard, where the clue would be followed up, and my own professional credit with the tradesmen injured. I must put up with a little of this altercation, and endeavour to soothe the irritation of both.

The fact is, that somebody—an omnibus driver, I believe—had told the police officer that something he was accustomed to see was “a jolly rum affair.” The policeman, being on the beat along which my man had to travel, and knowing him, repeated his information, and echoed the ’busman’s opinion in his own vernacular. My assistant joined in the opinion already expressed, and went beyond it.

“It is a rum affair, as you say,” observed my man. “I think,” he added, “that it’s a clue to what we very particularly want to find out. You come up to the governor with me to-morrow, when you’re off duty, and I’ll introduce you. If we turn it to account, mind, he’ll not be unhandsome. He’ll make it worth your while, that *I* warrant.”

They then chatted over the business, and I dare say my assistant let the officer into the secret of our instructions far enough to aid his comprehension of the gravity of the effects to which this clue might lead.

“What, then, was this clue?” I dare say asks the always impatient reader.

It was a small matter. It did not seem to point directly at the information I wanted, but many a real clue has not been more definite or reliable than

that now to be followed to its end. It was a little nut, which required cracking. There might be in it the kernel I wanted, or there might not.

With nothing like regularity of time or periodicity, but with great frequency, a shabby hack brougham might be seen about or after dusk proceeding along a road leading through a western reach of the metropolis into the most picturesque western suburb. My clue began with the vehicle at the north-eastern corner of the Green Park, and ended just on the eastern entrance to the village of ——. It was a suspicious fact that this hack brougham was not driven by the same man throughout the entire distance. One driver was met about half way on the road, when he alighted from the box, and handed the whip to the person (always the same) who met him.

The brougham was one of those registered at Somerset House as a cab. It was a private vehicle, which appeared like the property of some indigent postmaster or jobber.

Where could this vehicle go to and come from?

Among the difficulties in our case was that of tracing the goods. It was, I confess, not a little remarkable that no part of the goods could be traced. We had searched all the most notorious “fences.” I do not think there was one known place in which goods of the kind in question would be brought that we had not examined. Could this brougham be the means of conveying the plunder in small quantities to and from its place of concealment to the place or places of conversion into money? Those were questions we determined to solve.

A diligent watch was set at stages from the Green Park to ——.

Next evening the carriage did not present itself, nor the next; but on the third evening it was seen to emerge from a lane in Piccadilly, near to a street in which there is an inferior livery-stable. It was now followed and kept in sight during its entire journey. I saw the driver changed.

I critically scanned the hirsute visage of the rider.

Just outside the village of ——, on the high road, there stood, and yet stands, a cottage residence, in not the finest state, with coachhouse and stabling for more carriages and horses than the occupant seemed to make use of. The house was, I may also explain, shut out from the view of travellers by a close wooden paling, a high gate, and a tall, dense, leafy hedge.

At this cottage the brougham stopped. The rider alighted, and the servant placed the horse and vehicle in the outbuildings allotted to them, which were entered by the rear.

All this looked to me very suspicious. I determined, however, to pursue my inquiries. There was not yet enough evidence, in my own opinion, to justify an application for a search-warrant, and less justification for any one's arrest on a criminal charge.

Inquiries in the village and neighbourhood elicited not much; but the few scraps of fact that we did get tended to fortify a suspicion that here was a depôt of the plunder.

The tradespeople were pumped, but those wells of gossip or scandal were nearly dry. The truth was, this cottage neither excited remark by ostentation, nor the reverse. What it required, it ordered and paid for. The trade done with its inmates by the shopkeepers who were honoured with their patronage was not large enough to arouse the envy of their rivals. It may astonish some people, who are tormented by scandal, to know that rumour may be either avoided or "manipulated," if you know how to go about the task.

While I was engaged in these inquiries, with two of my assistants, the man who had the words with the policeman, as described, had another, and what he called "a jolly row," with that officer. The matter was, I believe, through this, mentioned at the headquarters of the metropolitan police, and the authorities took it up.

An active sergeant of the detective police called upon me, and asked for information, which I thought myself scarcely at liberty to refuse to give, so gave it. He forthwith set to work, and got warrants to search the premises and arrest the inmates.

The time he selected for pouncing on the suspects was twelve at night.

That evening the shabby brougham turned out of the livery-stables, wended its way through slush and traffic along Piccadilly, and at about the usual spot the driver was changed. Away the brougham went again, at a slightly accelerated pace, as though the horse's head was lightened. The party alighted at the cottage, and the stable was occupied as before.

About half-past twelve o'clock a body of police effected an entrance into the cottage by the rear. The whole of the small household was aroused. Great was the consternation of Miss Goodwin, and her brother was nearly

killed by alarm. Of the rest not much different can be said. Groom and coachman (one person), housekeeper and general servant (also one person), who completed the human establishment, were awfully frightened.

The highly intelligent sergeant insisted upon ransacking the house, searching the stables, and exploring the garden. In the mean time the lady, gentleman, and servants were told to consider themselves in custody.

In vain the gentleman protested against this outrage, and sometimes gently threatened to bring down all the vengeance of the law upon his sister's tormentors. The sergeant treated the threat with disdain, and ridiculed the claim of his prisoner to kinship with Miss Goodwin. All entreaties, menaces, expostulations, and threats were answered by references to his duty, or intimations that he knew what he was about.

The search and exploration revealed nothing. The officer was sorely disappointed, but not yet discomfited. He saw that, at all events, he was safe if he went on, and that if he turned back he might expose himself to the charge of negligence. There was enough that was wrong, more than sufficient that was mysterious, to cover any excess of vigilance, or any stretch of duty. So on he resolved to go.

When Mr. Goodwin was told that he must accompany the officer as his prisoner, and that the lady must also share that inconvenience, they again put forth every form of remonstrance. All were useless. The officer was inexorable and unbelieving. He rudely expressed his disbelief of the assertion that the fair tenant of the cottage was a pure and innocent young lady, of small independent estate, and that the visitor was her brother and guardian. Those explanations, he said, might do for the magistrate tomorrow, but they would not do for the police.

There was no getting out of the awful mess. Mr. and Miss Goodwin were removed by the sergeant, under his warrants, to the chief metropolitan police station, and there confined in vulgar cells.

At times during the wretched journey to London the prisoners were defiant, and at others they sank into despair.

Once, on the way to the metropolis, the lady remarked to her companion, "Never mind, dear George; we're not thieves; they have searched my house in every part, but they have found nothing."

"Now," observed the officer, "don't say any thing that'll injure yourselves while I'm with you. I don't want you to criminate yourselves."

Only mind, I shall give all that I hear as evidence; and I don't mind saying that I don't like the look of things. 'Found nothing!' well, if that sort of talk ain't thieves' patter, I don't know what is. I ain't found nothing yet; but if I get a remand, won't I find nothing!"

Mr. Goodwin shuddered. Miss Goodwin was eloquent in the form of denunciation.

The gentleman, by the time of the arrival of the party at the station-house, had recovered his self-possession. He demanded the means of communicating with a solicitor. This was afforded him. He chose the name of a well-known criminal practitioner, one of the cleverest and one of the most respectable of his class.

The professional man recognised his client. He had before been employed as the agent of that client's family solicitor in a prosecution.

Within ten minutes after the arrival of the lawyer at the station, the door of Mr. Goodwin's cell was opened, and that gentlemen with his attorney were shown into the head private apartment of the officer who lives on the premises. Miss Goodwin was also looked after with as much tenderness during her stay in this urban hostelry.

After a short further interview between the attorney and gentleman, and a few words with the lady in compulsory waiting, a conference was held between the magistrate, his learned clerk, and the attorney.

Mr. and Miss Goodwin were then next shown into his worship's private room, and the brother and sister were liberated on their own recognisances.

Nothing further was done in the case against the occupants of the suburban cottage. Nothing was done by that lady and gentleman against any other person for setting the law in motion against them. The vigilant sergeant got promoted. On what theory and by what influences, let the reader guess. Was it as a reward for past clever and prudent service? Was it the price of perpetual silence? Was it the seal upon a mystery?

I cannot explain why the sergeant was thus dealt with; but as much of some other things as I can properly explain, I will.

First, let me say that I had no further interference by the police with my plans for the detection of the real thieves, and that I hunted them down to conviction.

In the second place, I may inform the reader that Mr. Goodwin was no other than an *alias* for his Grace the Duke of Nomatterwhere, a nobleman who boasts of a long pedigree, and whose own father was not a little proud of the historic traditions of the house of Nomatterwhere. The living duke has a large rent-roll, an almost infinitesimal portion of which goes to Miss Goodwin, who, although not a sister, is in very intimate relationship towards him. He had reasons of his own, I dare say, for the quiet, or, as I should say, mysterious manner in which his visits to the cottage in the western suburb were shrouded.

THE ATTORNEY AND THE SMUGGLER.

TOMMY JOHNSON was a smuggler of the modern school, about which it is hardly necessary to say more than that it differs considerably from the old or the ideal school. Neither Tommy nor any of his men were the picturesque ruffians that school-boy imagination describes, under the tutelary genius of well-known romancists; nor did they much resemble the full-booted, rollicking giants which low art, in common pictures, invariably makes the bold smuggler.

Tommy, the smuggler chief, was a short, stout, ruddy-faced, good-humoured fellow, who lived much as small tradesmen (of whom he was also one) live in that part of the south of England to which he belonged. Every body, it is said, liked him, and he liked every body—except a revenue-officer.

Of Johnson's kith and kindred nobody knew, and few cared to inquire, any thing. Whether Tommy was his real name or not, I am uncertain. When on one occasion, being in trouble, he was asked by a local magistrate who his friends (perhaps meaning his relatives) were, jovial Tommy, with a show of distress, replied somewhat as that eccentric child of the Rev. Mrs. Stowe, Topsy, might have done, "that he 'spected he hadn't got any." There was, however, too much modesty or a little untruth in this. Tommy Johnson had hosts of sympathisers, who were prepared at all times to do him any service in their power. Rumour for many miles about his place of abode gave him credit for being what he really was—a smuggler. Tommy felt it necessary sometimes to vary the compliment, but not always. He never went so far as to repudiate having defrauded the revenue. He was rather pleased to hear folks embody in words the popular theory that there was no harm in robbing the Custom House. He did not care to hide from some people that he did now and then run a vessel clandestinely between a Dutch port and some mysterious point off a craggy side of the Isle of Wight. He, however, usually preferred to be known as a man who had once been in, but now retired from, that business.

Tommy, who was an otherwise prosperous man, once determined that he would indeed give up his perilous and unlawful business or profession.

“My dear,” he once observed to his loving wife, on their return from church one Sunday evening, “I’ll cut smuggling. I’m thinking it’s time I did. We can afford it, you know. This here business, the butcher’s shop, pays; the inn at P—— would honestly pay of itself; and the brickfield turns out right.”

“I wish you would, with all my heart,” his wife replied.

“I will. My mind’s made up.”

“You have said that before, Tommy,” observed his sweet partner; “but you can’t do it. I wish you could. You must be a smuggler. It’s the fun of it you like, as you say, I suppose?”

“Well, yes, I will. I’ve quite made up my mind. When I *do* really make up my mind to any thing, you know, I do it. I’ll have just one more run, just *one* more, and then I drop the game, and stick to the trade on land.”

“That’s what you said the year before last. Do you recollect the time, Tommy?”

Tommy shuddered. He made that promise to himself, and kept it by running a lugger from a port in the Netherlands to one of his points of concealment here. The affair turned out a bad one. The coast-guard discovered the arrival of the boat, seized the craft and its contents, and Tommy Johnson also, and ultimately lodged him in the gaol at Winchester, where he had to undergo a long imprisonment, pending the arrival of the assizes.

That the smuggler then had friends was here demonstrated. The facts were as plain as they could be, but their interpretation or bearing on the question of guilt or innocence was left to the jury, who had the law expounded for their guidance with all possible certainty. Tommy Johnson was acquitted in the teeth of evidence and the strength of a sympathy between himself and every man in the jury-box.

Let me, however, return to the last conversation between Mr. and Mrs. Johnson.

“I would have cut it after that,” he said; “but it cost such a sight of money. What with the loss of the ship, and all the rum, brandy, and hollands, and the hard money I paid Lawyer Swelling, we were almost ruined. I couldn’t stop then. Neck or nothing, I must go in again; but now we’re on our legs again, thank God! and I’ll drop the game after one more slice of luck.”

Having made this resolution, Mr. Johnson next day proceeded to execute it. He drew out two good round sums of money from different banks; a fine lugger, "a perfect beauty," as he declared, was soon afterwards bought, and she was in due course freighted with liquors on a neighbouring coast.

I happened, not many weeks after this, to be travelling as an outside passenger by the coach from Cowes to Ventnor, in the Isle of Wight, when two revenue-carts, heavily laden, passed us on the road.

"My eyes!" exclaimed my driver; and addressing a man who swayed the whip in the first cart, he inquired, "Whose is that lot?"

"Tommy Johnson's, we suppose."

"Poor fellow! unlucky again!" sighed the coachman.

The last venture that was to crown the honest resolution had, then, failed, and worse had to be encountered.

The repentant smuggler was again locked up in Winchester Gaol for a weary succession of months. The case had already been established against him by the clearest evidence. Tommy's heart dropped. His rotund form became elongated, his cheeks lost their plumpness and their colour, his garments hung loosely about his person, and his mind was ill at ease.

This was the fourth time Tommy Johnson had been put on his trial for a like offence against the laws of his country. Each time his case was, in the opinion of his legal advisers, more desperate than before. The facts were not each time stronger, but the prejudice against the prisoner increased with his reappearance in the dock.

Tommy and his wife resolved that no expense should be spared over the defence. Mr. Swelling, of Gosport, who had been so very successful on former occasions, was again instructed, and told to lay out as much money as he pleased in briefs to counsel. I reckon that he made a fine thing out of this bold modern smuggler. Four hundred pounds sterling were paid to him on account at starting. Another hundred were given him before the gaol delivery came round; and there was a balance yet to be liquidated, for which, however, the attorney agreed to give time. Now, suppose that he gave Mr. Needy, the indefatigable junior counsel, in all 25*l.* (which is far over the mark), and that Mr. Silkyarn, the eminent leader, got in all 75*l.* (which is a vast exaggeration), allow 50*l.* for the slight further costs out of pocket, and it will be seen that the attorney made a handsome profit. But there was yet a balance to be settled.

The days previous to trial were days of anxiety to the smuggler and his wife. Their intensity, of course, increased as they approached the grand ordeal. At last the day arrived on which, for the fourth time in his life, Tommy Johnson was placed on his trial for smuggling in the Assize Court at Winchester.

Again, to the surprise of his own attorney and counsel, he was acquitted.

The explanation of this miscarriage of justice is easily found. The arrest of Johnson caused a sensation through the entire county of Hants. He was, as I have said, a jovial man, and a kind-hearted fellow, in his way. Rumour spread the story of his dashing adventures far and wide—exaggerating and intensifying their commonplace into wild romance. This alone fascinated the public mind. But again, rumour having taken Tommy Johnson under her protection, just as she wantonly injures so many others, she made the very most she could of his merits. Every single act of kindness he had ever performed was magnified a hundredfold, and the common smuggler became a hero. I verily believe that Tommy Johnson could have got a hundred acquittals, at as many consecutive assizes. I don't believe that a jury could be found to pronounce that awful word guilty to an indictment preferred by the Crown against him.

Tommy Johnson, after his acquittal, returned home, in a condition which an original mind has described as that of a wiser, sadder, and poorer man than he was prior to the last run. He, however, laudably determined not to make another adventure. He would not seek, through new perils, to retrieve his loss. Without any claims to the character of poet himself, he drew philosophy from Hamlet, and resolved to bear the ills he had rather than fly to others which, his lawyers told him, he could not fathom the depths of. He would stick to the safe pursuit of fortune on land, and not tempt the perils of the deep in the way he had done. In one of his soliloquies on this point he observed that he had made money at it, but he was afraid that he had used up his luck. He couldn't stand those long imprisonments, and he couldn't always go on dropping thousands into the hands of the coast-guard and the lawyers. On the whole, he was decidedly of opinion that smuggling was objectionable, on many grounds, and for various reasons; so he did in fact at last resolve to give it up—and he kept that promise.

Mr. Johnson, in less than a fortnight (being so anxious, as he said, to get the affair off his mind) wrote to his attorney to ascertain the exact balance

due to that able and worthy man. The lawyer answered by a note, which led Mr. Johnson to call at his office with about 150*l.* in his pocket.

“Well, Mr. Johnson,” observed the attorney, stretching out his hands with frigid cordiality, “sit down. I am glad to see you, Mr. Johnson; very glad indeed. I never thought I should have succeeded in getting you off the last time. You owe a great deal to me and to your excellent counsel, Mr. Needy and Mr. Silkyarn.”

“Oh, yes; I’m much obliged, sir, I assure you,” Johnson interposed, with the hope of abbreviating the homily.

“Of course,” continued the lawyer, “I am bound to do the best I can for my client who is in a difficulty. I am glad that I did succeed in getting you off; but prevention is better than cure, you know, Mr. Johnson.”

“Of course,” exclaimed the impatient client.

“And,” the attorney went on to say, “let me give you a bit of sound advice gratis—moral and religious advice, as well as legal—Mr. Johnson. Let me assure you, that although I dare say you think there is no harm in it, it is as wicked to plunder the revenue as it is to rob a private individual.”

“I can’t see it in that light,” said the unconvicted smuggler.

“It is so, upon my honour,” replied the attorney. “Think over what I now say. Reflect upon the matter, Mr. Johnson, and you’ll see I’m right.”

“Well, that’s an affair for to-morrow. Let me see, what did you say your balance was, sir?”

“Oh, ah! Well, I said I’d take a hundred guineas in final settlement—that is, a hundred and five pounds, Mr. Johnson.”

Johnson counted the money in notes, and handed it to the attorney, who laid it on his table.

A moment’s silence followed.

It was broken by the attorney, who did not quite understand the look of the client; and as he feared that Mr. Johnson might be thinking the costs excessive, Mr. Swelling turned the theme.

“Now, I hope the next time you retain my services, they will be needed for some different purpose. I should like to see you make money, and invest it in land or houses, and let me prepare the deeds.”

“Yes, sir, you shall, when I can get the money to buy the land and houses.”

“Well, till then good by, Mr. Johnson,” said the attorney, rising to bow out his client.

“You forgot, sir, I think, to give me a receipt; and I don’t think I ever had any for the money I paid you in the prison?”

“Oh, very well, Mr. Johnson. Certainly you can have a duly-stamped receipt, if you please; but I hope you don’t suppose that I want to cheat you? I should not like to think you reward my anxious services on your behalf by entertaining such an unjust suspicion of me as that?”

“No, sir. Oh, no. Nothing of that sort. Only, as you were a-saying that it’s as wrong to rob the revenue as it is a private individual, I thought (although I don’t see things quite in that light) that you ought to give me one.”

The attorney’s moral philosophy cost him 7s. 6d.

He bit his lip, and sat down; and as penny receipts had not been invented, he wrote on a stamp of the above value a receipt for all the money paid him by the smuggler, who rather enjoyed the joke he had played off on his legal adviser.

SWINDLING ACCORDING TO ACT OF PARLIAMENT.

I THINK that the merchants and traders of England, Scotland, and Ireland, or the Chambers of Commerce of the United Kingdom, might lay out a fair sum of money in a worse mode than by retaining me to illustrate, through my experience, some defective acts of Parliament, under which, as I have seen, frequent palpable and sometimes gigantic villany is perpetrated. Whether this notion of my usefulness to the mercantile community and the State is justified or not by any thing I can show, the reader may judge from the following, which is one sample of a stock in my recollections.

An honest, struggling, and not rich, but moderately successful, trader in the City of London, not long ago, was told that a certain “firm” (Messrs. Voleur and Enlever), who had offices, or a warehouse, not many hundreds of yards from the Mansion House, and somewhat nearer to the cold abode of Gog and Magog, and who had an establishment in Paris, might do business with him in a certain class of goods. The trader, Mr. Brown, although not able to bear losses, and therefore somewhat cautious, was, at the same time, naturally anxious to do business. He inquired the standing of this firm. His friend could not tell him, but said that other friends of his—Messrs. Downey and Grabble—were traders with these enterprising Parisians; that Downey was the very model of scrupulousness; and that Mr. Brown might go and ask him to say confidentially what he knew about or thought of the Frenchmen. “Downey and Grabble are first-class people, I can assure you. If they say ‘right,’ all is right; and if they say ‘don’t,’ then I say don’t trust Voleur and Enlever, that’s all.” Brown thanked his friend.

Next day, as a matter of course, Brown called at the London office or warehouse of Voleur and Enlever, which, for geographical definiteness, I may also explain was not far from the High Court of Relief, in Basinghall Street. He had samples of his goods in his pocket. The agent and buyer of the French firm was in his proper place behind the counter.

Firstly a formal explanation and inquiry or two passed between these gentlemen.

“What class of goods do you say you can offer us?”

“Alpacas.”

“They will do for the Paris market just now, but we must have them cheap. We don’t want long credit.”

“They are a job lot. I can offer them low for cash or short credit.”

“Our terms are cash at thirty days; but let us see your samples.”

The samples were laid on the counter, critically examined by the intended buyer, and approved. Mr. Brown was also content (subject to references) with the thirty days’ credit.

“Well,” he said, continuing the dialogue, “I am quite satisfied as to the terms of credit; but as this is my first transaction with your house, I should like a reference, which, if quite satisfactory, as I have no doubt it will be, I’ll send in the goods at once.”

“Oh, that’s quite right. Let me see, who shall I give you? Do you know Downey and Grabble?”

“Yes; I know them very well. That reference is quite satisfactory to me.”

“Ask *them*, then, what they think of Voleur and Enlever.”

Mr. Brown went direct to the counting-house of Downey and Grabble. Both members of the firm were out. He called again, and saw the two members of this very respectable house.

The visitor went direct to the business on which he had called.

“I am told you are dealing with Voleur and Enlever.”

“Yes.”

“They are good, then?”

“We suppose so,” said Downey, in silken tones, “or we should have nothing to do with them;” and as he spoke he turned his eyes upon his partner.

Grabble added, “Perhaps it would be more satisfactory to this gentleman if we showed him our account with the house he inquires about. Here, Clark, let me have the ledger.”

The ledger was brought. It showed a large amount as due from Voleur and Co. to Downey and Co.

“I see,” said Brown, “that you have confidence in them. You’ll, however, excuse my being a little particular. I am a poorer man than you are, and although I am anxious to do business, I must be careful not to make bad debts.”

“What goods are they you have to sell?” inquired Grabble.

“Alpacas,” said Brown.

“Ah, yes; they are wanted in Paris just now. Voleur’s might sell an immense lot of those, I should think. It’s a good opening for you.”

“What credit do they want?” asked Downey.

“Thirty days,” said Brown.

“It’s as safe as the Bank. You are sure to get your money at the end of the month. I know both Voleur and Enlever. They are young men belonging to first-class families, and as sound as Copestakes or Morleys.”

Brown thanked Downey and Grabble, and went on his way to his own little warehouse, rejoicing in the confident belief that he had done a good day’s work—that he had netted a ten-pound note that morning.

The goods were sent in with all convenient speed by Brown to Voleur and Enlever. By their agent the alpacas were not forwarded to Paris,—perhaps because they were needed in the home market. The Paris house had, as Downey and Grabble well knew, a means of disposing of all sorts of textile, or even fictile products, much nearer to the City branch of their operations than the French capital. There was, in the neighbourhood of the London Rialto, “a house” kept by two kind-hearted members of one of the tribes of Israel, in which any conceivable quantity of goods that any other firm or house could buy on credit might be taken care of; and these benevolent Hebrews would at all times not only warehouse the aforesaid goods, but they would also oblige trading Gentiles by advances (of course for a consideration, under the name of interest) up to a certain proportion of the value of these goods. Now, reader, don’t call this process by an ugly name. If you have read the former stories in my volume, you will be aware that this mode of disposing of goods is not called pawning. That is an obnoxious word—never breathed among City men, or allowed to taint the air between Temple Bar and Aldgate. This mode of raising cash, and getting off commodities, is called hypothecating. Is it not a nice phrase? The process is undoubtedly sanctified by the title.

Now it so happened that a man who traded in the City of London, and had done business with the firm of Voleur and Enlever, and whose goods had been hypothecated with the Hebrew benefactors, did not admire the process. He had seen his goods, supplied to the enterprising Frenchmen on the strength of one of Downey and Grabble’s oral testimonials, safely

housed by the Israelites; and he determined that he would exert his utmost power and influence to prevent other men's wares, intended for Paris, from a like diversion of their route. This man, by watching and inquiry, found out that the goods lately belonging to Brown, and now the lawful property of Voleur and Enlever, to do as they liked with, had been sent to the hypothecators. He called upon Brown, who he saw had been made a victim of, and gave explanations which reflected upon the character of the houses of both Voleur and their reference. Brown was a little alarmed, but philosophically remarked that the mischief had been done, and there was no help for it. In fact he yet hoped, on the strength of Downey's testimonial, that the money faithfully promised in thirty days would be paid in due course.

Before the day when Mr. Brown's money became due, the English branch of the house of Voleur and Enlever was shut up; letters addressed to the chief establishment in Paris were returned through the Dead Letter Office. The firm had become dissolved, the house had run away, and no man could discover its whereabouts.

Mr. Brown saw that his money was lost, unless he could make those rascals Downey and Grabble pay. To this point all his thoughts were directed. He felt quite convinced that these "respectable" traders knew all about their Continental friends, and that it only needed a searching investigation to prove the complicity of the houses through whom he had been defrauded.

At this state of the affair I was employed.

My inquiries soon unravelled the whole plot. It turned upon a simple fact; but the surrounding incidents of the narrative were remarkably unique, and interesting to the mercantile community.

In fact Downey and Grabble were in the first place taken in, and nearly done for; to a large amount, by Voleur and Enlever. The persuasion of the Frenchmen had been more than a match for the craft of those Englishmen, who originally hailed from the county of York.

One day—about a fortnight before Mr. Brown's visit to the London warehouse of the Frenchmen—M. Voleur and a fair countrywoman, who was not Madame Voleur, were proceeding along one of the quiet streets of the City, in the afternoon, not many hours before the departure of the tidal train, by which they intended to quit the British metropolis, when that

elegant gentleman was tapped on the shoulder in the politest manner by a man who turned out, on further acquaintanceship, to be an officer of the Sheriff of London. The Frenchman was conveyed to the sponging-house over which this officer presided, despite his protests and the lady's tears.

The creditors, Messrs. Downey and Grabble, had made an affidavit that the debtor, M. Voleur, was about to leave the country with the view of hindering and delaying the recovery by them of the money to which they were entitled; and, upon the strength of this oath, one of the learned judges had authorised the detention of the Frenchman until he paid the demand, gave bail for its payment, or liquidated the obligation in bankruptcy.

Messrs. Voleur and Co.'s agent rushed to the office of a skilful attorney, who was instructed to do his best for the prisoner. This gentleman met Mr. Downey and his lawyer in the reluctant lodgings of M. Voleur, that unlucky man being present. A quarrel was cut short, or nearly prevented, by considerations of prudence.

M. Voleur's attorney led the discussion into a practical current by saying to his opponents,

"I tell you plainly, that my client can't put in bail, and he won't lie in prison. If you don't voluntarily release him, I'll file his petition in bankruptcy. It was foolish on your part to lock him up. He can't get the money to pay you while he is here; but if he had his liberty, he might do so. He's a clever fellow, and will not stop yet awhile, unless you are silly enough to stop him. If you let him alone, taking care not to trust him any more yourselves, but not thwarting him or destroying his credit, you may easily float out in the course of a month or two."

Mr. Downey and his attorney were struck by the ingenuity, if not force, of the argument, but not quite persuaded to release the debtor.

"Can you offer us any security?" Mr. Downey's adviser asked.

"No," was the terse rejoinder.

"Then I don't see the advantage of liberating your client," added the creditor's attorney.

The negotiation would have broken off at this point, but for the Frenchman's ready wit. He had a resource. He had a small contingent property in France. It was valuable enough to cover the debt of Downey and Grabble, although not to be easily realised in this country. He did not like to part with this, his only fortune, to a stranger.

A Frenchman is literally and absolutely nothing, if not always sentimental, and occasionally lachrymose.

M. Voleur shed tears when he agreed to part with this little contingent estate to his inexorable creditor; then, having exhausted his natural emotions, he returned to business, and the negotiation was renewed.

It was ultimately settled, on Downey's giving his assurance, upon the honour of a gentleman, that he would afterwards do what he could to prop up the house of Voleur and Enlever—that is, by giving favourable references as to them—he and his partner should have an assignment made to them of this contingent estate. The sentimental Frenchman further stipulated, that when he paid the amount due to Downey and Grabble, as he expected to do very soon, the creditors should re-transfer the estate.

The compact was ratified by solemn pledges of honour.

To save appearances, it was arranged that one of the firm of Downey and Grabble should go to France, pretend to make inquiries about the respectability of Voleur and Enlever, and telegraph back “all right,” as an excuse for the liberation of M. Voleur. The reader will see the necessity for this. Downey and Co. could not venture to speak favourably of the man they had arrested unless some excuse could be found for an altered opinion. Downey and Co. would not, of course, tell any body of the arrest of Voleur, but that ugly fact might withal leak out. How to reconcile the contents of the affidavit, which led the judge to order the Frenchman's arrest, with the subsequent eulogiums, was the moral difficulty to be surmounted.

It is needless to say that the argument of the Frenchman's attorney must not be repeated, and the security they had obtained must not be mentioned. The possession of that document was a palpable sign of a want of that confidence upon which ordinary credit rests. An inquiry on the spot into the respectability of the French house seemed to all parties the most effective way of getting up a show of justification for a good character to be lavished on the swindlers.

Downey started by the next train and boat to Paris. He had for his companion M. Voleur's madame. This little circumstance was not, I believe, mentioned to Mrs. Downey, because she had a jealous disposition.

Within an incredibly short space of time Mr. Downey made all the inquiries he deemed requisite, and was enabled to despatch the welcome message, “all right,” by the harnessed lightning, as he promised.

Next day Voleur met Downey in the French capital, and the next and the next were spent in the same place. During this time Voleur and Enlever introduced the English merchant to theatres, cafés, casinos, and more recondite places, by way of further evidence of their respectability, prudence, and commercial trustworthiness.

Downey had gone through all this circle of inquiry, and returned home to London, before Brown called upon him to ask his opinion of the Frenchmen. It is a pity that the respectable British merchants, when they gave Mr. Brown the testimonial by which he lost his goods or his money, did not expose the bases of their faith in Voleur and Enlever. They surely ought not to have concealed the security in their possession, the arrest of their debtor, or a few other small incidents.

I thought the respectable members of the house of Downey and Grabble deserved punishment as criminals. It appeared, however, that no part of the criminal code could touch them. As yet, moreover, it was, on the authority of a lawyer of repute in the City of London, not possible to recover, by an action at law, the value of the goods supplied to Voleur and Co. on the strength of their English reference. But I had not yet finished my investigations.

I soon after this alighted upon a grand discovery. I got hold of all the confidential correspondence between M. Voleur and the English manager of their house. This young man, who had been more sinned against than sinning, also assisted me in tracing the delinquencies of his masters, and their confederates or supporters.

The correspondence was exceedingly interesting. M. Voleur, who was the principal correspondent, knew English as well as his mother tongue, or he was entitled to rank among the highest of French *littérateurs*. The pathos was fine. The letters had such passages as these: "We are in sore distress for money." "Buy goods any where; sell or dispose of them any how; and send us here to Paris the money, or we are ruined quite." Then there were worldly maxims, that would have done credit to Captain Barabbas Whitefeather, such as, "Pay no cash. It's a bad principle. Get every thing on credit." The most unique passages were, however, those in which the Frenchman explained to his English agent how the trade-protection societies were to be managed, hoodwinked, or bribed. In the interests of trade I must, however, conceal this part of the swindle.

It now appeared to me that, by gathering up all the items of fact, and uniting the written with the oral evidence, my case against Downey and Grabble was complete. A solicitor was consulted, and he took counsel's opinion on the matter. That authority pronounced that the evidence would not sustain a criminal prosecution, and in truth Mr. Brown did not much care about that, to him, barren remedy. He wanted to promote the welfare of society in a mode that would recoup his loss. He wanted to compel Downey and Grabble to pay the amount they had induced him, solely by their representations, to trust the Frenchmen. In the way of even this there were, it was thought, some difficulties.

That eminent old lawyer, Lord Tenterden, had been, many long years ago, at the pains to provide a statutory immunity for people like Downey and Grabble. Mr. Brown, as an Englishman, ought to have known the laws of his country—it is presumed that every man has all the written and the unwritten, the common, the civil, and the criminal codes engraven on the tablets of his memory—but Mr. Brown did not know it was requisite for his safety that the many representations of the English firm should be written down in unblushing ink. Even if he had known so much as was requisite for his security, he might have relied upon the mistaken supposition that Downey and Grabble were truthful men.

In the hope that this case had features which took it from under the mischievous ægis of Lord Tenterden, in reliance upon a notion that Downey and Grabble would not dare to allow the cause to reach a public trial, and also prepared to risk something in the interest of the mercantile community, Mr. Brown brought his action against these “respectable” men. It cost him something, did this resolution. He had to employ first-rate counsel, whose fees were not small. The cause was defended. Downey and Co. knew that this was but one of a series of claims, which, under the like circumstances, might arise against them. At the trial all the facts I have mentioned were clearly established. The learned counsel who led the plaintiff's case denounced, in terms of just severity, the conduct of the defendants. The judge, the jury, and the spectators would have been glad to see financial equity enforced against the wrong-doers. At the conclusion of the evidence Mr. Brown was able to offer, the counsel for the defendants argued that he had no case to answer. He took his stand upon the Act of Parliament. He did not attempt to deny the merits of the plaintiff's case. He could not answer the damnatory facts. Upon the dry technical question, whether or not

Messrs. Downey and Grabble were shielded by the obnoxious statute, there was a long argument, which ended in the judge's expressing an opinion that he was afraid they were; and the plaintiff was nonsuited.

The respectable house of Downey and Grabble did not long survive its damaging triumph. It has ceased to appear in the *London Directory*, and its members have found it requisite to their comfort to emigrate beyond the limits of a most unenviable notoriety.

MATRIMONIAL ESPIONAGE.

AMONG the curiosities of my experience I reckon the incidents of the narrative I am about to relate.

A few years ago, a gentleman of considerable estate, one of the untitled nobility of England, called upon me, and explained that he had reason to suspect the fidelity of his wife. I did not recognise the force of these reasons. The facts on which this gloomy, although partial, faith in the lady's impurity or falseness had been raised might, with strict literal accuracy, he described as "trifles light as air."

This suspicion was, however, not to be wholly disregarded by a stranger, at the first blush of the case. My visitor's station in life, his intellectual qualifications, and his affection for his wife, appeared like guarantees that he would not condemn her without cause. He did not, however, assert with confidence that she was guilty. All he had, or professed to have, was a doubt. He told me that nothing would give him more delight than a perfect conviction that he had been under a delusion about the lady.

Perhaps it would be well to describe somewhat more fully the actors in this curious little drama. Mr. Percival was the only son of a wealthy and improving land-owner in the county of Sussex. He had, in consequence, inherited his father's whole landed estate, together with a large sum of money, and considerable investments in public funds and other reliable securities. His education had been well cared for. He lost his mother when only about fourteen years of age, and his character had, it is probable, suffered from want of the chastening influences of maternal care. This was, however, the only defect, if it were a defect, in his training. His father had anxiously watched the conduct and the development of his youth. He had been educated at Eton, where he excelled in more than one branch of study. At Oxford he took honours. He was a superior type of the class known as "country gentlemen." His habits were those of a man of culture and a man of fortune.

Mrs. Percival was a lady of good, although comparatively poor, family. Her father rejoiced in the title of an Irish landlord; but the rent-roll of the estate was not very considerable, and it needed dexterous management to keep it from the withering grasp of the Encumbered Estates Court. Still, out

of their slender resources, Mrs. Percival's parents had given her a superior education. She could draw, she was a skilful and a good musician, she was an elegant horse-woman, and otherwise accomplished. Her manners were free and natural,—sometimes a little child-like or hoydenish. She was a little, and but a little, above the average stature of her sex; had a graceful mien, and a sweet face. If I were expert in drawing pen-and-ink sketches, after the manner of a novelist, I should describe this lady as an almost perfect woman.

The reader will understand that I have, in this description, anticipated the narrative so far as to let him know more of the lady and the gentleman than I could learn within a period of two months.

“You will excuse my candour, sir, I hope; but I fail to see the grounds for your suspicion of your wife.”

“I like your candour. It is reassuring. I may be mistaken. I devoutly pray that I am. You have, I am told, had great experience in such painful domestic affairs as that I now trouble you with. It is already a source of much comfort to me that I have consulted you. If you can remove the horrid doubts which oppress me, I shall esteem you my benefactor; but let me know the truth, whatever that may be.”

I again begged him to be a little more precise than he had been in detailing the cause of his suspicions.

“In solemn confidence, I may say that we were at a dinner-party at the house of Mr. Tallboyes, in Seymour Place, the week before last, and it was impossible to avoid noticing her freedom with young Lord Swellington and Colonel Foreshore.”

“The colonel!” I said; “he is a man of sixty. He has seen much hard service; and is ‘a lion’ in every party just now, I have heard. Were not your wife’s attentions the mere courtesies which all true women find pleasure in bestowing upon age and bravery?”

“That might be; but what do you say about her pleasantries with that conceited and empty-headed young fop, Lord Swellington?”

“These might be the innocent raillery and badinage of the purest woman. Ladies sometimes take a cruel pleasure in trifling with, just to mortify, the fop, in whatever grade of society he may be found.”

“I sincerely hope you are right; but, unhappily, these have not been the only causes of my grief. My wife is too fond of pleasure. We have lately

been at two public breakfasts,—one given by Lady W——, at Kew; and another by the Marchioness of L——, at Chiswick.”

“That—pardon my suggesting, under the most adverse, and at the same time rational, estimate of human character—betrays only something of levity, quite consistent with purity of heart and the strictest rectitude of conduct.”

“You are not, I am glad to say, an uncharitable interpreter of human conduct.”

“Indeed I hope not; for although I have seen much wickedness, and a vast deal of subtle, as well as patent, crime, I have met with many instances in which unjust suspicions have provoked calamities. But was there any thing, and if so what was there, in the conduct of your wife to justify your suspicions about her?”

“Well, she flirted with every gentleman present at each party, young and old.”

“With every one?”

“Yes, or nearly so.”

“This is enough to show the groundlessness of your apprehensions. Mrs. Percival may have been too richly endowed with vivacity, but *my* suspicion is that her freedom arises, in great part, from her conscious guilelessness and her moral self-possession.”

“Again I say I *hope* you may be right, and I wrong.”

“Why so emphasise that word *hope*? Have you observed any other instances of what you deem your wife’s impropriety?”

“Yes,” he replied, with a sigh.

“Relate them.”

“The other day my wife induced me to take her to the flower-show held in the gardens of the Botanic Society, Regent’s Park.”

“She asked you to take her?” I interposed.

“Yes, and I did so. I yield every thing she desires; and why not, as I am not certain that her affections wander?”

“Quite correct; but did any thing occur there?”

“Perhaps you deem it nothing. She hung on the arm of Colonel Foreshore for a couple of hours.”

“The old Indian colonel?”

“Yes.”

“Well, really, I do not see any thing in that. I happened to be at that show myself with Mrs. Forrester and a distinguished relative of ours. I remember that among the flowers were several Oriental plants, which our florists have succeeded in naturalising. This is one of the most common incidents of a flower-show.”

“I wish I could look upon these things as you do. A single incident of the kind might not have aroused my apprehensions; but so many, and at various times furnish a collective evidence impossible to resist.”

“How long have you been married?”

“A little more than two years.”

“Any family?”

“No.”

I was quite convinced, as the reader must be, that there was really nothing in the conduct of Mrs. Percival to justify the cruel suspicions of her husband. His employment of me would, I saw, be one of the absurdest things he could very well do.

Should I allow him to employ me? Ought I to permit myself to be used as a spy upon his wife’s movements—being so firmly convinced, as I was, of her innocence?

The mystery of this jealousy was capable of a simple explanation. The lady had been endowed by nature with a somewhat mercurial disposition, which her education had done little to check. The very scenes in which her girlhood had been spent had inspired her with a wild or playful tendency. Nothing in her married life had yet happened to curb or control the innocent gaiety, or it might be waywardness, of her disposition. Had her union with Mr. Percival been blessed by offspring (of which, it is needless to say, there was yet no ground for despair), it is most probable that at dinner-parties she would have been a less attractive member, at public breakfasts she would have been less chatty or facetious, at flower-shows a less anxious inquirer.

But should I, or should I not, undertake to confirm or remove the unjust husband’s suspicions?

Upon this I could not make up my mind. I required time for consideration. It was arranged that Mr. Percival should see me again in

three days.

During the interval between his first and second visits, I carefully balanced reasons for and against the engagement, and at length resolved to accept it. If I did not undertake it, I knew others would, if it were offered them. If they took it in hand, I was not at all sure that they would perform their task with becoming delicacy and consideration. I thought it not improbable that some rude or vulgar man might be instructed, and that he might, by starting on his inquiry with a foregone conclusion of the lady's guilt, so interpret what he saw of her free conduct as to increase her husband's jealousy. On the other hand, if I undertook the affair, I doubted not the result would be a vindication of Mrs. Percival in her husband's eyes.

Mr. Percival punctually kept his appointment with me.

He was the first to speak.

"I hope," he said, "you have agreed to assist me?"

"I have."

"Well, I shall feel grateful to you when you have probed the truth—doubly grateful, if you can prove that my doubts about my wife are unfounded."

"I expect to earn that double gratitude."

"Be it so," he said, with great emphasis. "It is no drawback on your professional merits, to my mind, that you have already formed an opinion that my wife is as good as I could wish her, and that I am a jealous fool. I should not like to know that you had condemned *her* beforehand. I am persuaded that you will do your duty faithfully towards me, and considerately towards her."

I promised him that much.

There was a ball at Almack's the very next day. Mrs. Percival was to be there, and so was her husband. They would go separately, after the manner of the *ton*—she in her brougham, and he in his cab.

I did not think Almack's a desirable place to begin my inquiries in. It would not be easy for me to gain admission into this closest of all assemblies, although I could have encompassed that, as I had before. I preferred a stand-point of observation where etiquette was less rigid.

Next week there was to be a grand fancy-dress ball, under a potent body of lady patronesses, for the relief of starvation in Whitechapel; and Mrs.

Percival, acting under the feeble light of conventional charity, thought it her duty to buy a ticket (price one guinea, of which an infinitesimal portion was netted for the indigent), and to largely patronise her dressmaker and milliner, in proof of her intense sympathy with the famishing poor.

I attended this ball, and was sickened by its palpable mockery of the distress it was ostensibly designed to relieve; but I must not get off the track of my narrative to moralise.

At this ball I saw nothing to justify a suspicion of impropriety on the part of Mrs. Percival; nor did I at a flower-show which was held in the grounds of the Crystal Palace at Sydenham; nor at a public breakfast which the Marchioness of L—— gave in her grounds at Chiswick. A more private scrutiny of the lady's movements also went to prove her strictly virtuous in character.

I now got wearied and half-disgusted with my task, and brought it to an end by reporting to Mr. Percival my absolute conviction of his wife's innocence and purity. He received my statement without offering any opinion upon it, and it was evident that he was not quite satisfied with it. It had, I dare say, weakened his suspicions, but it had not destroyed them. I was sorry for the imperfect result, but I could do no more than I had done for his satisfaction.

I often mused and reflected over this curious case. What could have given rise to these suspicions in the mind of such a man as Mr. Percival? I set it down to incompatibility of temper. He was a somewhat studious and retiring man. His wife, although as good a woman as ever drew breath, was a light and somewhat volatile person. In many respects, I argued, this is an incongruous union. I thought I saw inevitable misery for both husband and wife in the future.

About a year after I had finished my proper business with Mr. and Mrs. Percival, I was waited upon by an eminent London solicitor, who knew nothing of my former engagement, for the purpose of tracing the retreat of that gentleman, who had deserted his wife, and was hiding from all his friends. My visitor, the private solicitor of Mr. Percival, had not heard from him since or about his flight. It was not supposed that any violence had befallen him, although it was hard to say what harm might befall him. His physician had advised that he had been suffering from one of the thousand forms of one of the hundred branches of that disorder known by the familiar

collective title of insanity. It was a mild and harmless type of the disease—a species of melancholia. The friends of the unfortunate gentleman were anxious to discover, and perhaps secretly watch over, him; at the worst, place him under gentle and temporary restraint. As he was known to be a man of high and honourable ambition—very likely to obtain and worthily fill a seat in Parliament, unless his prospects were marred—publicity, scandal, or gossip, on the subject of his bereavement, was to be deprecated.

I accepted this engagement, and I thought it desirable to let the solicitor know of the previous retainer given me by Mr. Percival, so that he might restate the facts to the physician, who would thereby gain some insight into the secret of the gentleman's misfortune.

We had no clue to Mr. Percival's whereabouts. Certain facts led us to imagine he had not left this country; but I put myself in communication with the French and Belgian police, as the best mode of tracing him if he had crossed the sea. I had all the provincial papers filed at Peele's and Deacon's Coffee-houses critically scanned, so that if any harm befell him I should hear of it. This was a precaution I added to the usual police inquiry through the *Hue and Cry*.

One day I got intelligence through a West-of-England paper that a gentleman, answering to the description of Mr. Percival, had been found wandering along the coast, in a state which indicated mental disorganisation. I lost no time in proceeding to the spot, with the doctor, and with Mrs. Percival, who insisted upon being of the party.

We claimed the poor man, who yielded himself up to our control like an infant. We brought him to London, and took apartments for him in a western suburb, so as to be out of the eye of gossips, and near to that of his physician. It is, perhaps, needless to say that his wife attended on him mainly with her own hands, and would let none but the rudest offices be performed by any other person. Carriage rides, gentle exercise, and tonic medicines told beneficially on the patient day by day; so that in a few weeks, under the doctor's advice, arrangements were made to take him, in his own yacht, to the north of Europe.

The physician explained to me that the secret of his malady was disappointed or impatient ambition. He was an only son. He had inherited, with his father's property, that gentleman's desire to establish a house. He

feared that the curse of sterility had fallen on him or his wife, and the constant brooding over this thought had curdled jealousy in his heart.

In the north of Europe Mr. Percival's mental health was completely restored. On his return to England he called upon me, and thanked me very sincerely for the part I had played in the narrative I have described—stating that if any thing could exceed the claims I had upon his gratitude for the attention I had bestowed upon him, it would be the faithful manner in which I had combated and sought to destroy his unfounded suspicions of his wife. A better or nobler woman did not, he said, exist. She had, he feared, impaired her health by her vigilant attention to him during his illness; and the only grief he now had was the apprehension that, being *enceinte*, the change of air, and Continental travel, which had just been recommended for her sake, would be inadequate to restore a vigour and tone to her delicate system. I am happy, however, in being able to state that these fears have not been realised. Mr. and Mrs. Percival, who are among the very happiest people in the world (the health of both, in mind and in body, being as nearly perfect as they can be), have two sons, with the prospect of contributing more guarantees against the termination of their pedigree in this generation.

THE END.

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Typographical errors corrected by the etext transcriber:

which indeed their was=> which indeed there was {pg 23}

thet investigation=> that investigation {pg 53}

which aliowed him=> which allowed him {pg 65}

a great deal of commissration=> a great deal of commisseration {pg 96}

unpretentious estabment=> unpretentious establishment {pg 111}

legiclature of great britain=> legislature of great britain {pg 125}

from which purported to have been issued=> from which it purported to have been issued {pg 135}

she would cetainly=> she would certainly {pg 140}

neither of of which=> neither of of which {pg 147}
if dossible=> if possible {pg 153}
these must must be vouched=> these must be vouched {pg 186}
suffer it to to lie=> suffer it to lie {pg 197}
dispute and itigation=> dispute and litigation {pg 210}
he face became as pale=> his face became as pale {pg 236}
begining to the end=> beginning to the end {pg 243}
friends and acquaintance=> friends and acquaintances {pg 267}



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